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Senate of Virginia Floor Session, Tuesday, March 10, 2026

Date	Tuesday, March 10, 2026
Place	Senate of Virginia, Senate Chamber, State Capitol, Richmond
Length	7h 52m (video)

- Official floor video (Senate of Virginia, YouTube): https://www.youtube.com/watch?v=JYu9VvuEXPU
- LIS Senate minutes: https://lis.virginia.gov/session-details/20261/minutes-list/S

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[00:01:46] This is the Senate of Virginia, Richmond, Virginia, Chamber. This is the Senate of Virginia,

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[00:14:58] the Senate of Virginia, Richmond, Virginia. Senate chamber. This is the Senate of Virginia,

[00:18:05] Richmond, Virginia.

[00:19:01] Chamber.

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[00:20:42] This is the Senate of Virginia.

[00:21:21] Richmond, Virginia.

[00:21:46] Senate Chamber.

[00:22:24] This is the Senate of Virginia.

[00:24:26] Richmond, Virginia.

[00:25:28] Chamber.

[00:25:28] Be sure to stay connected with live sessions, catch up on past meetings, and explore our full archives anytime on the Senate of Virginia's YouTube channel.

[00:27:09] The Senate will come to order. The senators will please take their seats. Those persons

[00:32:57] not entitled to the privileges of the floor will retire to the gallery. The senators and all in attendance will please rise if you are able. We will be led in prayer today by the Reverend Tom Bainham from Richmond Hill in Richmond City. And today's Pledge of Allegiance will be led by Senate Page Carly Knox of Virginia Beach. Would you join me in a spirit of prayer? Source of life

[00:33:36] and wisdom, we gather in this shared moment from many paths and traditions, carrying different stories, convictions, and hopes. For some, you are known as God, for others, the Holy One, the Sacred, the Spirit of Life, or the deep mystery that holds the universe together.

[00:33:56] For others, still, meaning is found in the bonds of humanity and the quiet call of conscience. Quiet our hurried minds. Open our hearts to one another. Remind us that no single voice carries the whole truth, and that wisdom often emerges where listening is deep.

[00:34:16] Where there is division, help us practice understanding. Where there is fear, help us choose dignity. Where there is suffering, strengthen our resolve to bring healing and hope. Holy One, help us look for the good in others and ourselves.

[00:34:32] To consistently choose to value what is good over what is fashionable. Remind us of the values we hold when our culture tells us and expects us to act otherwise. gratitude for this moment and for one another. We can admit ourselves to the common good. Amen. I pledge allegiance to the flag of the United States of America and to the Republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:35:10] Clerk will call the roll. All those present, please vote aye. The clerk will close the roll.

[00:35:53] you have a quorum madam president senate journal for monday march 9 2026 the senator from central fairfax moves that the reading of the journal be waived all in favor of waiving the reading of the journal will record their vote aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 37 Ayes 37, noes 3, the reading of the journal is waived.

[00:36:31] The clerk will report any communications from the House of Delegates. Senator from Eastern Fairfax. Good morning, Madam President. Good morning. Madam President, I move to waive the reading

of the communication from the House of Delegates. The question is, shall the reading of the communication be waived?

[00:36:49] All in favor of waiving the reading of the communication from the House of Delegates will record their votes, aye. Those opposed, no. Are the senators ready to vote? all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 33, noes 7. Ayes 33, noes 7. The reading of the communication is waived. The clerk will report any communications from the governor. We do not have any Madam President. We've now arrived at the time

[00:37:26] in our morning hour when we have the honor of welcoming our distinguished guests who are joining us today in the gallery and I give my daily reminder about our procedure a senator will rise and offer the introduction for his or her visitors I will then provide the welcome of the Senate I ask that we all hold our applause until I've had the opportunity to provide the Senate's welcome the chair recognizes the senior senator from Henrico thank you madam president matter president I rise for an introduction senator has the floor thank you madam president matter president members of the Senate today's invocation

[00:38:04] was given by the Reverend Tom Bainham. Reverend Bainham is a native of Richmond. He served congregations in Indiana, New Hampshire, and Missouri before returning to his hometown to join Richmond Hill as the director of outreach and spiritual formation.

[00:38:23] I ask that you give him the warm welcome of the Senate. Thank you, Senator, for that introduction. And welcome again, Reverend Bainham. Thank you so much for the wonderful words of prayer and blessing that you offered us this morning, and we are deeply appreciative that you've taken the time to be here today in the Senate chamber.

[00:38:41] Senators, I ask that we give the very warm welcome of the Senate to the Reverend Tom Bayham from Richmond Hill here in Richmond City.

[00:38:58] The chair recognizes the senator from Richmond City. - Thank you, Madam President. I rise for the purpose of an introduction. - Senator has the floor. - Yes, ma'am. Today, it is my honor to recognize Michael McLean, a licensed professional counselor resident in Virginia whose life reflects the power of recovery and second chances.

[00:39:19] If they're there, I'd ask them to stand. There you go. Everyone that's with you as well, Michael, please have them stand. Michael brings more than 15 years of lived experience and professional training to his work with individuals navigating addiction, incarceration, and reentry after beginning substance use at a young age and spending many years cycling through addiction, treatment, and incarceration, he reached a turning point in 2010 and committed to rebuilding his life.

[00:39:50] He returned to school after leaving in the 10th grade, earning his bachelor's degree and later a master's degree in clinical mental health counseling. Along the way, he served as a certified peer recovery specialist and later as a substance abuse counselor working with incarcerated individuals, preparing them for reentry.

[00:40:10] Today Michael leads clinical services at Keys of Life as the owner of the company, supporting individuals in early recovery as they work to rebuild their lives and find stability and hope. Madam President, Michael's journey reminds us that our past does not define our future, and we are proud to recognize him this day.

[00:40:31] Thank you, Madam President. Thank you, Senator. Thank you, Senator, for that introduction. And I think you said the key words, if you will remain standing. We are so honored to have you here.

[00:40:47] And as our senator said, your past does not define your future. And clearly the work that you are doing to help so many others using your own lived experience to guide others towards their recovery process is something that we are all deeply indebted to for the work that you are doing for so many in the community.

[00:41:07] And as our senator was offering the introduction, I could see the pride, the love, and the joy coming from the family and the guests that you have brought with you. So senators, please provide the warm welcome of the Senate to Mr. Michael McLean from Keys of Life and the guests that he has brought with him to the Senate gallery.

[00:41:39] The chair recognizes the senator from Central Fairfax. Good morning, Madam President. I rise for the purposes of an introduction. - Senator has the floor. - Thank you, Madam President. In the gallery today, we have one of my interns, Shereya. Shereya is a graduate of my alma mater, George Mason University, with a degree in economics and is in the process of applying for law school after taking the LSAT.

[00:42:05] She has been a great addition to our office, taking all the tasks head on, and has been good to have more than two, three interns. I'm excited to see where her journey takes her, Madam President. With that, I ask that you give her the warm welcome of the Senate.

[00:42:21] Thank you, Senator, for that introduction, and welcome to Shreya. Thank you for the work. You have done all session in the Senator's office, and I'm sure that you have contributed as much as you have actually learned, so we are delighted to have you and certainly look forward to all that you are going to continue to do as you use this experience of internship in your future career and plans. Senators I ask that we give the very warm welcome of the Senate

[00:42:49] to the Senator's intern Shreya Narani. The chair recognizes the Senator from Prince Edward. Thank you Madam President. I rise for an introduction. Senator has the floor.

[00:43:10] Thank you Madam President. I would like to introduce a group of students from the political leadership honors course at Randolph-Macon College if you guys would stand. Founded in 1830, Randolph-Macon is an undergraduate institution committed to academic excellence and devoted to the development of its students as lifelong learners, critical thinkers, and citizens of the world. In the gallery are, I thought it was four, but at least three students, Jetsa Gonzalez, Ellie McLean, Charlie Moore, and Mackenzie Nelson, who came in from Ashland this morning to witness

[00:43:46] political leadership in action. As the oldest continuously operating legislative body in the Western Hemisphere, Virginia's General Assembly offers the perfect location for students to see the theories they are taught put into practice. This group is meeting with senators, delegates, and staff from both chambers to gather informed views about the meaning of legislative leadership. My hope is that they find their time in Richmond today informative and inspiring and I ask that we would give them the warm welcome of their Senate. Thank you Senator for the introduction and welcome to the students from Randolph-Macon College and as I heard the senator say you're part of the Honors Program focused

[00:44:24] on leadership studies so thank you for the work you are doing through your college career to develop these critical areas of skills and knowledge and certainly echo the senator's words that your your

day today is going to be productive and meaningful as you talk to our lawmakers and share your priorities and your concerns as well senators i ask that we give the very warm welcome of the senate to the students from randolph-macon college the chair recognizes the senator from eastern henrica

[00:45:02] good morning madam president i rise for an introduction senator has the floor thank you madam president it is with great pleasure to welcome representatives of the incarcerated women's clemency and support projects and i'd ask that they please stand Madam President, founded in 2022, the Incarcerated Women's Clemency and Support Project is a Virginia-based advocacy organization dedicated to supporting incarcerated women and survivors of violence as they pursue clemency through, excuse me, Madam President,

[00:45:42] through pardons, sentence commutations, and other pathways toward release. Through their advocacy, the organization works to raise awareness about the experiences of incarcerated women. Madam President, we thank the members of the Incarcerated Women's Clemency and Support Project for their dedication and the important work they are doing to support individuals. As you know, it is easy to feel forgotten and as though no one cares. And this group of individuals, they are making sure that that doesn't happen and that all individuals get the support that they need, particularly our women in incarceration. So please join me in giving them the warm welcome of the

[00:46:18] Senate Madam President. Thank you Senator for the introduction and welcome to our representatives from the Incarcerated Women Clemency and Support Program. The work that you are doing as the Senator shared is absolutely essential providing such critical support and resources for our incarcerated individuals as they seek and pursue clemency and then as they seek to recreate and re-establish their lives in our communities thank you for your dedication thank you for your public service it is so essential senators I ask that we give

[00:46:54] the very warm welcome of the Senate to the representatives of the incarcerated women clemency and support program is there any other business to come before the Senate the chair recognizes the senator from Eastern Fairfax madam president pursuant to rule 13 of HJR 29 the scheduling resolution I move the special and continuing joint order relating to judicial elections to be suspended until

[00:47:34] Wednesday, March 11th of 2026. And speaking to that motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate, we just need to move the judicial elections a day, not to get any more judges straightened out, but the bill creating four new judgeships has not been put in conference and put onto the governor's desk yet.

[00:48:02] But normally we don't elect judges to new judgeships until both chambers have passed legislation creating those spots. And so we need to hold on to the election until the bill catches up with the election. So that's the point of the motion and the delay. The question is, pursuant to Rule 13 of HJR 29, the scheduling resolution, shall the special and continuing joint order relating to judicial elections be suspended until Wednesday, March 11, 2026?

[00:48:35] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[00:48:55] Ayes 40, no zero. The special and continuing joint order is suspended until Wednesday, March 11, 2026. Madam President. Senator from Fairfax. Thank you, Madam President. Madam President, I

would also move that we stand in recess for 20 minutes and that upon recess the folks on this side of the aisle plus the guy to my left go back here to in the closet to continue talking about the calendar. The Senate will be in recess for 20

[00:49:25] minutes to order. We will return to the morning hour briefly. The chair recognizes the Senator

[01:33:46] from Stafford. Thank you Madam President. I rise for an introduction. Senator has the floor. Thank you Madam President. In the gallery today we have from Stafford County the VMEDSTEP supporters if could all stand wonderful it's good to have you here i'm not a president um as many of you know v mesdap is the military military education survivor dependent program i believe i got that acronym correct and in stuffer county particularly we've got a pretty significant uh uh concentration of veterans that are beneficiaries of this program and um so they have leaned in and become great

[01:34:24] voices in the Commonwealth to advocate for our veteran community and so we're really pleased to have them here today if we could give them the warm welcome of the Senate. Thank you Senator for that introduction and welcome to our Stafford County Vems Dep supporters thank you for your advocacy thank you for shining a light on the impact that this legislation has on your families and all of the critical resources that are so necessary to continue the work that we are doing to support our veterans and our military families. Thank you so much for your advocacy and for speaking to our legislators about this critical issue. Senators, I ask that we

[01:35:04] give the very warm welcome of the Senate to the Stafford County Vems Dep supporters. Is there any other business for the morning hour? The clerk will call the calendar. Senate calendar for Tuesday,

[01:35:25] March the 10th, 2026. Turning to page 20. Unfinished Business House. The chair recognizes the senior senator from Prince William. Thank you, Madam President.

[01:35:49] Madam President, I move that the house bills on unfinished business on page 20 through 22, House Bill 5 through House Bill 1279 be placed in the block to insist and request committees conference any senator designed to remove a bill from block. Please do so after the clerk has read the number of the bill. The The question is, shall the House bills on the unfinished business on pages 20 through 22, House Bill 5 through House Bill 1279 be placed in a block to insist and request committees of conference with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read the number of the bill?

[01:36:27] All in favor of that motion will say aye. Aye. Those opposed? No. The ayes have it. The motion is agreed to. is in the block, the clerk will read the number of the bills. House Bill 5. House Bill 433. House Bill 443. House Bill 496. House Bill 549. House Bill 1022. House Bill 1221. Madam President. Senator from Western Henrica. Madam President, can

[01:37:03] House Bill 1221 come out of the block, please? Without objection, House Bill 1221 is out of the block as bill 1279 the question is shall the Senate insist and request committees of conference on the house bills in the block that is all bills except for a house bill 1221 on page 22 all in favor will record their votes aye those opposed no are the senators ready to vote have all the

[01:37:35] senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 40 no zero. Ayes 40 no zero. The Senate has insisted and requested committees of conference. House bill 1221. Senator from Western Henrico. Madam President members of the body I'm going to move that we recede from the Senate substitute and speaking to that motion. Senator

[01:38:12] has the floor. Thank you Madam President. Madam President members of the body this is the financial aid consolidation bill that I carried on the Senate side. And so what happened, this is Senate Bill 167. 167 is already on, it's already over to the governor. And this just in the back and forth, one of the enactment clauses got tripped up. And it's about who's carrying out the work group for the second part of the bill. So the first part of the bill consolidates the financial aid programs that we have. And then the enactment clauses carry out a work group to look at

[01:38:48] making our financial aid better. The bill that's to the governor has the work group under the Secretary of Education. That's what this bill is meant to have. It just got caught up in the back and forth and so to avoid conference on this I do just move that we recede from the Senate substitute. The question is, shall the Senate recede from the Senate substitute for House Bill 1221? All in favor of that motion will record their votes aye. Those opposed no. Are the Senators ready to vote. Have all the Senators voted. Do any Senators desire to

[01:39:24] change their vote? The Clerk will close the roll. Ayes 39, noes 0. Ayes 39, noes 0. The Senate recedes from the Senate substitute. Comfrey's on the part of the Senate on House Bill 75 is named by the Chair of Education and Health, Senator Favola are Senators Favola, Bagby, and Head. On House Bill 110, Comfries on the part of the Senate is named by the Chair of Courts of Justice, Senator Cerevelle, or Senators Marsden, Cerevelle,

[01:40:04] and Obenshain. On House Bill 318, Comfries on the part of the Senate is named by the Chair of Rehabilitation and Social Services, Senator Van Valkenburg, Senators Cerevelle, Van Valkenburg, and Jordan. On House Bill 319, Comfrey's on the part of the Senate is named by the Chair of Privileges and Elections, Senator Rouse, or Senators Rouse, Deeds, and Williams Graves. On House Bill 505, Comfrey's on part of the Senate is named

[01:40:40] by the Chair of Privileges and Elections, Senator Rouse, or Senators Rouse, Deeds, and Bennett Parker. On House Bill 667, Comfrey's on the part of the Senate is named by the chair for courts of justice senator servile or senator servile carol foy and oven chain on house bill 836 conferees on the part of the Senate is named by the chair of education and health center for volar or senators

[01:41:11] purkarsky for vola and Craig on house bill 1385 conferees on part of the Senate is named by the chair of education and health senator for volar are senators Deeds, Locke, Pillian, and Cerevelle. On House Bill 1441, Comfrey's on the part of the Senate is named by the chair for courts of justice, Senator Cerevelle, or Senator Saleem, Cerevelle,

[01:41:44] and Sturdivant. On House Bill 1524, Comfrey's on the part of the Senate is named by the chair for courts of justice, Senator Cerevelle, or Senators Jones, Cerevelle, and Peake.

[01:41:59] On House Bill 1525, Comfries on the part of the Senate is named by the Chair for Courts of Justice, Senator Surevelle, or Senator Surevelle, Deeds, and Stanley. Turning to page 27, Unfinished Business Senate.

[01:42:40] Senate Bill 105 is passed the House with the substitute. Senator from Franklin County. Thank you, Madam President. I now move that we concur with the House substitute to SB 105 in speaking to the matter. Senator has the floor. Thank you, Madam President. What we did over the House was we kind of turned the original bill, which was to expand the eligibility for grants for not just schools that were in

distressed areas, but also then to have maintenance grants that continue to fund those schools that otherwise might not be able to afford a robotics program.

[01:43:14] What the chairman did over there on the House Committee of Education was make it a Section 1 bill that says prior to the 2026 application for grants, the Department of Education shall develop a program to provide grants.

[01:43:34] that way they basically have guidelines that are already in place that will establish grants not just for the granting of the stem c robotics competition grants but also the maintenance of those as i said before for the schools that otherwise may not be able to compete because they have not the resources to do so so for those convoluted long reasons i now move that we concur with the house substitute the question is shall the senate concur with the house substitute for Senate Bill 105. All in favor of that motion will record their votes aye. Those opposed no.

[01:44:10] Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no, zero. Ayes 40, no, zero. The Senate concurs with the house substitute. Sergeant in arms. The Senate will receive the message.

[01:44:38] I've been directed by the Speaker of the House of Delegates to inform the Senate that pursuant to Rule 13 of HBR 29. The House of Delegates has suspended the special and continuing joint order relating to judicial elections until Wednesday, March 11th, at the conclusion of the morning hour.

[01:44:59] Thank you. Thank you, Delegate. Senate Bill 115 has passed the House with a substitute.

[01:45:19] The Chair recognizes a Senator from Western Fairfax. Madam President, with the recommendation that it be rejected, I move the House substitute in speaking to that. Senator has the floor. Thank you, Madam President. This is the blanket concealed carry reciprocity repeal bill.

[01:45:38] In the House version, they shifted the responsibility of looking at other states and deciding whether or not the requirements are equal or better than ours from the state police to the attorney general.

[01:45:56] And so we need to work that out with them and come to an understanding. And with that, I move that it be agreed to with the recommendation that it's rejected. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 115?

[01:46:16] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? - The clerk will close the roll.

[01:46:35] - Ayes zero, noes 40. - Ayes zero, noes 40, the Senate does not concur. - Senate Bill 122 has passed the House with a substitute. - Senior Senator from Prince William.

[01:46:52] - Thank you, Madam President. With the recommendation it be rejected, I move we concur with the House substitute in speaking to this motion. - Senator has the floor. - Thank you, Madam President. This is the Type 1 diabetes bill. It's cognate, it's likely to go in a conference also in the House, and so we need to hammer out some of the final details so I appreciate a vote of red. With the recommendation that it be rejected the question is shall the Senate concur with a house substitute for Senate bill 122 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the

[01:47:26] senators voted do any senators desire to change their vote the clerk will close the roll. I zero knows 40. I zero knows 40 the Senate does not concur. Senate bill 171 has passed the House with a substitute. The senator from Arlington. Thank you Madam President. Madam President I move that we concur with a house substitute and speaking to that motion. Senator has the floor. Thank you Madam President. The underlying bill deals with the issue of a student being admitted for treatment

[01:48:04] and when a discharge plan is actually prepared for the student a portion of that discharge plan dealing with the need for continued educational services would be shared with the schools this house substitute adds the opt-in for parents so parents would have to opt in to agree to have that portion of the discharge plan shared with the schools and the substitute also articulates that when it is shared with the schools it would only be shared with a mental health professional in the school or a mental health professional in the school

[01:48:44] system uh with those changes madam chair i renew my motion that we concur with the house bill house substitute the question is shall the senate concur with the house substitute for senate bill 171 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change

[01:49:08] their vote. The clerk will close the roll. Ayes 39, no zero, rule 36-1. Ayes 39, no zero, rule 36-1. The Senate concurs. Senate bill 200 has passed the House with an amendment. Senator from Western Henrica. Thank you, Madam President. Madam President, members of the body, with the recommendation that we reject the amendment, I move the amendment and speaking to that motion.

[01:49:44] Senator has the floor. Thank you, Madam President. Madam President, members of the body, there's just some technical fixes we have to make, so we just need to throw it in conference real quick and so with the recommendation that we reject the amendment I move the amendment with the recommendation that it be rejected the question is shall the Senate concur with the House amendment to Senate bill 200 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. I zero, no's 40. I zero, no's 40. The Senate does not

[01:50:23] concur with the House Amendment. Senate Bill 225 has passed the House with a substitute. Senator from Eastern Fairfax. I think Madam President with the recommendation that to be rejected, I move that we can cover the House sub and speak to that motion. Senator has the floor. Thank you Madam President. Ladies gentlemen, the Senate, this is the Clean Energy Innovation Bank bill. The House chose to take an approach of creating a whole new independent authority for this. That was an approach that was rejected by the Senate Finance Committee who thought it would be more cost-effective to do this within the Department of Energy. Those are the main two differences. So we need to

[01:51:01] put this in conference so we can go have a little dialogue. So I'd hope you would oppose the substitute. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 225? All in favor of that motion will record their votes aye. Those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll zero knows 40 I zero knows 40 the Senate does not concur Senate bill 240 has passed the

[01:51:36] house with a substitute the senator from botton tot bata top thank you madam president move that we concur with the house substitute and speaking to that motion senator has the floor thank you

ladies and gentlemen of the Senate the substitute on this this is the bill that it has to do with post-termination non-compete clauses for franchise agreements the house substitute simply adds the understanding that a non-compete can exist in the as a part of the sale if a franchise is sold to a third party or back to the franchise or so I would move that we concur the question is shall the Senate concur with

[01:52:16] the House substitute for Senate bill 240 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the Senate senators voted do any senators desire to change their vote the clerk will close the roll it's 40 no zero eyes 40 no zero the Senate concurs Senate bill 258 has passed a house with a substitute senator from Western Fairfax madam president I move that we concur with the house substitute and speaking to Senator has the floor. Madam President this is the anti-discrimination against

[01:52:55] menopause perimenopause bill and the house also had a similar bill ours really focused on the anti-discrimination part theirs focused more on the accommodations in the workforce part so we've kind of brought these two together it also includes a study for the commissioner of label Labor and Industry and the Commissioner of Health to work together to look at these issues in the workforce and and give some recommendations on how they

[01:53:30] can be accommodated so I think it's a good coming together and I hope it will be accepted thank you the question is shall the Senate concur with the House substitute for Senate bill 258 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to senator your motion was to concur is

[01:53:59] that correct have all the senators voted the set the clerk will close the roll I was 21 knows 19 eyes 21 knows 19 the Senate concurs Senate bill 3 294 pass the house with a substitute the chair recognizes the senator from eastern henrico thank you and

[01:54:38] good morning madam president i move that we concur with the house substitute it only speaking to that motion senator has the floor thank you madam president the only difference is we add a delayed effective date for 2027. the question is shall the senate concur with the house substitute for senate bill 294 all in favor of that motion will record their votes those opposed no are the senators ready to vote have all the senators voted do

[01:55:08] any senators desire to change their vote the clerk will close the role I was 21 nose 19 eyes 21 nose 19 the Senate concurs Senate bill 299 has passed the house with a substitute the junior senator from Loudon thank you madam president I move the Senate concur with the house substitute and speaking to that motion. Senator has the floor. Thank you, Madam President. As a reminder, Senate Bill 299 is my legislation to update the statutory composition of new college

[01:55:47] Institute Board of Directors to better align with the Institute's governance structure with other higher education, education centers across the Commonwealth and to reflect its evolving workforce and regional mission. The House substitute includes a provision to rename the Institute to West Piedmont Higher education center and require the board to develop a comprehensive sustainability and strategic plan and report it to the governor and this general assembly i renew my motion that we concur with the house substitute the question is shall the senate concur with the house substitute for

[01:56:23] senate bill 299 all in favor of that motion will record their votes i those opposed know are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk

will close the roll. Ayes 40, no 0.

[01:56:40] Ayes 40, no 0. The Senate concurs. Senate Bill 302 has passed the House with a substitute. Senator from Isle of White. Thank you, Madam President. I would move that we concur with the House substitute after much trepidation and just an explanation of what it does.

[01:56:58] It strikes from five years for the sunset to one and with that I move that we concur with the House substitute. The question is, shall the Senate concur with the House substitute for Senate Bill 302. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 1. Ayes 39, noes 1. The Senate concurs. Senate Bill 341 is

[01:57:33] passed the House with a substitute. Senator from Northern Fairfax. Thank you Madam President, I move that we concur with the House substitute speaking to the bill. Senator has the floor. Thank you. This is the Charlie's Law, the anti-bullying in our private schools.

[01:57:51] The House and the Senate are almost exactly aligned. There are just a couple of changes. It takes out written requirement for notifying parents. It specifies language around protections for the students who are eyewitnesses.

[01:58:11] and it clarifies that there are prohibitions against hazing, and I move that we pass the bill. The question is, shall the Senate concur with the House substitute for Senate Bill 341?

[01:58:28] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 23, noes 17.

[01:58:45] Ayes 23, noes 17. The Senate concurs. Senate Bill 378 has passed the House with a substitute. Senator from Eastern Fairfax. Thank you, Madam President. The recommendation be rejected.

[01:59:01] I move the committee substitute and speak to the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, the Senate, this is the collective bargaining bill. Obviously some major changes that have to be ironed out between the two caucuses, sorry, the two chambers, mainly home health care workers, higher education, and health insurance and some other things. So I hope we put this in conference so we can work things out.

[01:59:26] With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 378? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote the clerk will close the roll zero knows 40 i zero knows

[01:59:57] 40 the senate does not concur senate bill 386 has passed the house with a substitute with amendment senator from king george um thank you madam president i would move that we concur with the house amendment speaking to that senator has the floor um madam president members this is the pfos bill that deals with the application of biosolids and the thresholds of pfos within those biosolids the only thing that we did in the house and we actually requested that was to remove fish and

[02:00:36] shellfish from the testing because we do that elsewhere and so this was actually a friendly amendment we've made the same amendment to the house counterpart which is going to come up a little bit later and I'd ask you support the house amendment the question is shall the Senate concur with the

House amendments to Senate bill 386 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to

[02:01:11] change their vote the clerk will close the roll as 40 no zero eyes 40 no zero the Senate concurs. Senate bill 391 has passed the House with a substitute. Senator from King George.

[02:01:32] Thank you Madam President. Again, I move that we concur with the House amendment and speaking to that. Senator has the floor. Madam President, members, this was the reorganization of the commission on VASAP and the updating of the bill. What we did was amend it to remove a fiscal impact of nearly 200 000 with regard to a work group and we were able to do it without that expense so that's the only difference uh from how the bill left here i'd ask you support that amendment the question is shall the senate concur with the house substitute to senate bill

[02:02:11] 391. all in favor of that motion will record their votes aye those opposed no are the senators ready to vote. Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. The Senate concurs. Senate Bill 394 has passed the House with a substitute. Senator from Western Fairfax. With the recommendation that it be

[02:02:50] rejected, I move the House substitute and speaking to that. Senator has the floor. This is the AI in schools bill our two bills are pretty different mine directs the Board of Ed and the DOE to come up with some guidelines focusing on student privacy etc and it also sets up a fund an innovation fund for school systems who do not have access to some of these tools while the house version has now been turned into a section one study to just look at how many schools are using

[02:03:28] AI so we've we've got to find a way forward so I hope this will be rejected thank you with the recommendation that it be rejected the question is shall the Senate concur with the house substitute for Senate bill 394 all in favor of that motion will record their votes aye those opposed no are the senators ready vote. Have all the senators voted. Do any senators desire to change their vote? The

[02:03:57] clerk will close the roll. I 0, no's 40. I 0, no's 40. The Senate does not concur. Senate Bill 402 has passed the House with a substitute. Senator from Eastern Fairfax. Thank you, Madam President. I move that we can cover the House sub and speak of the motion. Senator has the floor. Thank you, Madam President. Ladies gentlemen, Senate, this is the bill that has to do with putting a little tighter

[02:04:30] restrictions on how insurance companies treat people's homes and their roofs the bill is less left the Senate prohibited premium increases based on roof age or condition the house took that out they only cover refusal to issue policies cancel or non renewals in other words an insurance company can't cancel your coverage or not non renew you because of how old your roof is that's a problem especially in some areas that are prone to a little more prone to hurricane than other areas the bill also eliminates any kind of protection for roofs that are

[02:05:08] not asphalt shingles so it only applies to asphalt shingle roofs which are obviously the ones that probably most most subject to wearing out and the bill also has some detailed rules about a five-year useful life standard for evaluating whether a roof is at risk of failing or not but all in all the bill is mostly intact. It basically provides consumers more protection against their insurance company from being messed around with because you happen to have a roof that's not super old, but a little old. This is final passage, I think. I just want to make sure everybody understood the bill they're about to vote on. That's basically what it does.

[02:05:50] The question is, shall the Senate concur with the House substitute for Senate Bill 402? All in favor of that motion will record their votes. Aye. Those opposed, no. are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero the senate concurs senate bill 427 has passed the house with a substitute the senior senator from henrico thank you madam president madam president i move that the senate concur with the house

[02:06:26] substitute senator has the floor thank you madam president madam president uh the house substitute conforms the bill to the house campaign by adding a provision that any student taking an african-american history or AP african-american studies course shall be required to complete the end of the year course and pass the course and for the requirements for graduation and I renew my motion the question is shall the Senate concur with the house substitute for Senate bill 427

[02:07:03] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:07:24] Ayes 23, noes 17. Ayes 23, noes 17. The Senate concurs. Senate Bill 159 has passed the House with an amendment. Senator from King George. Thank you, Madam President. I reluctantly move that we concur with the House Amendment in speaking to that.

[02:07:44] Senator has the floor. Madam President, members, this is the bill that I brought to deal with the difficulties that Amerigas was causing so many of our constituents. The House Enactment Clause makes it prospective, and arguably it was prospective anyway.

[02:08:06] so I would move that we concur with the house amendment although I want to state on the floor that if Amerigas continues to be so difficult and unreasonable with their constituents I'll be back next year with the bill that imposes additional things on existing contracts thank you madam president the question is shall the Senate concur with the house amendment to Senate bill 459 all in favor of that motion will record their votes aye those opposed no are the

[02:08:41] senators ready to vote of all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no 0 ayes 40 no 0 the Senate concurs the Senate bill 491 has passed a house with a substitute senator from Western Fairfax with the recommendation that he'd be rejected I move the house substitute and speaking to that senator has the floor this is the

[02:09:18] protection to a public education right-for-all bill and it also dealt with what schools should do if they're if they're dealing with federal law enforcement and protections for children we have some disagreements with the house that we're still working on I think we are very very close around the private right of action and the guidance to schools and with that I hope that we reject this and take a little more time with the recommendation that it be

[02:09:55] rejected the question is shall the Senate concur with the house substitute for Senate bill 491 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll 0 knows 40 I 0 knows 40 the Senate does not concur Senate bill 494 has passed the house with a substitute senator from Charlottesville had a president with a recommendation that we reject the substitute I move the house substitute

[02:10:33] and I'd like to speak to that senator has the floor I'm madam president ladies gentlemen the Senate this is the bill that deal deals with governance of of higher education it contains elements of bills that I introduced and that the gentleman from Eastern Fairfax introduced the House has taken a different approach.

[02:10:48] The good news is that we've had several conversations and we're pretty close to having this family worked out. We just need a few more days. And so I hope that we reject the substitute and get this bill in conference. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 494?

[02:11:08] All in favor of that motion will record their votes aye. Those opposed no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll. A 0, no's 40.

[02:11:23] A 0, no's 40. The Senate does not concur. Senate Bill 543 has passed the House with an amendment. Senator from Eastern Henrico.

[02:11:42] Thank you, Madam President. With the recommendation, excuse me, that the House substitute be rejected, I move the House substitute be agreed to in speaking to that motion senator has the floor thank you so much madam president this is the enforcement bill for the cannabis retail marketplace and as that bill is in conference and continuing to be negotiated we want to ensure that they are in exact alignment as they move forward so we need to get this bill into conference with the recommendation that it be rejected the question is shall the Senate concur with the House amendment to Senate bill 543 all in favor of that motion will record their

[02:12:21] votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 1, noes 39. Ayes 1, noes 39. The Senate does not concur. Senate Bill 565 has passed the House with amendment. Senator from Colonial Heights. Madam

[02:13:00] President, I move that we concur with the House amendment and speaking to that. Senator has the floor. Madam President, Senate Bill 565 is a technical cleanup bill to ensure that eligible claimants receive the benefit of the updated recovery limits under the contractor transaction recovery fund. The House amendment that they added on came at their request of DPOR just to clarify that the board has the authority to address these eligible cases under the new limits that we passed last year. And with that explanation, I ask that we accept the House amendment.

[02:13:33] The question is, shall the Senate concur with the House Amendment to Senate Bill 565? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted.

[02:13:49] Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The Senate concurs. Senate Bill 598 has passed the House with a substitute. Senator from Charlottesville.

[02:14:06] Madam President, I move that we accept the House substitute, and I want to speak to that. Senator has the floor. Madam President, this is the bill that changes the definition within the renewable portfolio standard from renewable energy to the non-carbon producing energy.

[02:14:27] It's designed to incentivize the growth of the nuclear sector and other types of energy that might be non-carbon producing. The House made some technical amendments to get their bill in line with our bill. The amendments are totally acceptable to me, and I hope you'll agree.

[02:14:45] The question is, shall the Senate concur with the House substitute for Senate Bill 598? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[02:15:00] Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The Senate concurs. Senate Bill 613 has passed the House with a substitute.

[02:15:19] Senator from Washington. Thank you, Madam President. I move that the Senate concur with the House substitute and speaking to that motion. Senator has the floor. Has substituted. Senate Bill 613 directs the board to conduct a comprehensive review of the current process for obtaining a real estate license and provide recommendations to improve timeliness and effectiveness.

[02:15:42] And I renew my motion that the Senate concur. The question is, shall the Senate concur with the House substitute for Senate Bill 613? All in favor of that motion will record their votes, aye. Those opposed, no. Are the Senators ready to vote?

[02:15:58] Have all the Senators voted? Do any Senators desire to change the vote? The Clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0.

[02:16:15] The Senate concurs. Senate Bill 637 has passed the House with a substitute. Senator from Northern Fairfax. Thank you, Madam President. I move that we accept the substitute and speaking to the bill.

[02:16:31] Senator has the floor. Thank you, Madam President. This is the update to the Virginia Human Rights Act that Senator Eben carried and passed on to me. This has some technical changes at the request of our DLS attorneys, a technical change from the Senate version that extends the time frame to file a complaint for non-discrimination to two years without bypassing the Attorney General complaint process. It also, at the request of the Attorney General, the substitute amends the definition of employer, taking the threshold from the bill from more than

[02:17:07] five to five or more, which makes all parts of the Human Rights Act consistent now. And with this change, any employer with more than five employees will be prohibited from engaging in all types of discrimination based on the protected characteristics of the law. And I move that we pass the bill. The question is, shall the Senate concur with the House substitute for Senate Bill 637? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to

[02:17:44] change their vote. The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. The Senate concurs. Senate Bill 650 has passed the House with a substitute. The senior senator from Fairfax.

[02:18:05] Thank you, Madam President. I move that we concur with the House substitute and speaking to that. Senator has the floor. Thank you, Madam President. The underlying bill dealt with giving water and sewage utilities the authority to approach the SEC for a discounted water rate for lower income customers. And the House version made it simpler and more clear as to who was eligible. And I move that we concur with the House substitute. The question is, shall the Senate

[02:18:40] concur with the House substitute for Senate Bill 650? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 23, no 17. Ayes 23, no 17.

[02:19:05] The Senate concurs. Senate Bill 673 has passed the House with a substitute. The senator from Mecklenburg. Thank you, Madam President. With the recommendation that the House substitute be rejected. I move the substitute be gratitude in speaking to that motion.

[02:19:28] The senator has the floor. Senate Bill 673 passed this body by a vote of 40 to 0. We need to send this bill to conference because the House substitute took it to another section of code and I just think we need to work on it to try to get some kind of consensus to where it really needs to be and send that to get it to a final form.

[02:19:53] So the motion is to reject thank you with the recommendation that it be rejected the question is shall the Senate concur with the House substitute for Senate bill 673 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll 0 knows 40 I 0 knows 40 the Senate does not concur

[02:20:25] Senate Bill 731 has passed a House with a substitute with amendments Senator from Central Fairfax Thank you Madam President I move that we concur with the House amendment and speaking to that Senator has the floor Thank you Madam President Senate Bill 731 provides that any locality or transportation district commission that uses a private company to provide public transportation service must require the private contractor pay wages and benefits equal to the locality

[02:21:01] or of its own employees. In the House, we made a couple of amendments to delay the enactment of the law itself to align with the work group that's also defined in the bill.

[02:21:17] However, the amendment, what that did is that it reversed that, so we're actually getting the same version back to our chamber, and the House already adopted our version that we overlaid. So with that explanation, I ask that we concur and essentially vote on the same version that we sent to them.

[02:21:42] The question is, shall the Senate concur with the House Amendments to Senate Bill 731? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[02:21:59] The clerk will close the roll. Ayes 21, no's 19. Ayes 21, no's 19, the Senate concurs. Senate Bill 764 has passed the House with Amendment.

[02:22:22] Senator from Franklin County. Thank you, Madam President. With the recommendation that we reject the House Amendment, I move that we concur with it. Would the Senator like to speak to that motion? Yeah, sure. Senator has the floor. Thank you, Madam President. I want to take this conference, Stu.

[02:22:39] We've got some things to work out on the back end. The positioning of this thing was not exactly right where I wanted it. for those reasons I now ask with the recommendation that we reject the House amendment that we concur with it. With the recommendation that it be rejected, the question is, shall the Senate concur with the House amendment to Senate Bill 764? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:23:13] A-0, no's 40. A-0, no's 40. The Senate does not concur. Senate Bill 827 has passed the House with a substitute. The junior senator from Loudoun. Thank you, Madam President.

[02:23:29] With the recommendation that the House substitute be rejected, I move that the substitute be agreed to and speaking to that motion. Senator has the floor. Thank you, Madam President. The House laid the language from House Bill 1487 onto my Senate Bill 827. The two bills are nearly identical, but we will need to take it to conference as we finalize the last touches on the language.

[02:23:50] Therefore with the recommendation that the House substitute be rejected, I renew my motion that substitute be agreed to. Thank you. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 827?

[02:24:05] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. I 0, no. 40. I 0, no. 40. The Senate does not concur. Unfinished Business Senate. The senator from Eastern Fairfax. Madam President, I move the

[02:24:43] Senate bills on the unfinished business on pages 45 through 60. Senate Bill 137 at 312 be placed into the block to accede to requests of committees of conference any senators are removed from block please do so after the clerk's read the number of the bill the question is shall the senate bills on the unfinished business on pages 45 through 60 senate bill 137 through senate bill 812 be placed in the block to accede to the request for committees of conference with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read the number of the bill all in favor of that motion

[02:25:22] we'll say aye those opposed no the ayes have it the motion is agreed to the bills are now before us in the block the clerk will read the number of the bills senate bill 137 senate bill 142

[02:25:39] senate bill 158 senate bill 199 senate bill 253 senate bill 351 senate bill 352 senate bill 364

[02:26:06] Senate Bill 382, Senate Bill 496, Senate Bill 643, Senate Bill 644, Senate Bill 685, Senate Bill 777, Senate Bill 783, Senate Bill 812. The question is, shall the Senate accede to the

[02:26:45] request for committees of conference on the Senate bills in the block? All in favor of that motion will record their votes i those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero the senate has acceded to the request for committees of conference conferees

[02:27:17] on the part of the senate for senate bill 137 is named by the chair of four courts of justice Senators Cerevelle, or Senators Pekarski, Cerevelle, and Sturdivant. On Senate Bill 142, Comfrey's on the part of the Senate, is named by the Chair of the Committee for Courts of Justice, Senators Cerevelle, or Senators McDougall, Carol Foy, and Selene.

[02:27:49] Senate Bill 158, Comfrey's on the part of the Senate, is named by the Chair for Courts of Justice, Senators Cervell are Senators Perry, Deeds, and Stewart. Senate Bill 199, Comfries on the part of the Senate is named by the Chair of Commerce and Labor.

[02:28:11] Senators Deeds are Senators Favola, Deeds, and Peek. On Senate Bill 253, Comfries on the part of the Senate is named by the Chair of Commerce and Labor, Senators Deeds are Senators Lucas, Cervell, and McDougal.

[02:28:29] On Senate Bill 351, Comfrey's on the part of the Senate is named by the Chair for Courts of Justice, Senator Surveill, or Senators Salim, Perry, and McDougal. On Senate Bill 352, Comfrey's on the part of the Senate is named by the Chair for Courts of Justice, Senator Surveill, or Senators Salim, Carol, Foy, and Peek.

[02:28:54] On Senate Bill 364, Comfrey's on the part of the Senate is named by the Chair on General Laws and Technology, are Senator McPike, are Senators Carol Foy, Locke, and French. On Senate Bill 382, Comfrey's on the part of the Senate is named by the chair on Commerce and Labor. Senator Deeds are Senators Cerevelle, Boycegoat, and Peake. On Senate Bill 496, Comfrey's on the part of the

[02:29:29] Senate is named by the chair for Courts of Justice, Senators Cerevelle, are Senators Marsden, Cerevelle, and Obenshain. Senate Bill 643. Comfrey's on the part of the Senate is named by the Chair for Courts of Justice, Senator Cerevelle, or Senators Cerevelle, Senevison, and Stewart.

[02:29:52] Comfrey's on the part of the Senate on 644 is named by the Chair of Commerce and Labor, Senator Deeds, or Senators Cerevelle, McPike, and Stewart. Senate Bill 685 is named by the Chair of Education and Health, Senator Favola, or Senators Prakarski, Favola, and Craig.

[02:30:16] On Senate Bill 777, Comfries on part of the Senate is named by the Chair of Commerce and Labor, Senator Deeds, or Senators Rouse, Bagby, and Stanley.

[02:30:36] On Senate Bill 783, Comfrey's on the part of the Senate is named by the Chair for Courts of Justice, Senator Surveill, or Senators Salim, Perry, and Sturdivant. On Senate Bill 812, Comfrey's on the part of the Senate is named by the Chair for Courts of Justice, Senator Surveill, or Senators Boisco, Perry, and Stanley.

[02:31:04] We have a replacement on House Bill 505. Comfrey's on the part of the Senate is named by the Chair of Privileges and Elections.

[02:31:19] are Senators Rouse, Perry, and Bennett Parker.

[02:31:25] Coming to page 62, House Bills with Governor's Recommendation.

[02:32:03] House Bill 168. Senator from Eastern Henrico. Thank you, Madam President. I move to amend the bill in accordance with the recommendations of the Governor, speaking to that motion.

[02:32:24] Senator has the floor. Thank you so much, Madam President. As you'll know, the governor's recommendation just clarifies on line three to add districts and also to ensure that we add an emergency clause for this legislation. Madam President, this is the same amendment that we saw previously here in this body, and it puts the House version now in alignment.

[02:32:47] The question is, shall the bill be amended in accordance with the recommendation of the governor? All in favor of amending the bill, House Bill 168 in accordance with the recommendation of the governor will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 22 nose 18. ayes 22 nose 18. the senate has agreed to amend the bill in accordance with the

[02:33:21] recommendation of the governor post bill 187. senator from eastern henrico thank you madam president i move to amend the bill in accordance with the recommendation of the governor and speaking to that motion senator has the floor thank you madam president once again we are adding the emergency clause to this legislation and putting it into alignment with the senate version that we've passed out of this

body the question is shall house bill 187 be amended in accordance with the recommendation of the governor all in favor of amending the bill in accordance with

[02:33:58] the recommendation of the governor will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 22 noes 18. ayes 22 noes 18 the senate has agreed to amend the bill in accordance with the recommendation of the governor uncontested calendar house bills on third reading

[02:34:33] senator from eastern fairfax madam president i'm over all the house bills on third reading on the the uncontested counter on pages 63 through 88 house bill 430 through 150 i'm sorry through 1516 we advance their final passage in a block after the adoption any amendments thereto that any senator desire to remove bill from the block please do so after the clerk has read the number of the bill the question is shall the house bills on the uncontested calendar third reading pages 63 through 88 house bill 430 through house bill 1516 now be placed upon their final passage in

[02:35:11] a block after the adoption of any amendments thereto, with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read the number of the bill. All in favor of that motion will say aye. Those opposed, no.

[02:35:28] The ayes have it. The motion is agreed to. The bills are now before us in the block. The clerk will read the number of the bills. Host Bill 430. I request the HB 430 be removed from the block.

[02:35:44] objection. HB 430 is out of the block. House Bill 32 reported from the Committee on Rehabilitation and Social Services. House Bill 52 reported from the Committee on Finance and Appropriations. House Bill 140 reported from the Committee on Finance and Appropriations with a substitute. Senator from Hampton.

[02:36:15] Thank You Madam President. I move that the substitute be agreed to. The question is shall the substitute from the Committee on Finance and Appropriations be agree to all in favor of that motion will say aye those opposed no the ayes have it the substitute is agreed to has bill 196 reported from the committee on finance and appropriations with the substitute senator from portsmouth thank you madam president madam president i move that the committee substitute for finance and appropriation be agreed to the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of that motion will say

[02:36:50] aye. Those opposed, no. The ayes have it. The substitute is agreed to. Has Bill 200 reported from the Committee on Finance and Appropriations. Has Bill 224 reported from the Committee for Courts of Justice. Has Bill 231 reported from the Committee on Rules with a substitute and from the Committee on Finance and Appropriations. Senator Farhampton. Madam President, I move that the substitute be agreed to. The question is, shall the substitute from the Committee on Rules be agreed to. All in favor of that motion will say aye. Those opposed, no. The ayes have it. The

[02:37:27] substitute is agreed to. House Bill 306 reported from the Committee for Courts of Justice. House Bill 307 reported from the Committee for Courts of Justice. House Bill 424 reported from the Committee on Finance and Appropriations. House Bill 425 reported from the Committee on Finance and appropriations with a substitute. Senator from Portsmouth. Thank you, Madam President. Madam President, I move that the committee substitute be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say

[02:38:03] aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. As bill 510 reported from the Committee for Courts of Justice. As bill 528 reported from the Committee for Courts of Justice. Has Bill 555 reported from the Committee for Courts of Justice. Has Bill 556 reported from the Committee for Courts of Justice. Has Bill 656 reported from the Committee on Education and Health with the substitute and from the Committee on Finance and Appropriations. Senator from Arlington. Thank you, Madam President. Madam President, I move that the substitute from Education and Health

[02:38:42] be agreed to. The question is, shall the substitute from the Committee on education and health be agreed to. All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. As bill 717 reported from the Committee on Finance and Appropriations.

[02:38:59] As bill 727 reported for the Committee on Rehabilitation and Social Services. As bill 768 reported for the Committee for Courts of Justice with amendments. Senator from Eastern Fairfax. Thank Madam President. I move the committee amendments. The question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Has bill 815 reported from the Committee on Finance and Appropriations. Has bill 830 reported

[02:39:37] from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations. Senator from Charlottesville. Madam President, I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[02:39:54] All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 838, reported from the Committee on Finance and Appropriations. House Bill 934, reported from the Committee on Rehabilitation and Social Services with the substitute and from the Committee on Finance and Appropriations with a substitute. Senator from Western Henrique. Madam President, I move that we reject the substitute from rehab and social services. With the recommendation

[02:40:29] that we reject the substitute from rehab and social services, I've moved the substitute. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Rehabilitation and Social Services be agreed to. All in favor of the motion will say aye. Those opposed, no. No. The no's have it. The substitute is rejected. Senator from Henrico. Thank you, Madam President. Madam President, members of body, I move the we agree to the substitute from the Committee on Finance. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that

[02:41:06] motion will say aye. Those opposed, no. Aye. The weak eyes have it. The substitute is agreed to. House Bill 1006, reported from the Committee on Finance and Appropriations.

[02:41:24] House Bill 1007. Who is speaking? Senator from Hampton. Could House Bill 1006 go by for the day? Without objection, House Bill 1006 is out of the block and by for the day.

[02:41:43] House Bill 1007, reported from the Committee on Finance and Appropriations and from the Committee on Commerce and Labor with the substitute. Senator from Charlottesville.

[02:42:00] Madam Chair, I agree that, or I move that the amendment, that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the

Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[02:42:21] As Bill 1019, reported from the Committee on Finance and Appropriations. Madam President. Senator from Prince William. Thank you, Madam President. Madam President, may HB 1019 please come out of the block. Thank you. House Bill 1019 is out of the block. House Bill 1030 reported from the Committee on Rehabilitation and Social Services with the substitute. Senator from Henrico.

[02:42:52] Thank you, Madam President. Madam President, I move the substitute. The question is, shall the substitute from the Committee on Rehabilitation and Social Services be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[02:43:08] House Bill 1073, reported from the Committee on Finance and Appropriations. House Bill 1103, reported from the Committee on Finance and Appropriations. House Bill 1124, reported from the Committee on Finance and Appropriations. House Bill 1189, reported from the Committee on General Laws and Technology with a substitute, and from the Committee on Finance and Appropriations.

[02:43:36] senior senator from prince william thank you madame president move the substitute be agreed to the question is shall the substitute from the committee on general laws and technology be agreed to all in favor of the motion will say aye those opposed no the eyes have it the substitute is agreed to has bill 1217 reported from the committee for courts of justice with amendments senator from eastern fairfax move the committee amendments the question is shall the amendments from the committee for courts of justice be agreed to all in favor of the motion will say aye

[02:44:12] those opposed no the ayes have it the amendments are agreed to has bill 1231 reported from the committee on finance and appropriations has bill 1241 reported from the committee on finance and appropriations has bill 1284 reported from the committee on finance and appropriations House Bill 1313, reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations with a substitute.

[02:44:47] Senator from Charlottesville. Madam President, with the recommendation that it be rejected, I move the adoption of the substitute from the Committee on Commerce and Labor. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[02:45:04] All in favor of the motion, we'll say aye. Those opposed, no. No. The one serious no has it. The substitute is not agreed to. Senator from Charlottesville. Madam Chair, I now move the adoption of the substitute from the Committee on Finance and Appropriations.

[02:45:24] The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 1336, reported from the Committee on Rehabilitation and Social Services.

[02:45:44] House Bill 1339, reported from the Committee on Finance and Appropriations. House Bill 1353, reported from the Committee on Finance and Education and Health with the substitute and from the Committee on Finance and Appropriations.

[02:46:00] Senator from Arlington. Madam President, I move that the substitute from Education and Health be agreed to. the question is shall the substitute from the committee on education and health be agreed to all in favor of the motion will say aye those opposed no the ayes have it the substitute is agreed to has bill 1366 reported from the committee on rehabilitation and social services with a substitute and from the committee on finance and appropriations with a substitute senator from western henrico

[02:46:33] Thank you, Madam President. Madam President, with the recommendation that we reject the rehab and social services substitute, I move that we agree to the substitute. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Rehabilitation and Social Services be agreed to?

[02:46:50] All in favor of the motion will say aye. Those opposed, no. No. The no's have it. The substitute is not agreed to. Senator from Henrico. Thank you, Madam President. Madam President, I move that we agree to the substitute from the Committee of Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to?

[02:47:09] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 1370, reported from the Committee on Rehabilitation and Social Services with the substitute. Senator from Western Henrico.

[02:47:25] Thank you, Madam President. Madam President, members of the body, I move that we agree to the Rehab and Social Services substitute. The question is, shall the substitute from the Committee on Rehabilitation and Social Services be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[02:47:43] House Bill 1382, reported from the Committee for Courts of Justice with an amendment. The Senior Senator from Prince William. Madam President, I move the amendments be agreed to. The question is shall the amendment from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye.

[02:47:59] Those opposed, no. The ayes have it. The amendment is agreed to. As bill 1386 reported from the Committee on Finance and Appropriations. As bill 1391 reported from the Committee on Finance and Appropriations.

[02:48:16] As bill 1406 reported from the Committee for Courts of Justice. bill 1418 reported from the committee on finance and appropriations as bill 1443 reported from the committee on agriculture conservation and natural resources with a substitute and from the committee on finance and appropriations the senator from Arlington thank you madam president madam president I move that the substitute be agreed to the question is shall the substitute from the committee on agriculture conservation and natural resources be agreed to. All in favor of the motion will say aye. Those opposed

[02:48:55] no. The ayes have it. The substitute is agreed to. House Bill 1446 reported for the Committee on Finance and Appropriations. House Bill 1490 reported from the Committee on Rehabilitation and Social Services with a substitute and from the Committee on Finance and Appropriations with a substitute. Senator from Western Henrico. Thank you, Madam President. Madam President, members of the with the recommendation that we reject the substitute from rehabilitation and social services I move that we adopt the amendment a substitute with the recommendation that it be rejected the question is shall the substitute from

[02:49:31] the Committee on Rehabilitation and Social Services be agreed to all in favor of that motion will say aye those opposed no no the no's have it the substitute is rejected senator from Henrico thank you my present man present members of the body, I move that we adopt the substitute from the Committee on Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 1510, reported from the Committee for Courts

[02:50:10] of Justice. House Bill 1513, reported from the Committee for Courts of Justice. House Bill 1516, reported from the Committee for Courts of Justice. The question is, shall the House bills in the block pass, that is, all bills except for House Bill 430 on page 63, House Bill 1006 on page 74, and House Bill 1019 on page 75. All in favor of that motion will record their votes aye. Those opposed, no. Are the senators

[02:50:49] ready to vote. Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. The bills in the block pass. On page 63, returning to House Bill 430.

[02:51:13] Thank you, Madam President. Senator from, junior senator from Loudoun. Thank you, Madam President. With the recommendation that the substitute from the education and Health be rejected, I move that the substitute be agreed to.

[02:51:36] With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion will say aye. Those opposed, no. No. The noes have it. The substitute is not agreed to. Senator from Loudoun.

[02:51:52] Thank you, Madam President. I now move that the reading of the floor amendment be waived. The question is, shall the reading of the floor amendment be waived? in favor of that motion will say aye those opposed no i'm sorry let me slow it down all those in favor of the motion will say aye aye those opposed no the eyes have it the reading is waived senator from loudon thank you madam president i know move that the floor amendment be agreed to and speaking to that motion senator has the floor thank you madam president the amendment adds an additional enactment clause recording that upon reconstitution of the new college institute as the west speed

[02:52:31] Mount Higher Education Center. The board will develop a comprehensive sustainability and strategic plan and report it to the governor and the chairs of Senate Finance and House Appropriation Committees by August 1, 2027, ensuring accountability and a clear path forward for the center's long-term success. I now renew my motion that the amendment be agreed to. The question is, shall the floor amendment be agreed to. All in favor of that motion, we'll say aye. Aye. Those opposed, no.

[02:53:05] The ayes have it. The floor amendment is agreed to. Senator from Loudoun. Thank you, Madam President. I now move that the bill passed in speaking to the bill. Senator has the floor. Thank you, Madam President. House Bill 430 is a cognate to my Senate Bill 299 that we just passed that renames and updates the statutory composition of the new College Institute Board of Directors to better align the institute's governance structure with other higher education centers across our commonwealth and to reflect its evolving workforce and regional mission.

[02:53:36] The floor amendment to HB 430 gets us aligned with my bill and helps us avoid a conference. I renew my motion that the bill pass. Thank you. The question is, shall House Bill 430 pass? All in favor of that motion will record their votes.

[02:53:54] those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 40

[02:54:15] no zero eyes 40 no zero house bill 430 passes has bill 1019 on page 75 senator from Arlington I yield my time to the senator the junior senator from Prince

[02:54:54] william county did you house bill 1019 was removed from the block yes senator did you want to speak to it we removed it from the block and now it is uh the question of passage okay give me a moment can we take it by temporarily i'll come back to the without objection thank you house bill 1019

[02:55:21] will go by temporarily regular calendar house bills on third reading house bill 507 a bill relating to permit requirements for data centers emission limits for certain engineer generator sets reported from the committee on agriculture conservation and natural resources the senior senator from Fairfax thank you madam

[02:56:01] president I move that the bill passed and speaking to that motion senator has the floor thank you madam president this bill prohibits the Department of Environmental Quality from issuing an air permit for any application submitted for a data center on or after July 1st, 2026, unless the emission limit for each engine generator defined in the bill established by such permit is equal to or less than the emissions achieved by a tier four equivalent engine generator.

[02:56:28] And I renew my motion that the bill pass. - The question is, shall House Bill 507 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote?

[02:56:48] The clerk will close the roll. Ayes 25, noes 15. Ayes 25, noes 15. House Bill 507 passes. House Bill 630, a bill relating to elections, conduct of election, rank choice voting, locally elected offices report.

[02:57:16] Reported from the Committee on Privileges and Elections. The junior senator from Virginia Beach. Thank you, Madam President. I move the bill pass and speaking to that motion. Senator has the floor. Thank you, Madam President. HB 630 is almost identical to the Senator from Western Henrico.

[02:57:34] Bill deals with ranked choice voting. It is permissive and it also just removes the sunset clause. With that, I move it pass. The question is, shall House Bill 630 pass? All in favor of that motion will record their votes aye.

[02:57:49] Those opposed, no. Are the senators ready to vote? Have all the Senators voted. Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 21, Nose 19.

[02:58:05] Ayes 21, Nose 19. House Bill 630 passes. House Bill 639, a bill relating to elections, administration, acceptance of certain gifts, and funding approval required.

[02:58:22] Reported from the Committee on Privileges and Elections. The Junior Senator from Virginia Beach. Thank you, Madam President. I move the bill pass. I'm speaking to that motion. Senator has the floor. Thank you, Madam President. The bill just removes the prohibition on accepting property and services provided by a private individual or non-governmental entity for the purpose of funding voter education.

[02:58:42] One of the conditions was also the acceptance of money or grants of greater than $1,000 given by a private individual or non-governmental entity for the purpose of funding voter education and outreach programs, voter registration programs, any other expense incurred in the conduct of the

election's approval of such funding by two-thirds majority of all members or the state board of elections or the local governing body with that a move passage the question is shall house bill 639 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire

[02:59:19] to change their vote the clerk will close the roll ayes 21 noes 19 ayes 21 noes 19 house bill 639 passes as bill 640 a bill relating to elections challenges to voter or voters registration reported from the committee on privileges and elections the junior senator from Virginia Beach thank you my president I move the bill passes speaking to that motion senator has the floor thank you matter president this bill just eliminates the process by which any voter could challenge in a polling place on the day of an election the right of any other voter to cast a

[02:59:57] ballot. The bill also eliminates the process by which any three voters could challenge a voter registration before the general registrar. Such challenges may still be made by filing a petition with the circuit court of the county or city where the voter is registered. With that, I move the passage of the bill.

[03:00:12] The question is, shall House Bill 640 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 21 nose 19 eyes 21 nose 19 house bill 640 passes has bill 675 a bill relating to protection of employees coercion or threat based on immigration status civil penalty reported from the committee

[03:00:52] for courts of justice with a substitute and there is a floor amendment and from the committee on Finance and Appropriations. Senator from Eastern Fairfax. Madam President, I ask that the bill go by temporarily. Without objection, House Bill 675 will go by temporarily. House Bill 814, a bill relating to establishment of Virginia African-American, Asian-American, Pacific Islander, Latino, and Indigenous Education Advisory Board report reported from the Committee on Education

[03:01:28] and Health with a substitute and from the Committee on Finance and Appropriations. Senator from Eastern Fairfax. Madam President, I would ask that this bill be recommitted to the Committee on Education and Health.

[03:01:52] The question is, shall House Bill 814 be recommitted to the Committee on Education and Health? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it.

[03:02:07] bill 814 is recommitted to the committee on education and health as bill 896 a bill relayed to substantial risk orders substantial risk order training program established annual report reported from the committee on finance and appropriations with a substitute senator from eastern fairfax thank madam president i would move the substitute from the committee

[03:02:46] on finance and appropriations the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of that motion will say aye those opposed no the eyes have it the substitute is agreed to senator from fairfax uh thank you madam president move the bill pass and speed that motion senator has the floor thank you madam president uh house bill 896 is the um substantial risk order red flag order bill i believe the bill as before you is now identical to the bill from the senator from charlott'sville um without any additional changes which we passed out of here I think on a party line vote 2119 I'd hope we could pass this one

[03:03:26] as well the question is shall house bill 896 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 knows 19 ayes 21 knows 19 house Bill 896 passes. House Bill 916, a bill relating to concealed handgun permit

[03:04:03] demonstrated competence reported from the Committee for Courts of Justice with amendments and from the Committee on Finance and Appropriations with a substitute. Senator from Eastern Fairfax. Thank You Madam President. The, you know, I'd move the Committee on Courts of Justice substitute. Does the Senator wish to reject those amendments? Hold on a second. Oh, there's two. I'm sorry. With the recommendation to be rejected, I move the substitute from the Committee on Courts of Justice. With the

[03:04:42] recommendation that they... The amendments. The amendments. With the recommendation that they be rejected, the question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Those opposed, no. The no's have it. The amendments are not agreed to. Senator from Fairfax. Thank you, Madam President. I move the committee substitute from the committee on finance and appropriations the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of that motion we'll say aye aye those opposed no the eyes have it the substitute is agreed to senator from

[03:05:20] Fairfax thank you Madam President move the bill passed and speak the motion senator has the floor thank you Madam President House Bill 916 simply takes the name of two different organizations out of the code for doing concealed handgun permit classes and the there are many different organizations that do these classes I can dig up a whole list if anybody has concerns I know concerns are raised about it I was given a whole list that's basically what the bill does it is not a de facto ban on concealed handgun permits at all and hope we get

[03:05:53] past the bill the senator from Rockingham madam president or I speak to the bill. Senator has the floor. Madam President, I appreciate the presentation on this bill. However, I lack the confidence that my friend the senator from Eastern Fairfax has with respect to the impact of this bill. If this bill was not intended to adversely affect the ability of Virginians to get a concealed carry permit, we wouldn't be messing

[03:06:28] with the language in this I the National Rifle Association the American Concealed Carry Association belong provided classes in Virginia and across the country there's been no substantive concern articulated with respect to those and yet we're just taking them out and we heard in Finance Committee that that the necessity of certifying these was going to add a burden on the Department of Criminal Justice Services one which the Department of Criminal

[03:07:03] Justice Services indicated was going to require it to hire two or three I forget the number of people to actually participate review evaluate and certify these classes I this strikes me as just the type of thing that happens in Washington you know we've got a law that is supposed to extend grace to people who have lost their gun rights as a result of misdemeanors federal misdemeanors or misdemeanors in states or criminal conduct in through the

[03:07:40] federal system yet the federal government has never gotten around funding that process or the office that is supposed to certify and help people restore their Second Amendment rights so there are a lot of people out there who you know take little comfort from the fact that there are provisions in federal law

for the restoration of those rights I I don't know why we would take these names out the explanation that I heard was no organization lasts forever the

[03:08:14] NRA may disappear the National Concealed Carry Association may disappear we have no indication that that's going to happen if it does we can take them out but this makes absolutely no sense unless there is an object to undermine the ability of Virginians to get their concealed carry permits and I heard in finance that that that there was not money and maybe a center from Eastern Fairfax or a center from Portsmouth can I can give me and other Virginians across

[03:08:52] the Commonwealth comfort that those funds exist that the Department of Criminal Justice Services is receded from its position that no funds or personnel is going to be required but I'm sorry I just don't trust that that's That's going to be the impact here in this situation.

[03:09:10] I think that irrespective of what's in the budget, this doesn't make sense unless there is some desire to undermine the ability of law-abiding citizens in Virginia. People who need a concealed carry permit, people who walk into dangerous situations on a daily basis, women who have gotten a concealed carry permit because of an abusive partner or spouse. These people need this protection that this affords, and I would hope that we'd

[03:09:42] vote against this. Senator from Northern Fairfax. Thank you, Madam President. I stand in support of the bill and just wanted to clarify. The Senator has the floor. Madam President, you can do a quick Google search and find just a ton of classes that are available online, looking at them online, in-person classes. This bill simply removes the name of the organizations but it clarifies that the classes are still happening. So we do not typically put names of organizations. I've had

[03:10:22] bills changed because I had names of organizations in the past. We simply are taking the names of the organizations out. The organizations exist and I move that we pass the bill. The question is Shall House Bill 916 pass?

[03:10:42] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19.

[03:10:58] Ayes 21, noes 19. House Bill 916 passes. House Bill 969. A bill to direct the Department of Criminal Justice Services to convene a work group to develop policy and legislative recommendations to address firearm violence reported from the Committee for Courts of Justice with a substitute and from the Committee on Finance and Appropriations.

[03:11:31] Senator from Eastern Fairfax. Thank you, Madam President. I move the substitute from the Committee of Courts of Justice. The question is shall the substitute from the committee for courts of justice be agreed to all in favor of that motion will say aye Those opposed no the ayes have it the substitute is agreed to senator from Fairfax Thank you madam president move the bill passes to be that motion senator has the floor Thank you madam president. This bill is similar to Senate bill 634 from the senator from eastern Prince William County But this one's a little bit different

[03:12:04] This one directs the Department of Criminal Justice Services to convene a workgroup to develop policy and legislative recommendations to address firearm violence and report back to us by October the 1st of this year. The bill came out of both committees on party line votes.

[03:12:22] Hope we can adopt this bill to get some recommendations from our criminal justice professionals about how we can reduce firearm violence, which I think everybody here agrees should be reduced. The question is, shall House Bill 969 pass?

[03:12:39] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[03:12:56] Ayes 21, noes 19. Ayes 21, noes 19. House Bill 969 passes. House Bill 1013, a bill relating to Marine Resources Commission, Chesapeake Bay Diamondback Terrapin protection areas use of bycatch reduction devices on crab traps penalty reported from the committee on agriculture conservation and natural resources the senior senator from Fairfax thank you madam president I move that the bill passed and speaking

[03:13:32] to the measure senator has the floor thank you madam president this bill requires the marine resources Commission in collaboration with the crab Management Advisory Committee and the Virginia Institute of Marine Science to develop and establish by December 1, 2027, diamondback turtle protection areas in those portions of the Chesapeake Bay and its tributaries where interactions may occur between diamondback terrapins and any nets, traps, pots or other fishing devices or gear. The bill also directs the Commission to require by regulation bycatch reduction devices and these are small rectangular devices put on the

[03:14:09] traps to allow the crabs in but keep the turtles out within it and to put one of these in each crab trap within the diamondback terrapin protection area established by the Commission and I reiterate my motion that the bill pass senator from King George speaking to the bill madam president senator has the floor. Madam President, this has been colloquially referred to as the turtle bill. And I call it the tofu bill. Because if you like that tofu fish that's in the back room on Fridays, then vote

[03:14:49] for this bill. Because that's the only kind of seafood you're going to be able to get if this bill passes. And it's interesting, if you read this bill, you would think that it said we're going to have to put just the plastic things on recreational crab pots which keep the big crabs from going in because you want to keep the the turtles out. They've been trying for years to get VMRC to do this. VMRC and VIMS are the experts in this and they have declined to do it time and

[03:15:23] time again. So now there's a bill to order them to do it but read the bill. Here's what the bill really says, they are going to exclude entire areas of the Chesapeake Bay from the ability to fish, crab, etc. This says nets, pots, traps, so you can't set a net to catch fish in an area where there may be diamondback terrapins. I love turtles too. Although it is somewhat ironic to me that we passed a bill yesterday that allows you to kill a 200

[03:15:58] pound mammal if it eats your flour but now we're gonna now we're gonna shut down our seafood industry over a terrapin you know madam president I've looked at this bill and it worries me a great deal because of this in when it comes to fisheries management anytime you set a precedent with regard to management a court of law can then enforce that and so they've said oh gosh it's just in recreational pots but if we're forced to put these in recreational

[03:16:37] pots and then entire areas of the Chesapeake Bay and it actually mandates any Creek that's only 150 feet wide so you're looking at parts of Hampton Norfolk Portsmouth the whole area I represent

because we've got the the waterside area much of that will be off limits now to fishing and crabbing potentially ealing maybe even clamming and oystering I don't know if you're raising them in cages there could be potentially impact there I think you're

[03:17:14] gonna have to make a hard choice I really think we're just gonna have to make a hard choice and you're gonna have to decide do I want to eat Virginia seafood or do I not because if this is implemented in this fashion then there will be a group that'll come along and they'll file a lawsuit and they'll say judge. The General Assembly said, "You've got to do this." And if that is an effective management strategy, then they should be placed everywhere. And that's my big concern, because

[03:17:47] when you set a precedent in these areas, they can be enforced otherwise. I think we need to let VMRC do their job, and VIMS, they're very good at their job. They've been asked to do this year after year, and they've declined to do it because it's not necessary. It may make you feel good, but it's just not necessary. We need to let the experts that we have hired and appointed make these decisions. You know, when Governor Northam was here, we sent the last thing that we did to VMRC, and that was Menhaden. And all of us swore we were never

[03:18:25] going to do this again. And so now we're bringing back all aspects of fishing to the General Assembly to manage when we thought we were going to send everything to VMRC and let them do what they do best. Please vote no on this bill.

[03:18:42] Senator. Thank you, Madam President. Senior Senator from Fairfax. Speak to the measure. Senator has the floor. Thank you very much. One of the main concerns here is like with any bill that we pass here, and we put certain limits on certain parts of any activity, there's always the fear that it's going to go way too far it's going to get get other levels of involvement like commercial crabbers and that's not the intent here the intent here is to deal with the recreational crabbers because the the the turtle population is being significantly depleted I've seen presentations by the scientists man

[03:19:18] president with gentlemen I for a question when I when I finish I'd be glad to yield for a question by the the scientists who feel there's you know There's very little ability of these devices to exclude crabs. Perhaps occasionally with a really, really extra large one, they could get caught in it like a turtle.

[03:19:37] But the issue is we're losing thousands and thousands of these bay creatures to these traps. Nobody wants to go after commercial fishermen. There's not a threat to the fact that you won't be able to eat crabs in the future. But the issue here is it's very difficult for VMRC, for DWR, any of them, Because the boards represent so many different interests.

[03:19:58] It's hard for them to come to any kind of consensus around how to do many, many things in the wildlife world, in the fisheries world. And so the issues end up coming back to us.

[03:20:14] We're losing huge numbers of these turtles. I've seen presentations by the scientists that these things work. They've done research on it. It's a significant improvement to the Bay's ecology to protect these turtles and fear that it's going to go on and affect our watermen and their ability to commercially collect crabs.

[03:20:36] It just does not apply to them. And I think we need to pass this bill and we need to make sure that we protect these turtles. And if it turns out that there are problems created by all of this, Madam President, I think we can come back with another bill. But at this point in time, this is the best effort we

can come up with to protect these creatures the harm created by getting trapped in these pots and drowning thank you madam president senator from prince william madam president could this go by for the day without objection house bill 1013

[03:21:07] goes by for the day post bill 1015 a bill relating to possession or transportation of firearms firearms ammunition, stun weapons or explosives or carrying of concealed weapons by persons convicted of a misdemeanor hate crime prohibited penalty reported from the Committee for Courts of

[03:21:42] Justice with a substitute and from the Committee on Finance and Appropriations. Senator from Hampton. Thank you, Madam President. Prior to adoption of the substitute, could House Bill 1015 go by for the day? Without objection, House Bill 1015 goes by for the day.

[03:22:00] Madam President. Senator from Fairfax. Thank you, Madam President. I would ask that we stand at recess for 15 minutes.

[03:22:06] Without objection, the Senate will be in recess for 15 minutes.

[03:40:41] On page 94, House Bill 1072, a bill relating to local authority to test and monitor the The land appreciation of application of sewage sludge within its political boundaries, reported from the Committee on Finance and Appropriations.

[03:41:05] The senior senator from Fairfax. Thank you, Madam President. We move that the bill pass, and speaking to the measure. Senator has the floor. Thank you, Madam President.

[03:41:20] This bill allows for a locality to test and monitor for perflora alkyl and polyflora all kill substances commonly known as PFAS as defined in relevant law of the land application of sewer sludge within its political boundaries using an applicable test method established by the US Environmental Protection Agency the bill prohibits expenses from testing and monitoring from being eligible for reimbursement from the sludge management fund and with that I reiterate my motion that the bill this testing bill pass the question is shall House bill 1072

[03:41:58] pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 23 no 17 ayes 23 no 17 house bill 1072 passes has bill 1096 a bill relating to substantial risk order reporting systems established reported from the

[03:42:38] Committee on Finance and Appropriations. Senator from Eastern Fairfax. Thank you, Madam President. I'd move the bill pass and speak of the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, House Bill 1096 is a new bill we haven't seen before. Basically requires the Virginia State Police to establish an SRO or red flag reporting system for purposes of tracking and reporting substantial risk orders, what we also call red flag orders, and publish reports on a monthly basis and make them available to the public online. We have identifying information redacted right now if you want to get this information basically you have to send an email to the Virginia State Police and then they

[03:43:18] have to dig it up and respond this would all just put it up on the internet so everybody can see it live every month or so saves them some time and effort and energy and gets the information out the public hope we could pass it the question is shall HB 1096 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 21

[03:43:53] no 19 eyes 21 nose 19 house bill 1096 passes I spill 1266 a bill to direct the secretary of natural and historic resources to publish an updated version of the environmental justice in the in the permitting process guidance memo to consider how to assess the cumulative impacts of certain permits reported from the committee on agriculture conservation and natural resources with the substitute the senior senator from Fairfax thank you madam president I

[03:44:30] move that the substitutes be agreed to the question is shall the substitute from the committee on agriculture conservation and natural resources be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from fairfax thank you madam president the substitute now directs the department of environmental quality to publish an updated version of the environmental justice in the permitting process guidance memo for public comment it requires the updated memo to consider how to assess the cumulative impacts of the types of permits covered in the guidance memo and outreach

[03:45:04] strategies to engage communities impacted by any such permit. The bill requires the public comment period process to include a public town hall held no later than July 31, 2026, and requires the department to respond to the public comments by October 31, 2026. The department is required to issue the final guidance memo by December 31, 2026, and I renew my motion that the bill pass.

[03:45:30] The question is, "Shall House Bill 1266 pass? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote?"

[03:45:47] The Clerk will close the roll. Ayes 22, Noes 18. House Bill 1266 passes. House Bill 1365, a bill relating to fishing license requirements, exemptions, free fishing days.

[03:46:09] Reported from the Committee on Agriculture, Conservation, and Natural Resources. Senator from Fairfax. Thank you, Madam President. I move that the bill passed. And speaking to the measure... Senator has the floor. Thank you, Madam President. This bill increases from three to six days the maximum number of free fishing days during which a person is allowed to fish without a fishing license.

[03:46:28] that the Board of Wildlife Resources may designate for inland waters in the Commonwealth and the Commission of Marine Resources may designate for saltwater recreational fishing in the Commonwealth. A license currently costs $19, and this bill allows for a few extra days of free fishing so that more people may find an opportunity to take an interest in fishing.

[03:46:47] And I think what the purpose of the bill here is to get people back on the water, get people back fishing again this way with certainly designated days when it's free, hoping that they'll buy a license and renew the interest in fishing here in the Commonwealth. And I reiterate my motion that the bill pass.

[03:47:05] The question is, shall House Bill 1365 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[03:47:29] Ayes 39, noes 1. Ayes 39, noes 1. House Bill 1365 passes. House Bill 1392, a bill relating to powers and duties for operation of local and regional correctional facilities and courthouse security, attorney access to courthouses and communication and visitation with incarcerated clients penalty, reported from the Committee for Courts of Justice with a substitute and from the Committee on Finance and Appropriation with amendments.

[03:48:06] The Senator from Eastern Fairfax. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye.

[03:48:22] Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Fairfax. Thank you, Madam President. I move the bill. Oh, there's more committee amendments. Sorry, I move the technical amendments from the Committee on Finance and Appropriations. The question is, shall the amendments from the Committee on Finance and Appropriations be agreed to?

[03:48:41] All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Senator from Fairfax. Thank you, Madam President. I move the bill to pass and speak of the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate House Bill 1392 is a series of three different bills, which were basically, we made identical to Senate Bill 83 by Senator Salim that passed, sorry, City of Fairfax, Central Fairfax County that passed 26 to 13.

[03:49:11] This piece of the bill has to do with access to the courthouse. It provides that if a sheriff provides unscreened access to the courthouse, the courthouse employees or law enforcement officers, they also have to give attorneys access if they display a bar card.

[03:49:30] And it also creates a new offense if an attorney tries to use an expired bar card to enter a courthouse without getting screened. It also requires telephonic, electronic, and web-based communication system for prisoners. in a sheriff or jail I'm sorry in a in a local regional correctional facility so that attorneys can actually meet with them and talk to them prepare their cases again the underlying the similar bill passed 2613 this bill is narrower than the 2613 bill there's some other pieces of it there to come later in the docket

[03:50:05] I hope we could pass this the question is shall house bill 1392 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 34 no 6 ice 34 no 6 House bill 1392 passes has bill 1482 a bill relating to law enforcement

[03:50:44] officers restrictions on wearing of facial coverings required identification civil liability penalties reported from the Committee for Courts of Justice with a substitute and from the Committee on Finance and Appropriations. Senator from Eastern Fairfax. Thank you, Madam President. With the recommendation that it be rejected, I move the committee substitute, I think. Oh, I'm sorry. Wait a minute. Yeah, I'm

[03:51:19] sorry. I move the committee substitute from Committee on Courts of Justice. That it be agree to senator just to clarify yeah agreed to the question is shall the substitute from the committee for courts of justice be agreed to all in favor of that motion we'll say aye those opposed no the eyes have it the substitute is agreed to senator from Fairfax and I move bill passes be the motion senator has the floor amen president ladies and gentlemen Senate House bill 1482 is now I believe identical to Senate bill 352 again from the center from central Fairfax County This is the bill that has to do with law enforcement officer facial coverings.

[03:52:00] The bill passed this body on a healthy 21 to 19 vote, as we like to say. And it's identical to what you saw before. I hope you can pass the bill. Senator from King George.

[03:52:16] Would the senator yield for a question? Will the senator yield? Senator from King George. President, I heard the senator say this deals with law enforcement officers wearing masks. I thought the bill dealt with people impersonating law enforcement officers and dealing and wearing masks. Senator from Fairfax. Madam President that's the next bill on the docket 1492. Thank you Madam President. The question is shall House Bill 1482 pass? All in favor of that motion will record their votes aye.

[03:52:50] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any Any senators desire to change their vote, the clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19, House Bill 1482 passes.

[03:53:09] House Bill 1492, a bill relating to impersonating federal law enforcement officer penalties reported from the Committee for Courts of Justice with a substitute and from the Committee on Finance and Appropriations with a substitute.

[03:53:25] Senator from Eastern Fairfax. Thank you, Madam President. This is the one where with the recommendation to be rejected, I move the Courts of Justice substitute. With the recommendation that it be rejected, the question is, shall the substitute from Committee for Courts of Justice be agreed to? All in favor of that motion will say aye.

[03:53:41] Those opposed, no. The nos have it. The substitute is not agreed to. Senator from Fairfax. Thank you, Madam President. I move the substitute from the Committee on Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to. All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it.

[03:54:04] The substitute is agreed to. Senator from Fairfax. Thank you, Madam President. I move the bill pass and now speaking to that motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, I believe this bill, I think, is a new one that we haven't seen before. This one increases it from a class one misdemeanor to a class six felony. If you impersonate a federal law enforcement officer increases the penalty for a second or subsequent violation from a class 6 to class 5 felony while wearing a facial cover and then it also makes it a class 5 felony to impersonate a

[03:54:40] federal law enforcement officer while wearing a facial covering and as a class 4 felony for a second or subsequent violation the idea behind the bill is that obviously there's a little bit more tension out there about federal law enforcement officers there's a lot more federal law enforcement officers that are wearing masks even though it's not cold outside and it's also it can be some pretty serious consequence of people are tricked into doing things because somebody's faking pretending to be an officer while wearing a mask you can't even tell their identity that's

[03:55:15] basically what the bill does hope we pass the bill the question is shall House Bill 1492 pass all in favor of that motion will record their votes aye those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 27, noes 13. Ayes 27, noes 13. House bill 1492 passes. House bill 4, a bill relating to

[03:55:53] preservation of affordable housing definitions civil penalty reported from the committee on general laws and technology senator from alexandria thank you madam president i move the bill pass and speaking to the bill senator has the floor thank you madam president house bill 4 helps us address virginia's affordable housing crisis it's a permissive bill for localities with respect to rental buildings that have already received state or federal assistance to create affordable units for example through the low-

income housing tax credit or lie tax program when those affordability restrictions are expiring and the owner intends to sell the building the bill would allow localities to establish a right of first refusal

[03:56:30] if and only if they can match a third party offer and have previously adopted an ordinance the owner receives the same purchase price and the housing remains affordable if the locality cannot provide a matching offer the owner sells to a third party again i move the bill pass the question is shall house bill 4 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to their vote. The clerk will close the roll. Ayes 21, Nose 19. Ayes 21, Nose 19, House

[03:57:09] Bill 4 passes. Ayes Bill 14, a bill to amend and reenact, excuse me, a bill to a bill relating to the Virginia Residential Landlord and Tenant Act enforcement by localities reported from the Committee on General Laws and Technology. Senator from Western Henrike. Thank you Madam President. Madam president I move the bill pass and speaking to that motion senator has the floor thank you my present man president this is the exact same as Senate bill 2 90 from the senator to my left which passed out of here 21 to 18 and this is about localities being able to institute an action on behalf of a tenant or

[03:57:48] occupant under certain circumstances around safety hazards I move the bill pass the question is shall House bill 14 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll that's 21 nose 19 eyes 21 nose 19 house bill 14 passes has bill 15 relating to Virginia Residential Landlord and Tenant Act landlord

[03:58:26] remedies non-compliance with rental agreement mandatory right waiting period reported from the Committee on General Laws and Technology. Senator from Western Henrique. Thank you, Madam President. Madam President, I move House Bill 15 pass, speaking to that motion. Senator has the floor. Thank you, Madam President.

[03:58:43] Madam President, this is the identical to SB 48 from the junior senator from Virginia Beach about the mandatory waiting period from five to 14 days before a landlord can pursue remedies. I move the bill pass. The question is, shall House Bill 15 pass? All in favor of that motion will record their votes aye, those opposed no, are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 21,

[03:59:14] Noes 19. Ayes 21, Noes 19. House Bill 15 passes. House Bill 95. A bill relating to Virginia Residential Landlord and Tenant Act. Landlord remedies non-compliance with rental agreement payment plan reported from the Committee on General laws and technology with an amendment and that's it senator from alexandria thank you madam president i move that the committee amendment be agreed to the question is shall the amendment from the committee on general laws and technology be agreed to all in favor of that motion we'll say

[03:59:50] aye aye those opposed no the ayes have it the amendment is agreed to senator from alexandria thank you madam president i move that the bill passed and speaking to the bill senator has the floor thank you madam president house bill 95 will help hard-working virginia families remain housed by offering certain tenants who owe no more than one month of rent a chance to pay their debt through a payment plan before they're taken to court for an eviction. It has a delayed enactment of January 1st of next year and I move that the bill pass. The question is shall House Bill 95 pass? All in favor of that motion will

record their votes aye. Those opposed no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change

[04:00:29] their vote. The clerk will close the roll. Ayes 20, noes 19. Ayes 20, noes 19. House bill 95 passes. House bill 170, a bill relating to real estate appraisers, educational requirements for licensure, fair housing, and appraisal bias course.

[04:00:52] Reported from the Committee on General Laws and Technology with amendment. The senior senator from Prince William. Thank you, Madam President. Move the amendment be agreed to. The question is shall the amendment from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendment is agreed to. Senator from Prince William. Thank you, Madam President. Move the bill to pass and speak into the motion.

[04:01:19] Senator has the floor. Thank you. HB 170 requires in addition to successfully completing an examination, applicants for licensure as a certified residential real estate appraiser or certified general real estate appraiser also successfully complete a fair housing and appraisal bias education course administrator approved by the real estate appraisal board the amendment we just adopted clarifies that the fair housing board shall annually review rather than audit relevant education courses and move the bill's passage the question is shall house bill 170 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the

[04:01:58] senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 36, noes 3, rule 36-1. Ayes 36, noes 3, rule 36-1. House bill 170 passes. House bill 281, a bill relating to Virginia residential landlord and tenant act non-compliance as defense to action for possession for non-payment of Rent reported from the Committee on General Laws and Technology with

[04:02:37] amendment. Senator from Eastern Fairfax. Thank you, Madam President. Can that bill go by for the day? Without objection House Bill 281 goes by for the day. House Bill 298, a bill relating to public elementary or secondary school students evidence-based restorative disciplinary practices reported from the Committee on Education and Health with a substitute. Senator from Arlington. Thank Thank you, Madam President.

[04:03:05] Madam President, I move that the substitute be agreed to. The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[04:03:21] Senator from Arlington. Thank you, Madam President. Madam President, I move that the bill pass and speaking to the motion. Senator has the floor. Thank you, Madam President. What this bill does is it prohibits a public elementary or secondary school student from being suspended or expelled or excluded from attendance at school unless the school first considers at least one evidence-based restorative disciplinary practice now if the if the child was involved in an aggregate aggravating circumstance or serious felonies then this does not apply but the intent is

[04:03:56] for the schools to teach the children how to resolve things in a restorative way to build up skills to be a constructive adult. The bill requires the Department of Education to add the use of evidence-based restorative disciplinary practices to the student behavior and administrative response survey so they may collect data and the Virginia Department of Education shall adopt and make available guidelines and

support materials to help schools implement and monitor evidence-based restorative disciplinary practices the

[04:04:33] Department of Education shall provide these guidelines and materials no later than January 1 2027 and therefore the bill would not take effect until July 1 2027 for the next academic year I renew my motion that the bill pass the senator from Lynchburg yes I rise speak to the bill senator has the floor it's bills like this that are absolutely destroying our public schools. The lack of discipline in our schools is rampant and talks like restorative justice. We

[04:05:12] are just going down the wrong road of political correctness. When kids misbehave, they need discipline. If it's not in the home, if it's not in the schools, it just keeps going up and up and up. Talk to your teachers. We've got one over there ask them about what goes on in the hallways at their schools i just talked to one this past weekend in our high school absolutely ignoring every teacher in the hallway they don't care about passes they don't care about school times they don't care about class times they don't care

[04:05:50] when the bell rings they're wandering the halls and it's reeking of marijuana this is from teachers in our high school they reek of marijuana they had cameras in the bathrooms for safety the very first month they put them up years ago torn out the school can't afford to put them back in there you want to continue these practices you wonder why our test scores are going down don't discipline the kids make excuses for them for misbehaving make excuses for them for disobeying their teachers make excuses for them for not getting along with their fellow

[04:06:28] students this is the wrong way to address a behavior problem in our public education i hope you'll vote against this bill senator from western fairfax thank you madam president speaking to the bill and senator has the floor actually before i speak to the bill madam president i do have a question uh for my colleague on the other side that just spoke senator from lynchburg will the senator yield for a question certainly senator from fairfax thank you madam president i would ask uh the senator from lynchburg

[04:07:04] when the last time he has visited um our schools has been and and where these schools are located senator from lynchburg i last visited uh an elementary school last year as soon as we left session to go read to the students. What I'm telling you what I've just spoken about now was something I just heard about this weekend from our teacher at E.C. Glass High School in Lynchburg Virginia who said they sent out the teachers to with to monitor hall passes. She said can I see your pass? The kids

[04:07:41] just walk right by, ignore the teachers completely. She said the school halls reek of marijuana. She said they go in there and vape in the bathrooms. They're supposed to have teachers monitoring the bathrooms. The cameras have been torn down for the very first month they were put in. They're vaping and smoking dope in the school system and that's just the one that I heard and I heard it this past weekend. That's why I think this is a very bad bill. Senator from Western Fairfax. Thank you madam president. I did not hear a school or where that is

[04:08:14] located out I would most absolutely like to know that I wanted to answer the question EC Glass Lynchburg Virginia and senator from Fairfax the other school was Bedford Bedford County thank you madam president every school that is useful information it sounds like there are some serious training issues in that school and perhaps whoever also represents that area may want to talk to their superintendent if that is the feedback although I would say I would

[04:08:53] probably want to hear from multiple teachers before drawing any conclusions on any school as somebody who represents an area of a hundred and eighty thousand students who has spent years in the classroom who has six children who is regularly in and out of our schools from elementary to middle to high school I would like to say that there seems to be some confusion around what this bill does this bill is not a no consequences no discipline bill what this bill talks

[04:09:31] about is let's use evidence-based interventions to ensure that our children are not just punished punishment in itself does not teach children they have to learn why the punishment is connected to their behavior and that's what these practices aim to do and I would agree that we have some issues in our schools we've always had issues with children in our schools

[04:10:05] they like to you know nature of being a child is pushing the boundaries as far as they can go but let's really focus on making kids understand the consequences to their behaviors instead of just throwing an easy discipline their way that will have no long-term impact schools are for teaching this bill aims to teach children not just punish I hope we support this bill the senior senator

[04:10:40] from Fairfax senator has the floor thank you madam president the restorative justice was pioneered here in Virginia in the city of Norfolk to excellent results in 1997 we had 1700 young people incarcerated in our juvenile correctional system in eight juvenile correctional centers. Today we're somewhere around 300 and we have one and some programs in our local juvenile detention centers to deal with a few of the others. It's a teaching mechanism.

[04:11:16] It's teaching kids skills as to how to deal with conflict. It's teaching kids how to deal with the consequences of their behavior because unfortunately a lot of times now they don't get it at home. They don't get it where they need to get it from their parents and schools have to step in at times to teach these skills it works it's worked all over the country is it a panacea does it solve all problems absolutely not problems change with kids the use of drugs the use of the influence of Facebook and and Twitter and you know all of the other

[04:11:56] social media platforms is a constantly changing environment for educators but the basic skills of how to deal with these things are stuff that we need to teach our children and it's being done through restorative justice not perfect but it works and it's had dramatic effects all over the United States of America especially in the area of juvenile justice so let's give it a try let's give it a chance it can work thank you the senator from Arlington there's two other senators who wish to speak if you wish to wait senator from

[04:12:33] Norfolk thank you madam president madam president speaking to the bill senator has the floor thank you madam president I really feel like I'm having a deja vu from a conversation I had a few days ago with a friend of mine who teaches at Churchland High School and in Churchland High School they have this restorative disciplinary program in Churchland High School and one of the things that we were talking about was a parent there is some pushback in keeping the program because it's not in school suspension it's not out of school suspension and

[04:13:11] that there is a theory that punishment works over intervention and there are so many children who live in very very very difficult situations they have adult responsibilities and they don't come to school and misbehave or go to sleep because they're bad kids they're dealing with situations the best way that they know how so in this intervention classroom you pull out children from the block of other children where they're misbehaving. You take them down, you bring in a therapist.

[04:13:47] If their grades are suffering, you bring in a tutor. You help them get back on track. One young lady that my friend told me about, she takes care of a two-year-old and a four-year-old and she's like 16 years old. She's not sleeping in class because she's lazy. She's sleeping in class because she's up feeding the two-year-old and taking care of the four-year-old. And so what we have to look at is just because it worked 20 years ago doesn't mean that it will work now. And the definition of

[04:14:26] insanity is doing the same thing and expecting a different result. Children have come to school with a myriad of problems. Being bad kids is probably at the bottom of the list, but they are acting out the only way their undeveloped minds know how to act out. And so when we punish them, we don't help them. We don't show them that they are worth saving. We don't show them any grace.

[04:14:59] We don't show them any mercy. We don't show them any kindness. We say, this is what you did. We don't care about the circumstances and we're just gonna lock you up and throw away the key and this this old model of ISS and OSS and punishing kids is the prison to pipeline school to prison pipeline model intervention graduates children and intervention keeps children from going to prison and becoming statistics or better yet becoming a profit in somebody's bottom line. So I would hope that we

[04:15:38] would look at children with the undeveloped potential that they have and do everything that we can to help them to mature and prosper and become healthy, happy adults. And if discipline looks different than it did 20 years ago, then so be it. Thank you, Madam President.

[04:16:04] Senator from Rockingham. Madam President, speaking of the bill. Senator has the floor. Madam President, I don't know that we're going to solve the issue of dysfunction in our schools through this or any other single bill. I think that it is, this bill is probably symptomatic of this gentle parenting kind of philosophy that we have embraced in our communities and in our

[04:16:40] society. And I don't think anybody, a senator from Lynchburg or anybody else, is suggesting that we open a school-to-prison pipeline or lock kids up and throw away the key. That's hardly what we're talking about. We're talking about simply informing kids that there are consequences that we have to have a degree of order in our schools and you know I heard one of my colleagues expressed disbelief that there might be schools in Virginia that are run amok that it must be the responsibility of maybe bad leadership

[04:17:18] in the school or even the represent representation in some legislative body that might be to blame and I don't believe that not for one second I think it's a much broader issue and I think it's an issue that we can close our eyes to and ignore in our own communities or we can open our eyes to and address it you know I'm in this media market with my friend the center from Charlottesville and I don't believe that the center from Charlottesville for one second has a single bit of responsibility for some of the dysfunction that may occur in the

[04:17:54] Charlottesville city schools but let me read to you let me read to you an An article from just, I think, two and a half years ago, an excerpt from it, in connection with the Charlottesville City Schools.

[04:18:10] There was a teacher who was applying for a job there, and there was a video of a massive brawl at Charlottesville High School. And she abandoned her application.

[04:18:26] She said, I'm not equipped for that. when these fights happen you have anxious children in classroom not knowing why but knowing something's going on in the school and after that event the school closed its doors because so many of the teachers didn't show up they called out sick teachers that

said are fed up with a volume of fights and lack of accountability that happened in the high school recently and a indicate that

[04:19:00] kids are wandering the halls, refusing to obey teachers, refusing to go to class, refusing to participate. And you know, words like evidence-based intervention and restorative justice, that's all great. And they have an absolutely important place. And we need to use these concepts particularly dealing with the individual kids, but when you wind up with 200 kids or groups of kids wandering

[04:19:33] the hall of schools refusing to obey instructions, it is depriving other children of their right to a free and appropriate public education. We owe these kids more than that.

[04:19:49] We need to stand up and restore some order in our schools, and to the extent that this is undermining that you know I oppose it and I think that we really owe it to children across the Commonwealth of Virginia to realize that there's no one size fits all no one-size-fits-all approach to dealing with these issues we need to deal with and help the kids who need help we need to provide the mental health services to the kids who need help but number one we have to have control and accountability and respect in our schools. So I would hope that we

[04:20:29] would not pass this bill. Senator from Richmond City. Yes, Madam President, speaking to the bill. Senator has the floor. I know as a person of faith and I know many in this August body are men and women of faith, one key tenet to the things that we believe is restoration and to begin to teach that at this age how they can repair their own communities and allow these young men and young women as they grow and mature to have tools by which they can self

[04:21:06] regulate put back together that which they have destroyed I don't think there's any one thing that we can teach these children that is just as important as what this bill is seeking to do it's not having individuals escape or run away from responsibility it's not having individuals that are going to continue to fracture the context in which they find themselves in.

[04:21:31] It's simply seeking to find a productive and healthy way by which these young people can build the communities that they're living in. And I hope that it will be the pleasure of everyone in this body to pass this bill. Senator from Western Henrico.

[04:21:48] Thank you, Madam President. Madam President, speaking to the bill. Senator has the floor. Thank you, Madam President. Madam President, I didn't even want to speak to this bill because this is not my favorite bill. Not because I'm not behind the spirit of it, but because I think there's better ways to get to the goal. But I'm having flashbacks to that distributed solar bill from last year where we talked about cheetahs and the Paleolithic era.

[04:22:10] And we spent an hour talking about everything about what the bill actually is. And we're kind of doing a version of that again. And so, you know, the senators from Rockingham and Lynchburg tried to paint a dystopian picture of our schools of, you know, marijuana everywhere fights in every schoolyard and I started getting afraid you know I don't know if I want to go back to work on Monday I might actually take that week off the people say I should take but but of course that's not true and this is not

[04:22:46] responsive that that's not what this bill is and we should be really clear about that we should really be clear about what the bill is before I go any further, this bill has a very limited check-in to try to encourage schools to use this type of approach first. If there is a fight, if there is drugs, this bill doesn't

kick in. If a kid's already gotten in trouble once, this bill doesn't kick in. This bill is a very limited window to try to incentivize schools to use an evidence-based restorative approach. I think the name is silly too,

[04:23:21] but the concept isn't okay and I think if we want to think about how can we make schools better because I think we need to make schools better let's think about the things that'll actually make schools better you know the senator from Rockingham talked about teachers being upset with a lack of discipline I actually agree I actually agree with that comment I actually think in the 20 years since I've been teaching we have we do have a school discipline problem But it's not because of this bill, right?

[04:23:53] It's because we need local governments, right, to have administrators' backs when they actually discipline people. If we want to come together for a bill on that, let's go. I'm game. But that's not what this bill is. You know, if we want to think about drugs in schools or vapes in schools, which I was being a little flip about it a minute ago, but it is a problem.

[04:24:15] Vapes in schools are a real problem. We got a couple great bills this session that are going to crack down on that. The bill I took over from the senator from Alexandria with Delegate Hope, the bill that my senator to my left of me from Eastern Henrico has around marijuana enforcement, those are real bills that will make real moves to try to get those out of kids' hands, right?

[04:24:37] But I'm going to go back to what I always go back to. If we want our schools to be awesome, we've got to make them awesome. And some of that's money, but I'll be honest, in this moment, I think it's more about academic accountability. That could be on assessments, that could be on curriculum, that could be on a number of things, right?

[04:24:54] That's where we're going to actually improve performance, right? That's where we're actually going to get kids engaged. That's where we're actually going to get schools to move the needle. And so I don't think we're in the scape from LA, and I don't think we're in a dystopian American society. So I don't agree with the picture that has been portrayed here.

[04:25:12] But let's be clear about what this bill does. It doesn't take away discipline. If a school is choosing not to discipline, it sounds like a principal's got his job on the line based on the comments from across the hall. You know, that's on them. That's not because of this bill. This bill doesn't stop discipline.

[04:25:28] We shouldn't pretend it does. I wouldn't vote for it if it did. This bill simply says, let's try another approach, too. So I'd hope we'd vote for the bill. The senator from Arlington. Thank you, Madam President.

[04:25:45] Madam President, I renew my motion that the bill pass. and I appreciate all the interest that I've heard in this. The Senator has the floor. Thank you, Madam President. I appreciate all the interest I've heard in this bill. I just want to make two very important points.

[04:26:01] As we have evolved as a society and we've found problems that we haven't quite addressed, certain agencies and communities have invested time and money in science. And there have been studies out that show the developing brain, so when a young child, actually up until the age of 25, does not respond to punitive behavior, does not respond to a harsh punishment. They are much more likely to respond to incentives, to an accountability measure that

[04:26:36] involves their input, to an accountability measure that involves input from their peers, and to an accountability measure that allows them to better understand their own actions, why they acted the

way they did, what pushed their button, and why their action hurt somebody else.

[04:26:56] Harvard did a study on this, and those were the factors they outlined. And they said, if you want to make a difference, why don't you try this tool? Rehabilitative, restorative justice, if you will, or restorative disciplinary practices, this particular bill.

[04:27:13] But if you read lines 21 to 24, some of the items that they're talking about, which could be used again this is a judgment on behalf of the school administration whether they want to use this tool or not but they could they could employ such things as peer mediation has a peer jury had community service mentoring and another interesting thing students are much harsher on themselves than the administrators are so the students may very well come up with an accountability measure that would be more meaningful more impactful and make a difference

[04:27:51] far beyond what any administrator might come up with so i hope this conversation has enlightened some of us i think it's a really worthwhile bill it's something that deserves to pass and it's something that our schools should absolutely implement again i hope it's the will of the body to pass this measure thank you madam president the question is shall house bill 298 pass all in favor of that motion will record their votes i those opposed no are the senators ready to vote. Have all the senators voted. Do any senators desire to change

[04:28:29] their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House bill 298 passes. House bill 175, a bill relating to manufactured home lot rental act right of first refusal resident utilities and localities,

[04:28:55] resident entities and localities sorry about that has bill 356 a bill relating to the Department of Housing and Community Development local housing policy report to the top to department reported for the committee on general laws and technology with amendment senator from Western Henrico thank you my present members I move the committee amendment the question is shall the amendment from the committee on general laws and technology be agreed to all in

[04:29:33] favor of that motion we'll say aye aye those opposed no the ayes have it the amendment is agreed to senator from Henrico thank you madam president madam president I move the bill passes speaking to that motion senator has the floor thank you madam president members the body this is now identical to senators here in Boston's SB 665 and this expands the range of local housing policy changes that are required to be submitted annually in a report to DHCD to by expanding it to localities with population greater than 3500 this is a

[04:30:08] data bill I move passage the question is shall House bill 356 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 21, Noes 19, House Bill 356 passes.

[04:30:38] House Bill 375, a bill relating to manufactured home lot rental act, right of first refusal, resident entities and localities. Reported from the Committee on General Laws and Technology with amendments. Senator from Western Henrico.

[04:30:56] Thank you, my President. My President, I move the amendments. The question is, shall the amendments from the Committee on General Laws and Technology be agreed to. All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Senator from Henrico. Thank you Madam President. I move passage of the bill and speaking to that motion.

Senator has the floor. Thank you Madam President. Madam President, members of the community body, House Bill 375 provides a first right of refusal under the MHLRA for resident entities and localities in which a manufactured home is located when a manufactured home park owner enters into a contract to sell the park. The amendment gives like a five

[04:31:36] percent buffer on that and I move that we pass the bill. The question is shall House Bill 375 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote. The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 375 passes. House Bill 460, a bill relating to

[04:32:15] Department of Small Business and Supplier Diversity Employment Services Organizations, reported from the Committee on General Laws and Technology. The senior senator from Prince William. Thank you, Madam President. Move the bill I will pass, and speaking to the motion.

[04:32:31] Senator has the floor. This bill amends provisions related to the powers and duties of the Department of Small Business Supplier Diversity to allow departments to implement any recommendation or enhancement measure for employment service organizations as may be authorized by the governor pursuant to existing law and develop regulations for program implementation.

[04:32:49] The bill also directs the department to amend relevant regulations of the Virginia Administrative Code to reflect the intent of the General Assembly to specifically reference employment service organizations and to move the bill pass. The question is, shall House Bill 460 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 23, no 17.

[04:33:22] Ayes 23, no 17. House Bill 460 passes. House Bill 461, a bill relating to special education and student age range restrictions in educational settings.

[04:33:38] Reported from the committee on education and health with amendment. The senator from Arlington. Thank you madam president. Madam president I move that the amendment be agreed to. The question is shall the amendment from the committee on education and health be agreed to? All in favor of that motion will say aye.

[04:33:54] Aye. Those opposed no. The ayes have it. The amendment is agreed to. Senator from Arlington. Thank you, Madam President. Madam President, I move the bill pass and speaking to the motion. Senator has the floor. Thank you, Madam President. What this bill does is it prohibits any student with a disability and grades kindergarten through six from being regularly assigned to an educational setting, including a specialized educational setting, where the age difference between the students is more than four years. Unless the students iep team specifically determines that a wider range age range is appropriate and there must be

[04:34:32] documentation for that wider range um in the student's iep the bill has an effective date of july 1 2027. i renew my motion that the bill pass the question is shall house bill 461 pass all in favor of that motion will record their votes i those oppose no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll

[04:35:05] 21 knows 19 eyes 21 knows 19 house bill 461 passes as bill 519 a bill relating to virginia residential landlord and tenant act essential services reported from the committee on general laws and technology man president senator from western henrico thank you man president man President I move

House Bill 519 pass and speaking to that motion. Senator has the floor. Thank you Madam President. Madam President, House Bill 519 as central air conditioning when supplied by the landlord and operating or represented as operating as of the effective date of the rental agreement

[04:35:44] to the list of what constitutes an essential service under the VRLTA. I recommend passage. the question is shall house bill 519 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 noes 19 ayes 21 noes 19 house bill 519 passes host bill 527 a bill relating to department of housing and community development

[04:36:24] "Eviction Reduction Program Report" reported from the Committee on General Laws and Technology. Senator from Western Henrico. Thank you Madam President, Madam President, members of the body, I moved passage of the bill in speaking to that motion. Senator has the floor. Thank you, Madam President, members of the body, this is identical to Senator from Hampton's SB 628, which passed out of here 21 to 17.

[04:36:47] I think you can guess the 21, you can guess the 17. It's about the eviction reduction program and and creates an annual report to the General Assembly, and I move passage. - The question is, shall House Bill 527 pass? All in favor of that motion will record their votes, aye.

[04:37:04] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. - Ayes 21, noes 19. - Ayes 21, noes 19.

[04:37:21] House Bill 527 passes. - House Bill 554. a bill relating to state officers and employees, state agencies to establish alternative work schedules, reporting requirements.

[04:37:36] Reported from the Committee on General Laws and Technology with amendments, and there is a floor substitute. - The senior senator from Prince William. - Thank you, Madam President. With the recommendation that the amendments be rejected, I move that we adopt the committee amendments.

[04:37:53] - With the recommendation that they be rejected, the question is, shall the amendments from the Committee on General Laws and Technology be agreed to. All in favor of the motion will say aye. Those opposed, no. - No. - The no's have it. The amendments are not agreed to.

[04:38:10] Senator from Prince William. - Thank you, Madam President. I move to waive the reading of the floor substitute. - The question is, shall the reading of the floor substitute be waived? All in favor of that motion will say aye. - Aye. - Those opposed, no. The ayes have it.

[04:38:25] The reading is waived. Senator from Prince William. Thank you, Madam President, move the adoption of the floor substitute and speaking to the motion. Senator has the floor. Thank you, Madam President. So this floor substitute before you really narrows down sort of the more prescriptive version of the bill, which we saw in committee, and as you can see, lines 45 through 51 are more of an overview, as well as the addition on really reporting of who is teleworking on lines 35 through 39.

[04:38:53] So this is substitute's request, also the administration, I think it makes it a little bit more ease of implementation and so I move it's adoption the question is shall the floor substitute now be agreed to all in favor of that motion will say aye those opposed no the eyes have it the floor substitute is agreed to senator from Prince William thank you madam president move the bill pass and speaking of motion senator has

the floor so this is the telework bill again the substitute described is very essentially in the form and posture of reporting mechanism adding that new element to the code and the new addition and the

[04:39:30] substitute that we just discussed in terms of a review of the telework posse every other year that's what the bill does and move its passage the question is shall house bill 554 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role as 21 nose 19 eyes

[04:40:03] 21 nose 19 house bill 554 passes as bill 614 a bill to require the commission on civic education to review and make recommendations to the inclusion of the contributions perspectives and experiences of historically marginalized communities in the history and social science standards of learning and curriculum framework report reported from the committee on education and health with the substitute senator from arlington thank you madam president madam

[04:40:42] president i move that the substitute be agreed to the question is shall the substitute from the committee on education and health be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from arlington thank you madam president madam president i move that the bill passed in speaking to the motion the senator has the floor thank you madam president what this bill does is it requires the department of education to review the history and social science standards of learning curriculum and framework and any associated instructional guides and materials for the purpose of ensuring

[04:41:22] that we teach accurate and complete history especially history that includes the roles of all peoples included in our history and social science standards of learning and curriculum framework the virginia department of education will make recommendations and submit them in a report to the chairs of the senate and house education committees by november 1st 2028.

[04:41:46] i renew my motion that the bill pass the question is shall house bill 614 pass all in favor of that motion will record their votes i those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll i was 21 nose 19. ayes 21 nose 19 house bill 614 passes as bill 616 a bill relating to department of housing and community development virginia residential landlord and tenant act tenant records reported

[04:42:25] from the committee on general laws and technology with amendments senator from western henrica thank Thank you, Madam President. Madam President, I move the amendments. The question is, shall the amendments from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye.

[04:42:41] Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Senator from Henrico. Thank you, Madam President. Move passage of the bill and speaking to that. Senator has the floor. Thank you, Madam President. Members of the body, this bill ensures that when a tenant requests their account record, they can obtain a ledger separating base rent from other charges so they can document eligibility housing assistant programs the amendments do two things one is make sure that the language is the same as senate bill 294 so the code looks the same and then delays the enactment for a year i move passage the question is shall house bill 616 pass all in favor of that motion will record

[04:43:20] their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19.

House Bill 616 passes. House Bill 650, a bill relating to

[04:43:54] prohibiting certain acts in furtherance of federal immigration enforcement in certain protected areas, exceptions, penalties. Reported from the Committee for courts of justice with the substitute. Senator from Eastern Fairfax.

[04:44:12] Thank you, Madam President. I move the committee to substitute and speak to the motion. Does the Senator wish to speak to the substitute? I was going to move the substitute, and then once we adopted it, speak to the bill.

[04:44:28] Let us move to the substitute first. Yeah, I did, yeah. The question is, shall the substitute be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Fairfax.

[04:44:45] Thank you, Madam President. Ladies and gentlemen, the Senate. I'm sorry, I moved the bill past and speak of the motion. Senator has the floor. Thank you, Madam President. House Bill 650 is one of those three bills I mentioned. This is number two of three that basically had pieces of the Senator from Central Fairfax's bill that we passed out of here.

[04:45:01] And so basically what we did was we took the piece it was similar to and conformed it to the Senator from Central Fairfax's bill that I think passed 2616. The rest of the stuff that was in this bill that's described in the description like prohibiting immigration enforcement at polling places and schools and all that was removed from the substitute because that I think is picked up in a different bill.

[04:45:26] So we basically conformed it to the bill you already voted for, 26-16, which now the way this bill reads, it prohibits any kind of immigration enforcement inside of courthouses. So that's basically what you have.

[04:45:43] I hope you can pass it. The question is, shall House Bill 650 pass? Madam President. Senator from Hanover. Senator from Eastern Fairfax, yield for a question. Will the Senator yield? I yield. Senator from Hanover. Thank you, Madam President. Madam President, I'd ask the Senator, are you aware of any state courthouse that does not possess security to make sure that weapons are not allowed in except by law enforcement?

[04:46:11] Senator from Fairfax. Madam President, I've probably been to about 15 or 20 courthouses out of 120, so I don't have that knowledge of how they operate in other places. Madam President, would the senator yield for additional questions?

[04:46:32] Will the senator yield? Sure, I'll yield. Senator from Hanover. Madam President, of the 15 or 20 courthouses that the senator's been in, have any of them allowed an individual other than sworn law enforcement to take a firearm or other weapon into the courthouse. Senator from Fairfax. I don't know, not something I've ever done research on but this bill, I think you might be confusing this bill with the last bill that I talked about related to the Senator from Central Fairfax's bill. This bill has to do with ICE doing

[04:47:10] immigration enforcement inside of courthouses. I think the bill you seem to be asking questions about had to do with security screening at courthouses, which we took care of about an hour ago. Will the senator yield for an additional question? Will the senator yield? Senator from Hanover. Madam President, I'll try to ask it a different way. Is the senator aware of courthouses that allow the

general public or witnesses to come in with weapons or go through a process where they're not being screened.

[04:47:45] Senator from Fairfax. Madam President, I would say I'm not aware of any, but I haven't gone and done a tour of all the courthouses in the state, and I've noticed that security is not quite as strict as it is in some places, like in Fairfax, where we basically have to do airport screening, and Arlington and Alexandrovich are pretty tight, Prince William's tight, Loudoun's pretty tight.

[04:48:12] I haven't, it's further west and south, I get. They seem to be a little less airport-y, shall we say. But I haven't been to most of the courthouses in the state, so I can't answer the question. Madam President, would the senator yield for additional questions?

[04:48:29] Senator from Fairfax, will you yield? Sure. Senator from Hanover. Madam President, would the senator agree that regardless of whether those screening prices, screening processes are tight like airports or not, that that screening is done to make sure that people participating in the legal process inside the courthouse are safer because there are no weapons. Senator from Fairfax. Um, Madam President, I think that's probably accurate. Okay, Madam President, speaking to the bill. Senator from

[04:49:03] Hanover has the floor. Madam President, I went through that questioning to say that I'm perplexed. I'm perplexed because when you go into a courthouse, unless you're a law enforcement officer, i'm not aware of any courthouse where you can take a weapon and so madam president if one of the things that we're trying to do is make sure that things are done safely and in the proper manner being inside a courthouse where witnesses or defendants are present without weapons would be

[04:49:39] a safe way to interact with law enforcement madam president if somebody is charged with a criminal offense and they're in the courthouse, that seems like the logical place, the safe place for ICE to interact with that person who is subject to an ICE detainer.

[04:50:00] So Madam President, I understand the Senator's perspective on some things, but I am confused by this, why that location, a courthouse, would not be a safe location for there to be an encounter with ICE enforcement.

[04:50:19] The Senator from Eastern Fairfax. Thank you, Madam President. No one else wishes to speak to the bill, speak to the bill. Senator has the floor. Thank you, Madam President. Happy to further elucidate, even though this wasn't my bill, it was mainly a bill from the Senator from Central Fairfax who carried it, but just a few things I'll note.

[04:50:42] Number one, when all this, I'll just call it new and enhanced ICE activity began earlier this year, it created all kinds of confusion. in our courthouse. I ended up receiving phone calls from numerous, let's just say, shall we say, people, officials affiliated with the courthouse who were concerned because there were arrests occurring outside of courtrooms by people who weren't wearing uniforms. And it created all

[04:51:19] kinds of confusion amongst the deputy sheriffs who were trying to keep the peace in the courthouses because they had no idea who these people were tackling each other or chasing people down the hallways or engaging in aggressive behaviors outside of courtrooms because people didn't bother to check in, tell anybody who they were, let people know they were there. And it created all kinds of confusion for people in the courthouse watching this happen in front of them. Nobody knew whether to

intervene or whether there was some kind of a gang fight going on, some kind of retaliation for something that happened out on the street. It was very confusing to everybody.

[04:51:57] Beyond that, what also began to occur, people stopped coming to court. And as many of us who represent communities who've tried to be attentive to these issues have argued, when ICE gets aggressive with people, when law enforcement starts asking about immigration status at every encounter, people stop reporting crime to the police.

[04:52:25] There have been neighborhoods where the numbers of domestic violence has vanished. just went away magically because President Trump became president. You wonder why that is? It's because people aren't calling the police anymore to report crime because they're afraid of having interactions.

[04:52:43] In addition, it causes people in more serious offenses not to come to court when we need them to serve as witnesses to put some of these violent people away. Many of them, by the way, often undocumented immigrants, that a conviction sure would be nice to get them out of the country.

[04:52:59] But all the hyper-aggressivity on enforcement of all the people that are not criminals has resulted in a lot of people not even wanting to come to court to help put people in jail anymore. So, Madam President, there are lots of reasons why we need to make sure courthouses are places where we're not going to have this kind of activity if we're going to be able to maintain the rule of law in our state.

[04:53:22] That is some of the reasons why we have this. Nothing to do with guns or no guns in a courthouse or whatever the concern was that was raised. I would hope we could pass the bill. senator from rockingham i'm president i'm speaking the bill i knew we'd senator has the floor i knew we'd hear about president trump sooner or later today and we just did and uh i i know that of course he's the source of all evils in this country and that's a good reason i suppose to vote

[04:54:02] for this bill but uh honestly you know we're what we're really talking about is safety and we're We're talking about a situation in which we have people who we know are unarmed. We know that that is a place where it is most likely not to escalate into armed violence.

[04:54:24] If you want to talk about somebody to blame for this, let's not look at stepped up immigration enforcement. Let's look at the open borders that we had for four years before the current Occupant of the white house took office and the millions of people that he would that the previous occupant willfully Disregarded as they cross the country or cross the border into this country many of whom are highly dangerous criminals and

[04:55:00] Folks who need to be detained in a controlled environment So I would hope we'd vote against this the question is shall House bill 650 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the

[04:55:29] roll it's 21 nose 19 eyes 21 nose 19 house bill 650 passes has bill 678 a bill relating to Virginia Residential Landlord and Tenant Act, terms and conditions of rental agreement, notice of rent increase reported from the Committee on General Laws and Technology with amendment. Senator from Western Henrico. Thank you, Madam President. I move the amendment. The question is, shall the amendment from the Committee on General Laws and Technology be agreed to? All in favor of the motion will say aye. Aye. Those opposed, no. The ayes have it. The

[04:56:09] amendment is agreed to. Senator from Henrico. Thank you, Madam President. Madam President, I move passage of the bill and speaking to that. Senator has the floor. Thank you. Madam President, members of the body, this is a bill that for landlords who have more than four units, they have to give written notice of an increase in rent 90 days prior to the end of the lease and the notice of a deadline shall be no sooner than 30 days after that's delivered. The amendment is a delayed enactment of a year. This is about people knowing if they have to leave because the

[04:56:47] rent has been increased sooner rather than later. So move passage. The question is, shall House Bill 678 pass? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote. The clerk will close the roll. Ayes 22, noes 18. Ayes 22, noes 18. House Bill 678 passes. House Bill 834, a bill relating to Virginia

[04:57:25] Residential Landlord and Tenant Act, fire or casualty damage, termination by a landlord, reported from the Committee on General Laws and Technology with amendment. Senator from Western Henrico. Thank you, Madam President. Madam President, move the amendment. The question is, shall the amendment from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendment is agreed to.

[04:57:52] Senator from Henrico. Thank you, Madam President. Move passage of the bill and speaking to that. Senator has the floor. Thank you, Madam President. Madam President, members of the body, we've seen this bill before this is requires landlord to give notice if there's been a unit that's been damaged or destroyed by fire and to make reasonable efforts to meet with the tenant to discuss alternatives and to give them access to a unit that is comparable the amendment is a delayed enactment of a year and so I move passage of the bill the question is shall house bill 834 pass all in favor

[04:58:31] of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 834 passes. House Bill 837, a bill relating to Virginia Residential Landlord and Tenant Act eviction diversion program eligibility reported from the Committee on General Laws and Technology.

[04:59:07] - Senator from Western Henrico. - Thank you Madam President. Madam President, I move passage of the bill and speaking to that motion. - Senator has the floor. - Thank you Madam President. Madam President, members of the body, this is the same as Senate Bill 273 from the Senator from Hampton, which amends the eligibility requirements for who can participate in the eviction diversion program to give more access.

[04:59:27] And so I move that we pass the bill. - The question is, shall House Bill 837 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Of all the senators voted, do any senators desire to change their vote?

[04:59:46] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 837 passes. House Bill 848, a bill relating to Virginia Residential Landlord and Tenant Act, material non-compliance by landlord rent escrow relief reported from the Committee on General Laws and Technology with amendment. Senator from Western Henrico. Thank you, Madam President. Madam President, move the amendment. The question is, shall the amendment from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Aye. Those

[05:00:24] opposed, no. The ayes have it. The amendment is agreed to. Senator from Henrico. Thank you, Madam President. Madam President, I move passage of the bill in speaking to that. Senator has the floor. Thank you, Madam President. Madam President, members of the body, once again, the amendment is a delayed enactment. It's a delayed enactment of a year. And then House Bill 848 removes the requirement that tenants be current on rent to file a tenant's assertion. Once they do file that assertion, they do have to pay into the escrow. And so I move passage of the bill. The question is, shall House Bill 848 pass? All in

[05:01:00] favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close a roll as 20 noes 19 ayes 20 noes 19 house bill 848 passes has bill 910 a bill relating to department of housing and community development powers and duties of director a comprehensive statewide housing needs assessment review of certain parcels reported from

[05:01:36] the Committee on General Laws and Technology. Senator from Western Henrico. Thank You Madam President. Madam President, move passage of bill and speaking to that. Senator has the floor. Thank You Madam President, members of the body, House Bill 910 requires DHCD to conduct a review of parcels owned by certain partnerships, corporations, or real estate investment trusts, and it's comprehensive statewide housing needs assessment every five year to see who's buying up all our houses so i move passage of the bill the question is shall house bill 910 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the

[05:02:16] senators voted do any senators desire to change their vote the clerk will close the roll as 22 ayes 22 noes 18 house bill 910 passes house bill 913 a bill to require the superintendent of public instruction to reverse certain recent actions with risk to restore certain resident rescinded resources reported from the

[05:02:53] committee on education and health senator from Arlington thank you madam president madam president I move that the bill pass and speaking to that Senator has the floor. Thank you, Madam President. What this bill does is it requires the Superintendent of Public Education to reverse all actions previously taken by the Superintendent of Public Education on or after January 15, 2022, pursuant to Governor Youngkin's executive order, specifically one that rescinded programs and resources that promoted cultural competency and educated those about the history of slavery.

[05:03:31] and the civil rights movement and in and continued work to combat racism in the Commonwealth policies and programs in place prior to Governor Youngkin's executive order shall be restored including the Department of Education's education equity Virginia website and all associated resources shall be posted I renew my motion that the bill pass thank you senator from Rockingham I'm Madam President, I'd ask if the senator from Arlington would yield for question.

[05:04:10] Senator, will you yield? Yes. Senator from Rockingham. Madam President, would this also reverse the prior administration's executive order on masking? Senator from Arlington. I would say no.

[05:04:26] This deals only with the history of what we would, as I understand it, to be cultural competency and the comprehensive presentation of our history regarding slavery and civil rights but I will go back and and review the the memo again I thank the senator from Arlington for her ambiguous response to that question madam president I thought I was quite clear I renew my motion that the bill

[05:05:04] pass thank you the question is shall house bill 913 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

desire to change their vote the clerk will close the roll ayes 21 nose 19 house bill 913 passes house bill 1005 a bill relating to the virginia residential landlord and tenant act

[05:05:39] rental payment methods prohibited prohibited fees reported from the committee on general laws and technology with the substitute senator from western henrico madame president i'm back uh madame president move the substitute the question is shall the substitute from the committee on general laws and technology be agreed to all in favor of that motion will say aye aye those opposed no the eyes have it the substitute is agreed to senator from henrico all right All right, Madam President, move passage of the bill and speaking to that, please.

[05:06:09] Senator, has the floor. Thank you, Madam President. All right, Madam President, members of the body, this is now identical to Senate Bill 313 from the former Senator from Alexandria. It basically does two things. It says that the landlord shall not require a tenant to pay any fee, require a tenant to pay any fee to submit periodic rent payments or other amounts due in excess of the actual out-of-pocket expenses.

[05:06:33] And it says that no landlord should require a tenant to pay any fee for the maintenance or repair of any dwelling unless it's necessitated by the tenants actions this bill passed 21 to 19 so vote your conscience i move passage of the bill the question is shall house bill 1005 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change

[05:07:05] their vote. The clerk will close the roll. Ayes 21, Noes 19. Ayes 21, Noes 19. House Bill 1005 passes. House Bill 1078, a bill relating to the Virginia Residential Landlord and Tenant Act, adverse action by landlord-tenant remedies, reported from the Committee on General Laws and Technology with an amendment. Should have put these in a block. Senator from Eastern Fairfax.

[05:07:37] Thank you, Madam President. I'm going to ask this bill goodbye for the day, speaking that motion really quick. Senator has the floor. Thanks. I have a couple of questions I want to look into on this. We passed an expungement bill, an automatic expungement bill a couple of years ago, and I'm trying to figure out what's left and why this bill is needed before we debate on the floor.

[05:07:54] I just ask that the bill go by for the day. Without objection, House Bill 1078 goes by for the day. House Bill 1093, a bill relating to Virginia Residential Landlord and Tenant Act, Landlord Remedies, Tenant's Right of Redemption, Attorney Fees, reported from the Committee on General Laws and Technology with amendment.

[05:08:19] Senator from Western Henrica. Thank you, Madam President. Move the amendment. The question is, shall the amendment from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendment is agreed to. Senator from Henrico.

[05:08:36] Thank you, Madam President. Madam President, move passage in speaking to that. Senator has the floor. Thank you. Madam President, members of the body, once again, this is an amendment where we delay the enactment for a year. This bill limits attorney fees to $100 when prior to the initial court date on an unlawful detainer, a tenant makes full payment of all money due for rent as the day of payment, any late fees authorized by law on the rental agreement, any damages, and court costs.

[05:09:02] This is getting the people who do everything right and get this settled on the front end, where the lawyer's essentially filing paperwork to close it out. And so that's what the bill does. Move passage. Senator from Eastern Fairfax.

[05:09:19] Madam President, speaking of the bill. Senator has the floor. Thank you, Madam President. We've done a lot of landlord-tenant bills this session, and this one just goes too far for me, i'm sorry but um uh good luck trying to find a lawyer they'll charge you a hundred dollars to do anything and um you know this this this bill to me seems to be written in mind for like these law firms that do like they do like these landlord tenant mills and you know there might be some firms that'll go in there with like 30 or 40 cases or something like that at least on the dockets that i watch in fairfax but i know a lot of other landlords that'll hire lawyers to

[05:09:56] represent them on cases that aren't there every day doing huge volumes. And just to get the case filed, you're looking at probably $500 to $1,000 of fees. You're probably looking at having to come to the court docket that day, sit around in court for a couple hours, same thing for someone who's probably breached the contract. And the only person that's going to get punished by this is a landlord on somebody who breached the contract because they're going to have to pay a full freight for their lawyer and be capped at 100 bucks and for something they didn't even do their contract was

[05:10:31] breached and so I just to me this is you know maybe this might work for apartment buildings or something that hire big law firm or hire these you know landlord tenant mills to do their cases but this to me out of the 15 or 20 landlord tenant bills we passed the session is just not one I can support and sorry I can't support all of them but can't doubt all of them. The question is shall house bill 1093 pass all in favor of that motion will record their votes

[05:11:06] aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk the clerk will close the roll eyes 20 noes 20 the chair votes aye house bill 1093 passes in 95

[05:11:42] A bill relating to high school students' completion of certain applications for student financial aid required, opt-out exemption reported from the Committee on Education and Health with a substitute, and there is a floor substitute.

[05:12:06] Senator from Arlington. Thank you, Madam President. Madam President, with the recommendation that we reject the substitute from the Education and Health Committee, I move that the substitute be agreed to. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Education and Health be agreed to?

[05:12:28] All in favor of the motion will say aye. Those opposed, no. No. The no's have it. The substitute is not agreed to. Senator from Arlington. Thank you, Madam President. Madam President, I move that we waive the reading of the floor substitute. The question is, shall the reading of the floor substitute be waived?

[05:12:46] All in favor of that motion will say aye. Aye. aye those opposed no the eyes have it the reading is waived senator from arlington thank you madam president i move that the floor substitute pass and speaking to the motion the senator has the floor thank you madam president what this floor substitute does is it reiterates a few things that were in the underlying bill and makes some changes so with this bill

every school board shall provide guidance and information to their high school students and parents about financial

[05:13:20] aid, including the FAFSA report. That's the federal financial aid opportunity application. School boards with this amendment, the floor amendment, would conceive of a five-year plan to really help improve participation in the completion of the FAFSA report. Statewide, we have only 55 percent of our high school students actually applying for the fafsa and we need to increase that number the floor amendment also allows the school boards to collect data

[05:13:59] that's readily available from the federal government and submit a report to the department of education and to post that information on their website and finally the department of education and the State Council of Higher Ed will be working together to provide information on how to access the information so the school boards will have more complete information, be better able to advise their students and parents, and maybe come closer to achieving a robust five-year goal for increasing participation in FAFSA.

[05:14:38] With that explanation, I hope it is the will of the body to adopt the floor substitute the question is shall the floor amendment floor substitute be agreed to all in favor of that motion we'll say aye aye those opposed no the eyes have it the floor substitute is agreed to senator from arlington thank you um madam president i move that the bill pass and speaking to that motion senator has the floor thank you madam president this bill is really important it it is a tool that we're asking school boards to use so we can

[05:15:15] help students participate in the federal financial aid assistance application this is something that if students do participate they may be eligible for financial aid may be better able to attend college or universities and it certainly is a tool that we want to emphasize and and encourage the usage of with that explanation I hope it is the will of the body again to pass this bill thank you the question is shall House bill 1095 pass all in favor of that motion will record their votes aye those opposed no are the senators ready

[05:15:53] to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. 21, noes 19. Ayes 21, noes 19. House bill 1095 passes.

[05:16:18] Madam President. Senator from Orange. I'm voting on the prevailing side in which HB 1093 passed. I ask that vote be reconsidered. The question on Senate will be at ease just

[05:16:43] temporarily. The question is, shall the vote by which House bill 1093 passed be reconsidered?

[05:17:02] all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero nice 40 no zero the motion is agreed to uh the president senator from western henrico i thought my description of the bill was so persuasive that the senator from orange had voted yes and here we are uh can that bill go by for the day

[05:17:40] Without objection, without objection, without objection, House Bill 1093 will go by for the day. House Bill 1161, a bill relating to Government Data Collection and Dissemination Practices Act, Dissemination of Personal Information to Federal Government, Civil Penalties, reported from the Committee on General Laws and Technology with the substitute.

[05:18:15] The Senior Senator from Prince William. Thank you, Madam President. Move the substitute be agreed to. The question is, shall the substitute from the Committee on General Laws and Technology be

agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[05:18:33] Senator from Prince William. Thank you, Madam President. Move the bill pass and speak into the motion. Senator has the floor. Thank you, Madam President. So House Bill 1161 is a bill that limits an agency or political subdivision of the Commonwealth from selling personal information.

[05:18:52] And so it really is a bill that prohibits agencies for sale or transfer unless it's solely for the purpose that's required under federal law or of a court order. So it really does tighten up personal information, transmittance and utilization, and the substitute also further tightens that up to make sure that to the extent necessary to accomplish the proper purpose of an agency, the dissemination of personal information.

[05:19:19] So it really is tightening around what agencies and subdivisions are allowed to do with personal information and move the bill's passage. The question is, shall House Bill 1161 pass? All in favor of that motion will record their votes, aye.

[05:19:37] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19.

[05:19:54] bill 1161 passes has bill 1229 a bill relating to the use of seclusion and restraint in public schools report reported from the committee on education and health with a substitute senator from Arlington thank you madam president madam president I move that the substitute be agreed to the question is shall the substitute from the committee on education and health be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from arlington thank you madam president madam president i move that the bill

[05:20:34] pass and speaking to the motion senator has the floor thank you madam president what this bill does is it requires the department of education to give every local school board a link to or a copy of the board of education's regulations governing the use of seclusion and restraint in public elementary and secondary schools and to encourage each board to fully comply with the regulations and submit to the chairs of the house committee on education and the senate committee on education and health no later than october 1 2026 a detailed summary of the department's current

[05:21:08] processes and procedures for enforcing the regulations um and that is the that's the bill i renew my motion that the bill pass thank you the question is shall house bill 1229 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change

[05:21:36] their vote the clerk will close the roll eyes 40 no zero eyes 40 no zero house bill 1229 passes

[05:21:52] House Bill 1361, a bill relating to Virginia Residential Landlord and Tenant Act Civil Action for Unlawful Detainer Termination Notice Energy Submetering Equipment on General Laws and Technology with Amendment.

[05:22:26] Senator from Western Henrico. Thank you, Madam President. Madam President, move the amendments. The question is, shall the amendment from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye.

[05:22:41] Aye. Those opposed, no. The ayes have it. The amendment is agreed to. Senator from Henrico. Thank you, Madam President. Madam President, move passage of the bill in speaking to that motion. Senator has the floor. Thank you, Madam President. Once again, the amendment is a delayed enactment in this case of a year.

[05:22:57] This is the same as Senate Bill 294 carried by my neighbor here. Senate 21 to 19, so y'all know how you voted, provides that no landlord shall file an unlawful detainer unless they've provided a proper and effective notice of termination. The bill provides that no notice of termination for non-payment rent shall be effective unless it contains a written statement of charges and payments over the course of the 12 months. Move passage of the bill. The question is, shall House Bill 1361 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the

[05:23:35] senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 1361 passes. House Bill 1363, a bill to amend a bill relating to family abuse, protective orders, conditions is imposed upon resistance, issuance, sorry.

[05:24:11] Reported from the Committee for Courts of Justice with an amendment. -Senator from Eastern Fairfax. -Thank you, Madam President. I move the amendments from the Committee of Courts of Justice. -The question is, "Shall the amendment from the Committee for Courts of Justice be agreed to?" All in favor of that motion will say, "Aye."

[05:24:27] -Aye. -Those opposed, "No." The ayes have it. The amendment is agreed to. Senator from Fairfax. -Thank you, Madam President. Move the bill passed and speak of that motion. -Senator has the floor. Thank you, Madam President. House Bill 1363 was a bill having to do with protective orders. I think perspective of the committee was it was basically just clarifying some ambiguity in the current law. Under current protective order law, the court sort of has plenary relief, which means it has sort of broad authority to grant sort of generalized relief when it comes to protective order situations. That's typically when in a family situation, when somebody's

[05:25:05] excluded from the home for a period of time, at least 14 days, sometimes can be as long as two years. The bill makes clear that when a party is excluded, that the court also has authority to either order the payment of mortgage or rent or a contribution towards mortgage or rent, not the full mortgage or rent amount payment. Again, some people think the court already had that authority.

[05:25:31] Some people think because it wasn't in the Christmas tree that it wasn't, even though there's the broad thing. This just makes it clear. That's basically all the bill does. Hope we can pass it. The question is, shall House Bill 1363 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to

[05:25:59] change their vote? The clerk will close the roll. Ayes 38, noes 2. Ayes 38, noes 2. House Bill 1363 passes. House Bill 1374, a bill relating to Virginia Military Institute Board of Visitors membership reported from the Committee on Education and Health with an amendment. Senator from Eastern Fairfax. Thank you Madam President. I would move this bill re-refer to the Committee on Education

[05:26:38] for a little bit further work. The question is, shall House Bill 1374 be recommitted to the Committee on Education and Health. All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The bill is recommitted. Passed bill 1476, a bill relating to law enforcement civilian oversight bodies, closed meetings, disclosure of certain law enforcement

[05:27:15] records, reported from the Committee on General Laws and Technology with amendments. Senator from, senior senator from Prince William. Thank you, Madam President. Move the amendments be agreed to. The question is, shall the amendments from the Committee on General Laws and Technology be agreed to? All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Senator from Prince William. Thank you, Madam President. Move the bill passed. And speaking to the motion. Senator has the floor. Thank you, Madam President. So this bill provides an exemption of the freedom of information to allow us to close meetings for the discussion or consideration by any law enforcement civil oversight body to establish

[05:27:54] pursuant to general law or criminal investigation files. The amendments that we've just adopted also really focus those on discussions involving sexual assault or a juvenile where records would be confidential and that's what the bill does, Madam President. The question is, shall House Bill 1476 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote. Have all the senators voted. Do any senators desire to change their vote?

[05:28:29] The clerk will close the roll. Ayes 22, noes 18. Ayes 22, noes 18. House Bill 1476 passes. House Bill 1523, a bill relating to certified violence prevention professional certification reported from the committee on education and health with the substitute. Senator from Arlene.

[05:28:58] thank you madam president madam president I move that the substitute be agreed to the question is shall the substitute from the committee on education and health be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from Arlington thank you madam president madam president I move that the bill pass and speaking to the motion the senator has the floor thank you madam president what this bill does is it defines a certified violence prevention prevention professional to meet an individual who provides community violence prevention services for the purposes of promoting improved health

[05:29:35] outcomes, preventing injury recidivism, and reducing the likelihood that victims of acts of community violence will commit or promote violence themselves. The bill also establishes a formal certification system for certified violence prevention professionals. The bill directs the Board of Health to set forth the requirements for the use of that title education and training programs necessary to meet requirements for certification and qualifications for training entities and that places limitations on the number of approved training entities and other regulations as deemed necessary I renew my motion

[05:30:14] that the bill pass the question is shall House bill 1523 pass all in favor of that motion will record their votes I those opposed no are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 28, noes 12. Ayes 28, noes 12. House Bill 1523 passes. Senator from Prince William. Thank you, Madam President. Madam President, having voted on the prevailing side by

[05:30:50] which we passed HB 1476 on page 111, I motion to reconsider that vote so a member may change her vote. The question is, shall the vote by which the Senate passed House Bill 1476 on page 111 be reconsidered? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[05:31:23] the clerk will close the roll ayes 40 no zero ayes 40 no zero the motion is agreed to senator from prince william thank you madam president having previously explained i move the bill pass the question is shall house bill 1476 pass all in favor of that motion will record their votes aye those opposed no are the

senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 21,

[05:32:03] noes 19. Ayes 21, noes 19. House bill 1476 passes. House bill 67, a bill to direct the director of the Department of Energy to identify and develop training resources to advance workforce development in the offshore wind industry reported from the Committee on Commerce and Labor with the substitute and from the Committee on Finance and Appropriations. Senator from Charlottesville.

[05:32:39] Madam President, I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville.

[05:32:56] Madam President, I move the bill pass. I'd like to speak to that. Senator has the floor. Madam President, this bill simply directs the director of the Department of Energy to identify and develop training resources to advance workforce development in the offshore wind industry and throughout Virginia.

[05:33:14] This bill with the substitutes identical to Senate Bill 25 from the Senator from Eastern and Prince William had passed this body by a very healthy 20 to 19 vote. I redirect my motion that it pass.

[05:33:29] The question is, shall House Bill 67 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[05:33:45] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 67 passes. House Bill 86, a bill relating to mattress stewardship program established report reported from the committee on finance and appropriations the senior senator from Fairfax thank you madam president I move that the bill pass and speaking to the measure the senator has the floor thank you madam president HB 86 establishes the mattress stewardship

[05:34:21] program that allows certain industry associations to administer the program as a mattress recycling organization with the approval and certification from the Department of Environmental Quality there's a number of issues here that it deals with in terms of how this is paid for and it's paid for by a point of sale charge to folks purchasing a mattress because obviously sometimes if people are throwing things away they won't necessarily pay the fee they'll dump it somewhere so I think that's a wise move and so with that I reiterate my motion that the bill passed. Senator from Rockingham. I would ask if the

[05:34:59] senior senator from Fairfax would yield for a question. Senator, will you yield? I yield. Senator from Rockingham. Madam President, I would ask the senator, am I correct in my understanding that the other states that have implemented similar programs charge approximately a $30 tax on mattresses? Senator from Fairfax. Thank you, Madam President. I know that this has been replicated in other places. I'm not sure of the charges in other states, but this deals

[05:35:39] with the prevention of dumping. Madam President, further question? Will the senator yield for another question? I yield. Senator from Rockingham. Madam President, am I correct in understanding that this charge, whatever amount is going to be charged irrespective of whether there's a mattress being discarded with it. So it's a tax on every mattress you buy even if it's for additional mattresses. Senator from Fairfax. I believe the bill does you know

[05:36:11] deal with prospectively with mattresses going forward. Thank you. The question is shall House Bill. Madam President. Senator from, senior senator. We take that by for the day so we can sleep on it.

[05:36:28] I withdraw the motion. Did the senator say withdraw?

[05:36:54] The senator has woken up the body with that motion. The question is, shall House Bill 86 pass? All in favor of that motion will record their votes aye, those opposed no, are the senators ready to vote?

[05:37:11] Have all the senators voted? Do any senators desire to change their vote? clerk will close the roll. Ayes 20. Noes 20. Ayes. The Senate will be in order. Ayes 20. Noes 20.

[05:37:48] The chair votes aye. House Bill 86 passes. House Bill 198. A bill relating to local governing body review of decision by Board of Zoning Appeals procedures for filing petition reported from the committee for courts of justice senator from eastern fairfax uh thank you madam president this one's not as much of a sleeper i'd move the bill pass speaking of the motion senator has the floor

[05:38:25] thank you madam president uh ladies and gentlemen senate house bill 198 is a new bill no cognate one we haven't seen before uh it is a recommendation of the boy graves commission to i think sort of clarify and clean up some ambiguity about bza appeals but board of zoning appeals a bza appeal is like if your neighbor wants to build their house a little bit closer to the zoning setback or they want to have a little bit bigger of a driveway that's not allowed by the zoning ordinance something like that and they get denied a variance then they have to appeal

[05:39:03] they build the circuit court basically this bill sort of clarifies a bunch of procedural stuff deadlines filings discovery stuff like that um which has been ambiguous um so if you want to have more clarity about BZA appeals, vote green. If you want everything to remain ambiguous and give all of us lawyers more things to fight about, vote red. I think that's kind of the way it comes out. Again, this is Boyd Graves' recommendation. A bunch of other lawyers looked at it to clean it up. The question is, shall House Bill 198 pass? All in favor of that motion will record their

[05:39:41] votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do Any Senators desire to change their vote. The Clerk will close the roll. Ayes 40, noes 0.

[05:39:57] Ayes 40, noes 0. House Bill 198 passes. House Bill 238, a bill relating to labor and employment, payment of wages, minimum wage, and overtime wages, misclassifications of workers, civil actions, reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations.

[05:40:28] The senator from Charlottesville.

[05:40:38] I move that the committee's substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[05:40:56] All in favor of that motion, we'll say aye. Aye. It's opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam Chair, with the substitute, this bill is now conformed to Senate Bill 644 that passed this body with a very healthy 20 votes.

[05:41:13] That was carried by the senator from Eastern Fairfax. It provides an employer that violates Provisions of regarding multiple carding minimum wage overtime wage provisions, etc Is liable to the employee for the applicable remedies. I think this is just a piece of Senator Surveller's bill And we put the

substitute we basically conform to the provisions of his bill that apply. I reiterate my motion that it pass The question is, shall House Bill 238 pass?

[05:41:44] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[05:42:05] Ayes 21, noes 19. Ayes 21, noes 19. House Bill 238 passes. House Bill 246, a bill relating to affirmative defense or reduce penalty for mental illness, non-recognitive disorder, or intellectual or developmental disability.

[05:42:26] Reported from the Committee for Courts of Justice with amendments, and from the Committee on Finance and Appropriations. Senator from Eastern Fairfax. Thank you, Madam President. I move the Committee of Amendments. The question is, shall the amendments from the Committee for Courts of Justice be agreed to?

[05:42:42] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The amendments are agreed to. Senator from Fairfax. Thank you, Madam President. I move the bill to pass and speak to the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate, House Bill 246, again, is a new bill.

[05:42:59] We have not seen this session. I believe we saw it last session and it got vetoed, maybe even the session before that. Basically, what the bill does is it creates an affirmative defense for assaults on certain people, mainly law enforcement officers.

[05:43:16] If the defendant can show that their behaviors were the result of either a mental illness or neurocognitive disorder, including dementia, intellectual disability, developmental disability, or autism, as defined in the current DSM, or if the person meets the criteria for issuance of emergency custody order, what we call an ECO, somebody who's in pretty extreme mental health duress that would require their involuntary commitment.

[05:43:46] Basically, you know, a lot of the interactions that often result in assault on police officer charges are more a function of the mental health of the defendant than they are some sort of conscious intent to truly assault or harm a police officer that most of us would think of.

[05:44:03] This basically creates an opportunity for those folks who have IDDD, autism, etc., to try to present, I guess, a fuller picture to the court about why a situation happened, I just want to remind everybody that these cases involve a six month mandatory minimum sentence and but for the status of the victim they would be punishable by as a class one misdemeanor and would typically have very minor consequences maybe a day or two in jail at most. This I think is we sort of saw it as a fair way to deal with these situations given the state of the people that would be bringing the affirmative defense. I'd hope we

[05:44:41] could pass the bill. Senator from Northern Fairfax. Thank you, Madam President. I just want to remind the body we've already passed this legislation. It was my bill, SB 355, I believe. Again, this is something that we've been working on, I believe, since 2020 and have finally gotten consensus with all the stakeholders. It's very important to the disability community. It has been vetoed twice and looking forward to getting the governor to sign both versions of this bill i urge passage the question is shall house bill 246 pass all in favor of that

[05:45:20] motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 22 knows 18. Ayes 22, noes 18. House bill 246 passes. House bill 252, a bill relating to relocation or modification of easement by owner of Servient Estate reported from the Committee for Courts of Justice. Senator from Eastern Fairfax. Thank you

[05:45:59] Madam President. Move the bill passed and speaking to the motion. Senator has the floor. Thank you Madam President. This is a really exciting bill about easements inservient estates. What it's really about is ways to modify easements that have been on the books for a long time if the owner of the easement is being difficult about it. The delegate who brought it brought a bill last year based on this new model act that had been proposed. If you all recall, it actually came to the floor of the Senate, and then we had problems

[05:46:34] with it on the floor, sent it back to committee, died in committee. She brought it back this year, this year heavily modified, simplified, and I guess more of a, what shall we say, is a Virginia-based response to the problem instead of using this Uniform Act thing. And I believe the Boyd-Graves Commission actually looked at it as well, if I'm not mistaken, and gave us this recommendation, which is why it escaped committee this time on a 30-0-1 vote. I would hope we get adopted the bill.

[05:47:04] The question is, shall House Bill 252 pass? All in favor of that motion will record their votes Those opposed, no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll.

[05:47:22] Ayes 40, noes 0. Ayes 40, noes 0. House Bill 252 passes. House Bill 283, a bill relating to child abuse or neglect for prenatal use of a controlled substance or drug as prescribed, reported from the Committee on Rehabilitation and Social Services.

[05:47:42] Senator from Western Henrico. Thank you, Madam President, move passage of the bill and speaking to that motion. Senator has the floor. Thank you, Madam President. Madam President, I've been talking a lot up here about landlord tenant law today, but this is with the rehab hat. And this is a bill that codifies the Virginia Department of Social Services kind of existing regs.

[05:48:04] But it's about women in recovery from opioid addiction who, you know, are being prescribed medications for that, so methadone and some of these other drugs, and they're pregnant. And what this bill does is it removes ambiguity in state law by making it clear that if a pregnant woman is taking a prescribed medication under the care of her physician, that she is not engaged in child abuse or neglect solely for taking that controlled substance as prescribed. And so that is the bill and I

[05:48:35] move passage. Madam. Senator from Rockingham. Madam President, I would ask if the center from Western Henrico would yield for a question. Will the senator yield? Yeah, I yield. Madam President, I yield. Madam President, I would ask the senator, as I read this, I read it as as saying a drug prescribed by such woman's health care provider for opioid addiction recovery shall not be solely

[05:49:15] used as a reason to suspect that the child is abused or neglected but does I do not read it as saying that the controlled substance has to be prescribed for opioid recovery does the center from Western Henrico read it differently than I do senator from Henrico madam president I think if I'm hearing him

[05:49:49] correctly I would refer him to line 92 where it says 90 91 92 it says as prescribed by such women's health care provider for opium addiction recovery shall not solely be a reason senator from Rockingham madam president speaking briefly the bill and I senator has the floor thank you madam president there are some bills that I think have you know certainly have a partisan air to it This is not one, and I don't think I object to the, I guess, the patron's probable intent

[05:50:28] here, but we've dealt with a number of bills this year that are intended to protect children. We've dealt with bills that encourage and require the Department of Social Services to step up their efforts to protect abused and neglected children and what worries me here is not the intent of this but the probable construction or possible construction of this language in here as indicating that the a woman's use of a

[05:51:06] controlled substance shall not be used as a reason for suspecting that she has is abusing or neglecting children even an irresponsible use of a controlled substance I'm not sure that the language is right and I would hope that you know maybe if this passes and winds up in conference that the chair of the general Laws Committee would maybe take another look at that and make sure that we are

[05:51:43] doing what we ought to do to protect our most vulnerable and make sure that that this is not misread. Senator from Henrico. Yeah Madam President speaking to the bill if no one else. We have one other speaker Senator. Okay then I'll wait.

[05:52:02] Senator from Arlington. Thank you Madam President. Madam President I rise to speak in support of the bill. Senator has the floor. Thank you, Madam President. This clearly is intended to help mothers come forward and get into a prescribed treatment plan so they can kick their opioid addiction. So if you look at it from that perspective, it really is intended to help keep families together. And this bill actually reflects some regulatory

[05:52:42] language that DSS already has on the books. I did a fair amount of investigation into this because I had a very similar bill that got rolled into the bill that the senator from Hampton is carrying. So stakeholders who were involved in this are looking at it as a mother child protection bill has a family friendly bill we want mothers to come forward and go into treatment we cannot have them be afraid that

[05:53:16] going into treatment in and of itself would be a reason to lose custody of their child so it doesn't mean that other factors are not going to come into play they might and if they do then Child Protective Services will do their job but this is this cannot be the only reason that a child is removed from the home I think it's I really do think this is a family support bill and I hope it is the will of the body to pass

[05:53:47] it senator from King George man president speaking to the bill senator has the floor again I agree that the intent is a really good bill but I do have concerns about the language as you read it and and just to give you the most basic example what if a person was taking this as prescribed and it rendered them incapable of taking care of the child if not you would be prevented from removing that child because this bill says you can

[05:54:26] so that's my concern i i just think we ought to get the language right before we pass a bill like this senator from Rockingham president I agree we're speaking the bill senator has the floor I've a great respect for my friend from senator from Arlington and her comments put me even more make me even more concerned than I was before she indicates that this bill would prevent somebody who is you know

[05:55:03] actually going into rehab for substance abuse from having being declared to have abused or neglected a child and I I and I don't disagree with that as being a worthy goal if it was what the bill said going into rehab or abusing a controlled

[05:55:32] substance ought not be the sole reason for somebody to be declared as being an unfit parent. But this is not what the bill says.

[05:55:48] The bill says that they can't even suspect a parent of abuse or neglect if they are a a substance abuser or going into rehabilitation i and it the arguments here reinforce my concerns about the bill if that's the way that it's going to be interpreted i think that we probably ought to take a bet a second look at this and and get it right otherwise i think we're endangering

[05:56:25] children senator from arlington thank you madam president i didn't mean to speak twice on this bill, but I just want to be clear that if the woman, because she's in a treatment program, if there are some other reasons, if the child is left unfed, if the child is left unattended to, or the child is physically abused, those are reasons that the child could be removed.

[05:56:55] That's under the best interest of the child statute when we're talking about custody and protecting our children. So if there are associated reasons that will affect the well-being of the child, then other statutes and regulations kick in. All this is talking about is the specific use, not the impact of the use. It's only talking about the specific use of a prescribed drug so the mother can deal with an addiction. I don't know any other way of explaining this,

[05:57:32] But this bill, I believe, allows for some positive expectations and some positive implementation factors when we're talking about child welfare, a child staying with the mother, and the mother coming forward for treatment.

[05:57:53] I guess I renew my support for the bill. Thank you. Senator from Western Henrike. Thank you, Madam President. If no one else is going to speak to the bill, I guess I'll speak briefly. Senator has the floor. Thank you, Madam President, members of the committee.

[05:58:09] I think the senator from Arlington did a pretty good job of explaining that it's so, right, the whole aspect of the solely and that there's other factors that could come into play. I guess I'll just flip it and say there's another thing here, right, which is that we should want folks in many cases to be on this medication.

[05:58:29] And if they feel like they have to choose to not be on the medication because they, for just that reason, might end up having their child taken away, We could have parents relapsing into drug addiction, which is worse for the kid, right? And which is bad for families. And so I would just move that we pass the bill.

[05:58:47] The question is, shall House Bill 283 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[05:59:07] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, Nose 19. House Bill 283 passes. House Bill 285, a bill to establish the Distributed Energy Resource Task Force reports sunset reported from the Committee on Rules with a substitute and from the Committee on Finance and Appropriations.

[05:59:40] Senator from Hampton. Thank you, Madam President. I move that the Committee substitute be agreed to. The question is, shall the substitute from the Committee on Rules be agreed to? All in favor of that motion will say aye.

[05:59:55] Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Hampton. I move passage of House Bill 285 and speaking to that. Senator has the floor. Madam President, House Bill 285 creates a task force to develop a comprehensive strategy to advance the Commonwealth's transition toward integrated distributive energy resource markets and to support the Commonwealth's compliance with certain regulations.

[06:00:21] The substitute specifies that the task force is created within the Department of Energy and that the Lieutenant Governor will work on this task force. And with that, Madam President, I renew my motion that 285 pass.

[06:00:37] The question is, shall House Bill 285 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[06:00:52] clerk will close the roll. Ayes 22, noes 18. Ayes 22, noes 18. House bill 285 passes. House bill 303, a bill relating to divorce, adultery, filing parties living separate and apart reported from the committee for courts of justice with amendments. Senator from Eastern Fairfax. Thank you Madam President. Move the committee amendments. The question is, shall the amendments from the committee for courts of justice be agreed to all in favor of that motion will say aye those opposed no the eyes have it the amendments are agreed to senator from fairfax thank you president move bill

[06:01:31] pass speaking to the senator has the floor thank you mr president uh ladies and gentlemen senate house bill 303 again is a new bill that we have not seen yet this session uh just give you a little bit of context uh virginia is one of the last states in america that still adheres to the concept a fault-based divorce. Most other states have moved to a no-fault divorce system. In Virginia, we kind of have both. What this bill seeks to do is to say that any post-separation adultery cannot be the grounds for divorce action, only pre-separation adultery. In reality, most judges,

[06:02:08] in my experience, don't really pay huge attention to this anymore. You can always bring it up as a factor and circumstance in connection with property division. You can also bring it up in connection with spousal support. The grounds of divorce is really not a thing people fight about a lot anymore. In addition to that, we added an enactment clause of the bill directing the family law coalition to lead a group of stakeholders to figure out whether or not we should even continue to adhere to a fault-based system of divorce, and if not, what legislative change would be necessary to do that. This is stuff most states got rid of in like the 1980s and the 1990s we still have it here and the bill

[06:02:47] sort of I think makes one small step and then sort of maybe set some other things in motion to see if we can modernize our divorce process that's what the bill does the question is shall House bill 303 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote all the senators voted do any senators desire to change their vote the clerk will close

[06:03:18] the roll. Ayes 24, noes 16. Ayes 24, noes 16. House Bill 303 passes. Ayes Bill 374, a bill relating to Manufactured Home Lot Rental Act. We're supported from the Committee on General Laws and

Technology with a substitute and from the Committee on Finance and Appropriations. Senator from Western Henrico.

[06:03:46] Madam President, I move the substitutes. The question is, shall the substitute from the committee on general laws and technology be agreed to all in favor of that motion will say aye aye those opposed no the eyes have it the substitute is agreed to senator from Henrico thank you madam president move passage of the bill and speaking to that senator has the floor thank you madam president madam president members of the body this is the manufactured home lot rental act this bill does two things one is that it requires a landlord to give itemized rent agreement form and then the second thing it does is it says if a

[06:04:24] manufactured home has some kind of health or safety violation that the landlord can't increase rent we one of the things the substitute does is that it says that if somebody is trying to buy the place and then they're seeking to fix whatever the problem is let's say sewage sewer or whatever that they can increase rent if the if the tenants agree uh and so we recommended reporting and i moved the bill pass the question is shall house bill 374 pass all in favor of that motion will record their

[06:05:04] votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 21 knows 19. ayes 21 knows 19. house

[06:05:34] bill 374 passes has bill 429 relating to electric utilities integrated resource plans state corporation commission commission on electric utility reg regulation work group report reported from the committee on commerce and labor with a substitute and from the committee on finance and appropriations senator from charlottesville president i move adoption of the substitute from the committee on commerce and labor the question is shall the substitute from the committee on

[06:06:09] commerce and labor be agreed to all in favor of that motion will say aye aye those opposed no the eyes have it the substitute is agreed to senator from charlottesville madam president i move the bill passed and speaking to that senator has the floor madam president the substitute conformance of bill to senate bill 249 that passed this body in it by a very healthy margin of 21 to 18. it makes one additional change there's a work group that's created by this bill and and gives the scc about six months more longer it extends the deadline on the work group to march 1st of 2027. i reiterate my motion that the bill passed the question is shall house bill

[06:06:47] 429 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk we'll close the roll as 21 nose 19 eyes 21 nose 19 house bill 429 passes has bill 489 a bill relating to restorative practice justice practices reported from the committee for courts of justice

[06:07:23] with a substitute senator from eastern fairfax uh thank you madam president i'd ask that that bill go by for the day we're working on a um some amendments to it before we put it in conference it already has reenactment clause on it but it needs a little bit of work before we take a vote on here without objection house bill 489 goes by for the day has bill 561 a bill relating to driving while intoxicated refusal of tests repeat offenders ignition interlocks reported for the

[06:07:57] committee for courts of justice with amendments senator from eastern fairfax um thank you madam president I would move the amendments the committee members the question is shall the amendments from the committee for courts of justice be agreed to all in favor of that motion will say aye

those opposed no the eyes have it the amendments are agreed to senator from Fairfax madam president bill passes speaking the motion senator has the floor thank you madam president this is this bill's uh an interesting turn of history from my perspective the bill

[06:08:34] basically eliminates all what we call hard license suspensions. Those of us that practice in DUI, the DUI world. What that means is that when somebody's convicted of driving while intoxicated, the court will typically, it's a first offense, they'll order a restricted license and they have to have one of these ignition interlock gadgets on their car. They got to blow in order to get a license and drive. So every time you drive, you got to blow, make sure you're not intoxicated.

[06:09:02] When you get a second offense or a third offense or a second after refusal, under our current law, the court has to give you a license suspension, but for a period of time, you're not allowed to drive at all. Mothers Against Drunk Driving, the sort of alcohol treatment universe, I think even most of the attorneys, law enforcement, etc. sort of come around to the idea that people will still continue to drive even though they don't have a license.

[06:09:34] And it's actually safer for everybody if we authorize them to be able to drive as long as they have one of these interlocks on their car to be testing them. And so that's what the bill does. It basically says that if the defendant wants to pay for an ignition interlock device, we don't have hard license suspensions anymore, which probably will do a better job of keeping our streets safe, keeping people off the highways while intoxicated.

[06:09:58] And it's kind of a very turn from the way we approached this policy back in the mid-80s and 90s and early 2000s. I'd hope we get past the bill. The question is, shall House Bill 561 pass? All in favor of that motion will record their votes aye.

[06:10:15] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 35, noes 5. Ayes 35, noes 5.

[06:10:32] House Bill 561 passes. House Bill 569, a bill relating to prevailing wage rate for public works contracts definition civil penalty reported from the Committee on Commerce and Labor with amendments and from the Committee on Finance and Appropriations with the substitute. Senator from Charlottesville. Madam Chair with the recommendation that the amendments be rejected I move that they be agreed to the question is Sheldia with the recommendation that they be rejected the question is shall the amendments from the Committee on

[06:11:07] Commerce and Labor be agreed to all in favor of the motion will say aye those opposed no no the no's have it the amendments are not agreed to senator from Charlottesville madam chair now move that the substitute from the Committee on Finance and Appropriations be agreed to the question is shall the substitute from the Committee on Finance and Appropriations be agreed to I think the ayes have it. The substitute is agreed to. Senator from Charlottesville.

[06:11:43] Madam Chair, with the substitute, this is a bill that requires the prevailing wage be paid in public works projects. It's similar or it's identical now to a bill that was carried by the senior senator from Virginia Beach or the junior senator from Virginia Beach that passed this body by a very healthy margin and I would move that it pass.

[06:12:08] The question is, shall House Bill 569 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire

to change their vote?

[06:12:26] The clerk will close the roll. Ayes 21, nos 19. Ayes 21, Nose 19. House Bill 569 passes. House Bill 590, a bill relating to Stewart Solar Permitting Platform Established, Residential Solar Energy Systems, reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations.

[06:13:04] Senator from Charlottesville. I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it.

[06:13:21] The substitute is agreed to. Senator from Charlottesville. Madam Chair, I move that the bill passed, and I'd like to speak to that vote. Senator has the floor. Madam Chair, this is a smart solar permitting platform legislation with the substitutes identical to Senate Bill 382 that was carried by the senator from Eastern Fairfax and passed this body with 22 votes, a very healthy margin.

[06:13:46] It's designed to basically streamline the process for solar, streamline the permitting process. I reiterate my motion that it pass. The question is, shall House Bill 590 pass? All in favor of that motion will record their votes aye.

[06:14:03] Those opposed, no. Are the senators ready to vote? Have all the senators voted? do any senators desire to change their vote. The clerk will close the roll. Ayes 23, noes 17.

[06:14:22] Ayes 23, noes 17. House Bill 590 passes. House Bill 597, a bill relating to Wildlife Corridor Grant Fund established voluntary contributions report reported from the Committee on Finance and Appropriations.

[06:14:40] The senator from Portsmouth. Madam President, I move that the bill pass. And.

[06:14:57] Speaking to the motion. Yes, ma'am. Speaking to the motion. Senator has the floor. Madam President. This is the public works contract prevailing wage rate. Yes, it is. Senator, this is. Madam President. Wildlife.

[06:15:12] I got the wrong page. Sorry about that. Senator from Prince William. Madam President. The bill creates the wildlife quarter grant fund as a special nonverting fund on the books the commonwealth and authorizes individual contributions to the fund through department of motor vehicle electronic transactions and individual tax returns so with that explanation madam president i move that the bill pass the question is shall house bill 597 pass all in

[06:15:47] favor of that motion will record their votes aye those opposed no are the senators ready to vote Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 25, noes 15. Ayes 25, noes 15. House Bill 597 passes.

[06:16:11] House Bill 637. A bill relating to possession of residue of a controlled substance penalties exceptions reported from the Committee for Courts of Justice. Senator from Eastern Fairfax. Madam President, move the bill passed.

[06:16:31] I'm speaking of the motion. Senator, House of Floor. Thank you, Madam President. Ladies and gentlemen, Senate, House Bill 637, again, is a new bill. We've not seen yet this session. Last session, we passed a bill that gave Commonwealth attorneys the authority to reduce any kind of felony drug possession, I believe except for maybe fentanyl, to misdemeanor if it only involved a residue case.

[06:16:54] That's a case, for example, where they get like a pipe or a baggie or an object that only has the leftovers or powder like simply residual powder left on it this bill took a little bit and that got vetoed by the governor this bill takes it a little bit different of approach instead of giving the Commonwealth Attorney the discretion to reduce it basically makes the possession of any controlled substance a misdemeanor if the only thing detectable is residue and not a quantity that can be weighed so it takes it away from the Commonwealth attorney just makes it if it's residue it has to be charged convicted as misdemeanor that's basically what the bill does I think it's a more humane way

[06:17:34] to deal with these drug possession cases where there's not a major amount weighable amount left I hope we can pass it the question is shall House Bill 637 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[06:17:56] desire to change their vote. The clerk will close the roll. Ayes 23, noes 17. Ayes 23, noes 17. House Bill 637 passes. House Bill 672, a bill relating to appliance minimum energy and water conservation standards, heating, ventilation, and air conditioning facilities and home appliances. Department of Energy reported from the committee on

[06:18:38] finance and appropriations and with the committee amendment and there's a floor substitute senior senator from Prince William thank you madam president with the recommendation that the amendment from the committee of finance be accepted I move the recommendation be rejected I move we adopt the amendment but the recommendation that it be rejected the question is shall the amendment from the committee on finance and appropriations be agreed to all in favor of that motion

[06:19:12] will say aye. Those opposed, no. No. The noes have it. The amendment is not agreed to. Senator from Prince William. Thank you, Madam President. Move the waive of the reading of the floor substitute. The question is, shall the reading of the floor substitute be waived? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The reading is waived. Senator from Prince William. Thank you, Madam President. Move the adoption of the floor substitute. And speaking to the motion. Senator has the floor. Thank Thank you.

[06:19:45] So our prior action was we removed the reenactment that was placed on the finance committee. The floor substitute before you has a new enactment clause which simply has a 12-month period which it needs to be enacted and come back for the Department of Energy to report any costs associated with it to finance and appropriations.

[06:20:08] So that's what the new enactment clause does. the original bill is identical to my bill that we've also passed and move the adoption of the substitute. The question is shall the floor substitute be agreed to? All in favor of that motion will say aye. Madam President. Aye. Senator from King George. Would the senator yield for a question? Will the senator from Prince William yield? I yield. Senator from King George. I apologize I was trying to keep up with him. But my question to the senator from Prince William would be, how do you budget

[06:20:44] for the second enactment clause? How does the state budget for an enactment clause such as this, where costs are triggered by federal action sometime in the future? Senator from Prince William. Thank you, Madam President. I answered my good friend and senator that it is an enactment clause number two that is triggered by enactment one that only becomes effective 12 months after any such federal actions or changes so in other words you have 12 months to plan if there's changes to occur and

DOE to provide the cost implications to the director of finance and appropriations as well as the chairman of house appropriations so the enactment one which is the bill

[06:21:23] interacts with enactment two now with essentially a 12-month delay of those interactions to give time enough to adjust for any fiscal impact I thank the senator madame president the question is shall the floor substitute be agreed to all in favor of that motion will say aye. Those opposed, no. The ayes have it. The floor substitute is agreed to. Senator from Prince William. Thank you, Madam President. Now move the bill's passage in speaking to the motion. Senator has the floor. I think we've just kind of explained a lot of the bill and move its passage. The question is, shall House Bill 672 pass?

[06:22:01] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19.

[06:22:19] Ayes 21, noes 19. House Bill 672 passes. House Bill 684, a bill relating to photo speed monitoring devices, photo monitoring systems for traffic signals, proof of violation, registered conservators of the peace, and technicians employed by locality training.

[06:22:41] reported from the Committee on Transportation with the substitute, from the Committee on Finance and Appropriations with the substitute, and there is a floor amendment. Senator from York. Thank you Madam President. I move that the committee substitute be agreed to. Senator, we have to reject the committee from transportation first. The substitute from the Committee on Transportation. Madam President, with the recommendation that the

[06:23:20] substitute be agreed to. I recommend that we reject it. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Transportation be agreed to? All in favor of that motion will say aye. Those opposed, no. The no's have it. The substitute from the Committee on Transportation is rejected. Senator from York. Madam President, I move the reading of the floor amendment be waived. Senator, we must first adopt the substitute from

[06:23:53] the Committee on Finance and Appropriations? So moved, Madam President. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from York, we are now on your floor amendment. Madam President, I think we're on the same page now. So, Madam President, I move that the reading of the floor amendment be uh waived the question is shall the reading of the floor amendment be waived all in

[06:24:32] favor of that motion will say aye those opposed no the eyes have it the reading is waived senator from york madam president i move that the floor amendment be agreed to and speaking to the motion senator has the floor thank you madam president uh this is the cognate the senate bill 59 that passed out of this uh house 39 31 to 9 and this amendment only changes the date from july to January and which will now conform with SB 59 and may I remind the members that this is about photo speed enforcement and monitoring and this does not expand

[06:25:10] it in any way it just requires for training for those people who are administering the program so I renew my motion to pass the question is shall the floor amendment be agreed to all in favor of that motion will say aye those Opposed, no. The ayes have it. The floor amendment is agreed to. Senator from York.

[06:25:35] Madam President, I move that the bill be agreed to. Passage of the bill. Having previously explained the bill, I move that the bill be agreed to. Thank you, Senator. The question is, shall House Bill 684 pass? All in favor of that motion will record their votes, aye.

[06:25:59] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 27, noes 13. Ayes 27, noes 13.

[06:26:15] House Bill 684 passes. House Bill 892, a bill relating to electric utilities, integrated resource plans, state corporation commission to investigate electric load forecast. Reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations.

[06:26:35] Senator from Charlottesville. Madam President, I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it.

[06:26:51] The substitute is agreed to. Senator from Charlottesville. Madam President, move the bill pass. I'd like to speak to that, please. Senator has the floor. Thank you. Yes, ma'am. This is a new bill for us. I moved the bill pass. I've already made, okay.

[06:27:06] This is a new bill for us. It requires, it came over here requiring Dominion and the co-ops to provide certain information relative to the Renewable Portfolio Standard and their ability to get renewable energy to the, to the SEC.

[06:27:23] We, when the bill was amended by the Committee on Commerce and Labor and that's contained in the substitute to require this report only from the co-ops that have applied for large load, large load customers, i.e., data centers. So the smaller co-ops are cut out.

[06:27:41] I hope that you'll pass the bill. The question is, shall House Bill 892 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[06:28:02] The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. House Bill 892 passes. House Bill 895. A bill relating to Electric Utilities, Energy Storage Resources, Department of Energy to Develop Model Ordinances, Work Groups, Reports, reported from the Committee on Commerce and Labor with the substitute and from the Committee on Finance and Appropriations.

[06:28:33] Senator from Charlottesville. Madam President, I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Aye. opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville.

[06:28:51] Madam President, I move the bill pass and I'd like to speak to that. Senator has the floor. Thank you. The substitute conforms this bill to Senate Bill 448 that came from the senior senator from Henrico County. It passed this body with a healthy 22 votes. The bill is conformed to to 448 with one addition it requires that that an independent auditor be involved also adds back requirements for energy storage projects to comply with fire safety standards it adds apco to

[06:29:26] subdivision nine about investments and pump storage facilities and adds new enactment calls six um i reiterate my motion that it pass the question is shall house bill 895 pass all in favor of that motion

will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 nose 19. ayes 21 nose 19 house bill 895 passes house bill 903 a bill to require the state

[06:30:05] corporation commission to convene a work group to design an effective regulatory framework to improve electric utility performance in the commonwealth report reported from the committee on rules with a substitute and from the committee on finance and appropriations senator from hampton thank you madam president i move that the substitute from rules we agree to the question is shall the substitute from the committee on rules be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from hampton

[06:30:42] thank you madam president i move that the amendment from finance and appropriations be agreed to the question is shall the amendment from the committee on finance and appropriations be agreed to all in favor of that motion will say aye those opposed no the ayes have it the amendment is agreed to senator from hampton thank you madam president i move that hb 903 pass and speaking to that senator has the floor thank you madam president house belt house bill 903 directs the state corporation commission to convene a work group to design an effective regulatory framework to improve electric utility performance in the commonwealth the rules uh substitute requires the

[06:31:19] scc to evaluate electric utility performance and consider potential regulatory frameworks the finance and appropriations amendment moves the deadline from march 1st to july 1st 2027. and with that explanation madam president i move that hb 903 pass the question is shall hb 903 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[06:31:51] the roll ayes 23 no 17. ayes 23 no 17 hb 903 passes has bill 905 a bill relating to persons other than ministers who may perform rights of marriage clerk issuance of order bond requirement reported from the Committee for Courts of Justice with amendments. Senator from Eastern Fairfax.

[06:32:21] Thank you, Madam President. I move the Committee of Amendments. The question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to.

[06:32:37] senator from eastern fairfax uh thank you madam president bill passes speaking the motion senator has the floor thank you madam president uh this bill pretty simple bill i want to say it might have gotten vetoed last year but i'm not 100 positive but uh provides that a clerk of a circuit court can order one or more people to celebrate the rights of marriage in virginia right now only the judge can issue the order this would just move that to the clerk it also makes the 500 bond discretionary and it also provides immunity for the clerk of the circuit

[06:33:13] court for issuing one of these things absent gross negligence or willful misconduct it's not clear to me how what a clerk could be sued for by wrongfully issuing a marriage order thing but the clerks seem to think they have liability that's what it does and hope we can pass the bill the question is shall HB 905 pass. All in favor of that motion will record their vote aye. Those opposed no.

[06:33:45] Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 24, noes 16. Ayes 24, noes 16. House bill 905 passes. House bill

930, a bill relating to protection of employee retaliatory action prohibited, reported from the Committee on commerce and labor with the substitute and from the Committee on Finance and

[06:34:20] Appropriations. The Senator from Charlottesville. Madam President I move that I move agree that we agree with the substitute from the Committee on Commerce and Labor. The question is shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Aye.

[06:34:38] Those opposed no, the ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam Chair I move the bill pass. I'd like to speak to that please. Senator has the floor. Madam Chair, this bill is one that prohibits an employer from taking retaliatory action against an employee who ledges in good faith that there's been some violation of the law by a supervisor.

[06:35:01] What the substitute does is makes it identical, makes language identical to a portion of Senate Bill 644 that was carried by the senator from Eastern Fairfax that passed this body by a very healthy margin of 20 to 19. It also contains one other change. It requires reenactment in the 2027 session. I reiterate my motion that it pass. The question is, shall House Bill 930 pass? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote?

[06:35:35] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 930 passes. House Bill 972. Relating to voter registration, list maintenance activities, cancellation procedures, record matches, required identification, information, data standards. Reported from the Committee on Privileges and

[06:36:11] Elections with Amendments. Senator from Junior Senate. Finance and Appropriations. Junior Senator from virginia beach thank you madam president i move the committee amendments be agreed to the question is shall the amendments from the committee on privileges and elections be agreed to all in favor of that motion will say aye those opposed no the eyes have it the amendments are agreed to senator from virginia beach thank you madam president um i move hb 972 pass and speak to that motion senator has the floor thank you madam president um hb 972 basically deals with

[06:36:46] voter registration, list maintenance activities, cancellation procedures, required record matches. It talks about the data that has to be reported and matched before a citizen's registration can be cancelled. Then also the bill requires general registrars to send notice prior to canceling voters registration. And then also they also be also includes numerous technical amendments for organizational purposes. The amendment we adapted just removed the requirement for the Department of Vital Records to transmit the DMV ID

[06:37:25] number of each descendant. With that, I move the bill pass. The question is, shall House Bill 972 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, Noes 19. Ayes 21, Noes 19. House Bill 972 passes. House Bill 974. A bill relating to

[06:38:02] witness impeachment evidence designation review process reported from the Committee for Courts of Justice with amendments. The senator from Eastern Fairfax. Thank you, Madam President. I would move the committee amendments. The question is, shall the amendments from the Committee for Courts of Justice be agree to. All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it.

[06:38:31] The amendments are agreed to. Senator from Fairfax. Thank you, Madam President. Move the bill pass. And speaking of the motion. The Senator has the floor. Thank you, Madam President. Uh, ladies and gentlemen, Senate, House Bill 974 is about two-thirds of a bill that was introduced last year that we, uh, I believe carried over. We heard it in committee and then, um, sort of set it aside to have some more work done it went off to a vcjc for them to review they came back with no feedback at all or no consensus and believe the delegate took this up with her local Commonwealth attorney made some revisions to it brought it

[06:39:09] back basically what the bill does is it provides due process to law enforcement officers who are put on a Brady list what that means is is sometimes law enforcement officers are accused of dishonesty and connection with criminal prosecutions when that happens a commonwealth attorney has to put a letter in their file indicating that they've been they've had an issue with integrity in the past and then in future criminal cases that has to be disclosed as part of the discovery process what this bill does is it gives the law enforcement officer the opportunity to get notice that that's happened to them and then to request information to find out why they're being accused of that and then

[06:39:49] to be able to present their side of that back to the commonwealth attorney for the Commonwealth Attorney then decide whether they really want to continue to keep that letter, that file in place. Last year's bill also provided for circuit court review. This year's bill takes that out.

[06:40:05] So this mainly sticks stays between the police officer and the Commonwealth Attorney. The Commonwealth Attorneys were sensitive to the courts getting involved in their discretion as independent constitutional officers. This is sort of the compromise we came up with. Hope we get passed the bill.

[06:40:23] The Senator from Hanover. Madam President, would the senator yield for a question? Will the senator from Fairfax yield? L.U. Senator from Hanover. Madam President, I'd ask the senator, once a letter is issued by law enforcement or Commonwealth attorney, does this bill change the requirement that that be provided to a defense attorney at any point, regardless of whether it's later revoked?

[06:40:48] Senator from Fairfax. Madam President, I'd have to go read the bill. I don't recall it being, my recollection is at least the intent, I'd have to go look at the language to answer specifically your question. My impression was that it was allowed the officer a chance to convince the Commonwealth Attorney that they were wrong in issuing it, which I would assume if the Commonwealth Attorney were to pull it back, then it would not be disclosable.

[06:41:15] But I don't specifically remember what the bill says about that or what the case law might say about that. Madam President, would the Senator yield for additional question? Senator, will you yield? Oyo. Senator from Hanover. Madam President, ask the senators, once one's issued, shouldn't that be information that is able to be obtained by a defendant, regardless of whether it's pulled back in the future? Senator from Fairfax. Madam President, I would say that if the Commonwealth

[06:41:53] Attorney comes to the conclusion that they were wrong in issuing the letter to begin with, then I would say that it might be wrong for it to be issued because all it would do is create confusion about what really happened. I would just note that the the original idea behind the bill evolved from some circumstances where Commonwealth attorneys were, or at least there was one kind of attorney that issued a letter or two letters to deputies in a situation where the Commonwealth attorney was actually the subject of the incident resulting in the letter. And there was an issue about whether there was a conflict of interest relating to the

[06:42:30] issuance of the letter. And so there was a thought, at least amongst the sheriffs, that a little due process might be in order for a Commonwealth attorney to start flagging their employees for stuff involving that Commonwealth attorney. That's what started all this, which I thought made a little bit of sense. But I can see I might be getting some help from somebody else who knows more about this to my right. And maybe that senator can answer the question. The senior senator from - The senior senator from Loudon.

[06:43:00] - President, Madam President, just responding to the senator from Hanover County, briefly, I don't think there's anything about the bill that changes the obligations of the Commonwealth's attorney as it relates to Brady evidence, and what they have to disclose. I'm certain that the senator is very familiar with, you know, coming to the court and saying, hey, court, I believe there's Brady evidence, I want the Commonwealth to disclose it, and typically what the judge says in those circumstances,

[06:43:26] And what the Commonwealth says in those circumstances is the Commonwealth is well aware of its obligations, of its Brady obligations, and well aware of the consequences if there is in fact Brady evidence and the Commonwealth chooses not to disclose, which is the reason why Commonwealth's attorneys typically err on the side of disclosing as much evidence as they have because it can mean later on if they don't disclose something and it is something that they should have disclosed, that that case, even after a conviction, now has to be rolled back and may no longer be prosecutable.

[06:43:54] what i think the bill does is similar to my bill that i did last year it just provides you know historically speaking a law enforcement officer the the concept of a brady list is sort of like a a list that exists um in theory somewhere but it not is not typically something that exists on a piece of paper or in a in a um a place where it can be found i know we talked about this a little bit in um in committee but sue i i think i think what what this does though is lets a law enforcement officer know, hey, puts them on notice.

[06:44:27] You have been, there's something about something that you have done that makes the Commonwealth concerned. They can no longer use you as a witness. And by the way, here's what it is. So that they could, if there were other factors that the Commonwealth hadn't considered, present those factors to them. Historically speaking, sometimes law enforcement officers could quote unquote be put on a Brady list and not know that they are on a Brady list.

[06:44:48] They just know that the Commonwealth keeps null processing their cases, right? And all these back and forth conversations go on with maybe their boss about hey this shady thing happened or something happened we're uncomfortable with it this just provides them a way to know what it is that they're being accused of doing and provide anything that might be mitigating should they have it i don't think it fundamentally changes the brady obligations of the commonwealth's attorney madame president senator from hanover madame president can i ask senator one additional question which senator madame president i don't care which one i yield for a question will the senator from loudon yield

[06:45:24] madam president the reason the reason for my question is as i'm trying to confirm that this only applies to letters issued by commonwealth's attorneys it does not also apply for a letter that would be issued by a sheriff or police a chief for one of their deputies is that accurate senator from loudon uh madam president um to answer the senator's question i i think i mean brady letters have historically been issued by a Commonwealth's attorney because they are the one who chooses whether they are going to call someone into court and use

[06:46:00] them as a witness or not. A sheriff's office or a police department does not do that because they're not putting on hearings. That's why it's the Commonwealth's attorney who says you know hey these these these things have happened we don't feel like we get your credible witness or someone we're willing to put up and so we are not going to use you as a witness anymore. So I guess I'm not familiar with a sheriff's office issuing a quote-unquote Brady letter that process typically is the decertification process, which is, in fact, a separate process.

[06:46:29] Madam Chairman, Madam President, just one final question, just to make sure I'm clear. Will the senator yield? Senator from Loudoun, will you yield? Oh, I'm sorry. Yes, Madam President, I yield. Senator from Hanover. Madam President, so if a sheriff did issue a letter saying that they thought a deputy's testimony for some reason might not be accurate, it would not be covered under the verbiage of this bill?

[06:46:53] - Madam President, to answer the Senator's question, the bill does not change the Brady obligations of the Commonwealth Attorney. And the Commonwealth is charged with anything that is in the possession, custody, or control of their agents. That would include the law enforcement agency that is in the same jurisdiction where they are.

[06:47:11] This bill is just about giving law enforcement a procedural due process way to know what that evidence is that it's being used against them that they so that they're not being deemed to be a credible witness which often has the effect of meaning that they cannot be called to testify and and making it where they cannot have a career anymore because they can't do anything where they interact with people and might be called to testify as a witness senator from Hanover I think that's a no but thank you madam president the chair recognizes the senator from York thank you madam

[06:47:49] president speaking to the bill senator has the floor thank you I think this is good bill that provides due process for law enforcement officers it many times there it there can be a misunderstanding it brings the Commonwealth attorney and the officers together I do wish it would go a little further and have an appeal to a for a judicial hearing but that's not before this bill I think this is a good start and I hope everyone would support the bill the question is shall

[06:48:24] House bill 974 pass all in favor of that motion will record their votes aye those opposed no, are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40 no zero, House Bill 974 passes. House Bill 1046, a bill relating to Virginia Public Procurement Act, additional public works contract requirements,

[06:49:02] reported from the Committee on General Laws and Technology with a substitute and from the Committee on Finance and Appropriations. The senior senator from Prince William. Thank you, Madam President. Move the substitute be agreed to. The question is, shall the substitute from the Committee on General Laws and Technology be agreed to?

[06:49:20] All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Prince William. Thank you, Madam President. I move the bill to pass, and speaking to the motion. Senator has the floor.

[06:49:35] Thank you, Madam President. This is now the Senate Bill 324 that I passed. That passed on a very healthy margin by this body, and so this is inevitably going to go to conference so we can hammer the rest of the elements out. But this is the first step in having a substitute that conforms to the Senate version.

[06:49:55] So I move the bill to pass. The question is, shall House Bill 1046 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? to any Senator's desire to change their vote.

[06:50:12] The clerk will close the roll. Ayes 21, Noes 19. Ayes 21, Noes 19. House Bill 1046 passes. House Bill 1092, a bill relating to protection of employees' standards for heat illness prevention, reported from the Committee on Commerce and Labor with a substitute, and from the Committee on Finance and Appropriations.

[06:50:37] Senator from Charlottesville. Madam President, I move the substitute the Committee on Commerce and Labor be agreed to? The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, move the bill passed and I'd like to speak to that. Senator has the floor. Madam President, this bill requires the Safety and Health Codes Board to adopt regulations protecting workers from heat illness. The substitute conforms the bill to Senate bill 288 that was introduced by the senator from Eastern

[06:51:13] Henrico I think you carried this bill in the past or similar bills I reiterate my motion that it passed it's a very good bill senator the question is shall House bill 1092 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll

[06:51:42] Ayes 21. Noes 19. Ayes 21. Noes 19. House Bill 1092 passes. House Bill 1220. A bill relating to photo speed monitoring devices placement and operation. Reported from the committee on transportation with a substitute and from the committee on finance and appropriations with a substitute. The senior senator from Henrica. Thank you Madam President. Madam President with a recommendation to be rejected I move the substitute from the committee on transportation.

[06:52:16] With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Transportation be agreed to? All in favor of the motion will say aye. Those opposed, no. No. The no's have it. The substitute is not agreed to.

[06:52:33] Senator from Henrico. Madam President, Madam President, I move the substitute from the Committee on Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? in favor of that motion will say aye those opposed no the ayes have it the substitute is agreed to senator from henrico thank you madam president with um that i move passage and speaking to that senator has the floor madam president with the uh substitute from finance and appropriation

[06:53:06] this bill is now identical to senator from norfolk's uh legislation that focused on um photo speed monitoring devices and so that bill passed out of here by margin and i don't see on my sheet but it was bipartisan and so with that i make a motion that the bill passed the question is shall house bill 1220 pass all in favor of that motion will

[06:53:45] record their vote side those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 28, noes 12. Ayes 28, noes 12. House bill 1220 passes. House bill 1263, a bill relating to collective bargaining by public employees, individual home care

[06:54:23] providers, Virginia home care authority established, public employee relations Board establish exclusive bargaining representatives reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations. Senator from Charlottesville. Madam President I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Aye. Those opposed no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam

[06:55:00] President, I move the bill passed and speaking to that. The Senator has the floor. Madam President, this is a collective bargaining bill. The substitute from the Committee on Commerce and Labor conformed this bill. The Senate bill 378 that was carried by the Senator from Eastern Fairfax. It passed here with an abundant margin of 21 vote by vote count 21 to 19 and I would I would ask you again to vote for this bill. The question is, shall House Bill 1263 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to

[06:55:40] change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 1263 passes. House Bill 1393, a bill relating to electric utilities, pilot program for energy assistance and weatherization for certain individuals, cost recovery for certain electrical facilities. Reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations. Senator from Charlottesville. Madam President, I move that the substitute from the Committee on Commerce and

[06:56:20] Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam Chair, Madam President, I move that the bill passed.

[06:56:35] I'd like to speak to that, please. Senator has the floor. Madam President, the substitute that we just adopted conforms this bill to Senate Bill 253 that was carried by the senator from Portsmouth. The first aim of that bill was to I guess extend as a pilot project for undergrounding that would that was in it is in the dominion territory the the important part that was put on that bill on this in this committee on this on this floor i think and then it that's contained in the substitute requires data center center or allows dominion to charge data centers for like for their full share for

[06:57:10] electric power and not put in the same class um six or eight businesses around the state that are also large consumers i hope that you'll pass the bill the question is shall hb 1393 pass all in favor of that motion will record their vote side those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[06:57:45] the role eyes 23 no 17 house bill 1393 passes has bill 1439 a bill relating to regulation of contractors solo installation companies sale lease or power purchase of solar energy systems civil penalty reported from the committee on commerce and labor with a substitute and from the committee on finance and appropriations with a substitute Senator from Charlottesville.

[06:58:22] With the recommendation that it be rejected, I move that the substitute from the Committee on Commerce and Labor be agreed to. With the recommendation that it be rejected, the question is: Shall the substitute from the Committee on Commerce and Labor be agreed to?

[06:58:37] All in favor of that motion will say aye. Those opposed, no. No. The no's have it. The substitute is not agreed to. Senator from Charlottesville. Madam Chair, I move that the substitute from the Committee on Finance and Appropriations be agreed to.

[06:58:53] The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Those opposed? No. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, as in the substitute form, this bill is like Senate Bill 823 that was introduced by the senior senator from Henrico County.

[06:59:15] Senator, are you moving for passage? I'm moving for passage. I apologize. Yes, ma'am. Senator has the floor. I move to pass the bill, and in substitute form, this bill is like Senate Bill 823. It was introduced by the senior senator from Henrico County. The substitute adds provisions for the sale, lease, or power purchase agreements of solar energy systems, including a required disclosure about home sales to a company, a solar financing agreement.

[06:59:41] there are certain provisions that are included in enactment clause that becomes effective on January 1 because we've got to get regulations in place for the Board of Contractors. That's contained in the second and third enactment clauses. I reiterate my motion that the bill pass. The question is, shall House Bill 1439 pass? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any Senators desire to change their vote? The clerk will close the

[07:00:18] roll. Ayes 40, noes 0. Ayes 40, noes 0. House Bill 1439 passes. House Bill 1444, a bill relating to Virginia Clean Energy Innovation Bank established a report.

[07:00:36] Reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations. Senator from Charlottesville. Madam President, I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[07:00:54] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, I move the bill pass, and I'd like to speak to that. Senator has the floor. Madam President, the substitute conforms this bill to Senate Bill 225 that was introduced by the gentleman from Eastern Fairfax that I think passes the Senate with 40 votes surprisingly it relates to a clean energy innovation Bank that we legislation we passed last year that was sent to the governor I don't think it was signed but it was put but the

[07:01:29] governor had an amendment to the budget basically stuck it in there so it we we put our touches on that I reiterate my motion that it passed the question is shall HB 1444 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 40 no 0

[07:02:04] HB 1444 passes has bill 1448 a bill to create the Petersburg Parking Authority Act reported from the committee on finance and appropriations the senator from senior senator from Henrico thank you madam president matter president I move passage and speaking to that. Senator has the floor. Madam President, HB 1448 authorizes the creation of the Petersburg Parking Authority. The bill grants the authority various powers including the authority to construct, operate, and lease parking facilities,

[07:02:42] contract with outside entities, issue revenue bonds and revenue refunding bonds, and acquire property. The bill also exempts the authority from taxation, and I hope it will be will of the body to pass the bill.

[07:03:04] The question is, shall HB 1448 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[07:03:23] The clerk will close the roll. I was 23 no 17 eyes 23 no 17 HP 1448 does not pass the required vote for this bill is 27 returning to page 90 senator from Roanoke madam president senator from Roanoke having voted on the prevailing side in

[07:03:58] which the Senate did not pass House bill 1448 and ask we reconsider that vote The question is, shall the vote by which House Bill 1448 did not pass be reconsidered? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 0. Ayes 39, noes 0. The motion is agreed to. Madam President. Senator from Roanoke.

[07:04:38] I'd ask that House Bill 1448 go by for the day. Without objection, House Bill 1448 will go by for the day. Returning to page 90, House Bill 675. Senator from Eastern Henrico, I mean Eastern Fairfax.

[07:05:07] Still haven't moved, Madam President. Madam President, I would move that the reading of the floor amendment be waived. Senator, we have... Okay, I'm sorry. Move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to?

[07:05:26] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Eastern Fairfax. They have moved to waive reading of the floor amendment. The question is, shall the reading of the floor amendment be waived?

[07:05:42] All in favor of that motion will say aye. Aye. Those opposed, no. The reading is waived. Senator from Fairfax. I move the floor amendment and speak of that motion. Senator has the floor. Thank you, Madam President. This bill has to do with protecting employees from being threatened for things that work due to their immigration status.

[07:06:03] The floor amendment just makes clear in one spot that if a person complains to the Commissioner of Labor that their identity shall not be revealed, there's I think there was some possibility that there was another law that conflicted with that and so that's notwithstanding language was needed to make it clear that the identity was not to be revealed of the complainant I think is what the point is I move we adopt the floor amendment the question is shall the floor amendment be agreed to all in favor of that motion will say

[07:06:42] aye aye those opposed no the ayes have it the floor amendment is agreed to senator from Fairfax. I move the bill pass and speak to the motion. Senator has the floor. Thank you, Madam President. Now the bill as it stands before you prohibits an employer including the state and political subdivisions from using coercion or issuing an immigration threat, in other words threatening somebody's immigration status in furtherance of committing a violation of the Virginia Minimum Wage Act regarding the payment of wages. So right now a person that's complaining is allowed to make a complaint to the Commissioner of

[07:07:19] labor within 180 days of when something like that happens and the commissioner can find the employer the court sub also makes the authority of the dolly commissioner to investigate discretionary instead of mandatory and provides that any civil penalties assessed go to the commissioner of dolly and not i guess where they would otherwise go um i would like to remind everybody that that this involves not just um there was questions in committee about whether this involved undocumented immigrants i just want to make clear that it could also involve other types of immigration status, threatening somebody's green card, their work permit, their

[07:07:56] visa, student visa, etc. There's all kinds of legal statuses which an employer could potentially threaten somebody, you know, if you complain about me not paying you minimum wage, I'm going to report you to whoever it is, I guess ICE. And so that's just not something that should happen, especially for folks who are legal, and I would just say, or undocumented, and I would ask that passed the bill the question is shall hb 675 pass all in favor of that motion will record their votes

[07:08:31] aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 nose 19 ayes 21 nose 19 house bill 675 passes madam president senator from prince george having voted on the prevailing side by which we passed HB 1220. I asked that we could reconsider that vote.

[07:09:01] What page was that, Senator? 129. The question is, shall the vote by which the Senate, which House Bill 1220 on page 129 passed, be reconsidered? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready

[07:09:37] to vote. Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. The motion is agreed to. Senior Senator from Henrico.

[07:09:57] Thank you, Madam President. Having previously explained the legislation, I move passage. The question is, shall House Bill 1220 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[07:10:13] Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 26, noes 14. Ayes 26, noes 14. House Bill 1220 passes. Returning to page 75, House Bill 1019.

[07:10:43] Senator from Arlington. Thank you, Madam President. Madam President, I move that the bill pass, and speaking to the motion. The Senator has the floor. Thank you, Madam President. And what this bill does is it renames the Smart Chart Network Program to the Health Coordination Network Program and relocates the program within our code.

[07:11:04] The bill expands patient-level data elements and specifies that the Commissioner of Health enter into a contract with an authorized nonprofit organization to create, operate, maintain, and administer the Health Coordination Network Program.

[07:11:20] with that explanation i renew my motion that the bill pass the question is shall house bill 1019 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[07:11:45] the roll ayes 39 noes one ayes 39 noes one house bill 1019 passes uncontested calendar house bills on second reading.

[07:12:09] The Senator from Eastern Fairfax. Madam President, I move that all the House bills on second reading on the uncontested and regular calendars, pages 133 to 136, House Bill 128 to 1479, that the rules be suspended and the second constitutional reading of the titles be dispensed with.

[07:12:26] The question is, shall the rules be suspended in the second reading of the titles of the House bills on the uncontested and regular calendars, pages 133 through 136, HB 128 through HB 1479 be dispensed with. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The reading of the

[07:13:01] titles is dispensed with. Senator from Eastern Fairfax. Move those bills goodbye for the day. The question is, shall the House bills on the uncontested and regular calendars, now on their third reading, go by for the day? All in favor of that motion will say aye.

[07:13:19] Those opposed, no. The ayes have it. The bills will go by for the day. Memorial resolution, excuse me, missed one.

[07:13:36] Uncontested calendar, Senate joint resolution on third reading. Senate Joint Resolution 139, confirming appointments by the governor of certain persons communicated to the General Assembly February the 2nd, 2026. Reported from the Committee on Privileges and Elections.

[07:13:54] The junior senator from Virginia Beach. Thank you, Madam President. I move that we reconsider the vote by which the resolution was ordered to be engrossed in advance to a steroid reading. The question is, shall the Senate reconsider the vote by which the resolution was ordered to be engrossed in advance to its third reading all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll

[07:14:34] ayes 39 noes 0. ayes 39 noes 0 the the vote is reconsidered senator from virginia beach thank you madam president i move that we waive reading of the floor amendment the question is shall the reading of the floor amendment be waived all in favor of that motion will say aye those those opposed no the ayes have it the reading is waived senator from virginia beach thank you Thank you, Madam President. I move that we agree to the floor amendment and speak into

[07:15:08] that motion. Senator has the floor. Thank you, Madam President. In SJ139 on line 18, we just want to strike the -- it's a technical amendment in terms of who the person is that's being seceded, and that is the only difference. I know it's kind of confusing, but when you look at it, it doesn't change who's actually being appointed. It just changes who the person is that it's being succeeded in terms of the resolution and with that I move that we engrossed in advance to a stirred reading. Senator we have to agree to the floor amendment first. The question

[07:15:45] is shall the floor amendment be agreed to? All in favor of that motion will say aye. Aye. Those opposed no. The ayes have it. The floor amendment is agreed to. Senator from Virginia Beach. Thank you Madam President. I move that we engrossed in advance to a stirred reading. The question is shall Will SJR 139 now be engrossed in advance to his third reading?

[07:16:05] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The bill is engrossed in advance. Senator from Virginia Beach. Thank you, Madam President. I move that we suspend

the rules and waive the third reading. The question is, shall the rules now be suspended and the third reading be waived?

[07:16:23] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 40 no zero eyes 40 no zero the motion is agreed to senator from virginia beach thank you madam president i move that the bill be the resolution be agreed to speak into that motion senator has the floor thank you madam president this uh resolution of government appointments

[07:16:58] deals with agency heads and with that i move uh passage that it be agreed to the question is shall sjr 139 now be agreed to all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 40 no zero eyes 40 no zero sjr 139 is agreed

[07:17:32] to memorial resolutions senator from eastern fairfax madam president i move the memorial resolutions on pages 137 to 141 S.J.R. 176 to S.R. 112 be considered in a block in the usual manner waiving the reading of the resolutions that I have with the understanding that any senator desiring resolution be removed from the block. We'll do so after the clerk has read the title of the resolution. The question is, shall the memorial resolutions on pages 137 through 141

[07:18:05] S.J.R. 176 through S.R. 112 be considered in the block in the usual manner waiving the reading of the resolutions thereof, with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the title of the resolution.

[07:18:25] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The motion is agreed to. The resolutions are now before us in the block. The clerk will read the titles of the memorial resolutions. Joint Resolution 176 celebrating the life of Edward Philip Hickman Jr. Senate Joint Resolution 177 celebrating the life of Barbara Radcliffe Gray. Senate Joint Resolution 180 celebrating the life of Mary Louise Hinton Crother. Senate

[07:19:03] Joint Resolution 183 celebrating the life of Marvin Ashby Sr. Senate Joint Joint Resolution 184: Celebrating the life of Cecil Heber Breeden Jr.

[07:19:19] Senate Joint Resolution 185: Celebrating the life of Kevin Lee Hughart. Senate Joint Resolution 186: Celebrating the life of James Charton Graves.

[07:19:35] Senate Joint Resolution 187: Celebrating the life of Nancy Thuma Bowles. Senate Joint Resolution 191, celebrating the life of Alyssa Lynn Abano Cacol.

[07:19:52] Senate Joint Resolution 192, celebrating the life of George Baskerville Lancaster Jr. Senate Joint Resolution 195, celebrating the life of Ronald William Buzio.

[07:20:10] Senate Joint Resolution 197, celebrating the life of Robert B. Weir. Senate Joint Resolution 201: Celebrating the life of Robert Selden Duvall. Senate Joint Resolution 206: Celebrating the life of William Edward Jamerson Sr.

[07:20:33] Senate Joint Resolution 212: Celebrating the life of Brenda Campbell. Senate Joint Resolution 216: Celebrating the life of Catherine Agnes Martin Hudgens.

[07:20:49] Senate Joint Resolution 217, celebrating the life of Braden Thomas Cutler. Senate Joint Resolution 219, celebrating the life of Yahud Muser, Ph.D.

[07:21:11] Senate Joint Resolution 224, celebrating the life of John Christopher Wellborn. Senate Joint Resolution 227, celebrating the life of Daniel Robert Fry. Senate Joint Resolution 229, celebrating the life of Christopher John Tutko.

[07:21:33] Senate Joint Resolution 235, celebrating the life of Joseph C. Ritchie. Senate Joint Resolution 236, celebrating the life of Ron Yell DeSean Whitaker.

[07:21:50] Senate Joint Resolution 237, celebrating the life of John T. Kasteen III. Center Joint Resolution 238: Celebrating the life of Eva Marie Coles Caldwell Becker.

[07:22:08] Center Joint Resolution 241: Celebrating the life of King Saleem Kafani. Center Joint Resolution 245: Celebrating the life of Dorothy Lee Wilson.

[07:22:28] Joint Resolution 245, celebrating the life of Jane Pasoli Edmondson. Senate Joint Resolution 250, celebrating the life of Carol A. Bruce.

[07:22:45] Senate Joint Resolution 255, celebrating the life of Michael R. Gray. Madam President. Senator from Northern Fairfax. Can SJR 255 come out of the block and buy for the day, please? Without objection, SJR 255 is out of the block and bye for the day.

[07:23:04] Senate Resolution 97, celebrating the life of the Honorable Gerald C. Jones. Madam President. Senator from Norfolk. Thank you, Madam President. Can Senate Resolution 97 come out of the block? Without objection, Senate Resolution 97 is out of the block.

[07:23:23] Thank you. Senate Resolution 98, celebrating the life of F. Patrick Cavanaugh, Jr. Senate Resolution 99, celebrating the life of Virginia Esqueda Gilpin.

[07:23:39] Senate Resolution 100, celebrating the life of Wade Wallahan Massey. Senate Resolution 104, celebrating the life of K-9 Scout. Senate Resolution 105, celebrating the life of Colonel John Snyder, United States Air Force, retired.

[07:24:05] Senate Resolution 107, celebrating the life of Theodore D. Elliott. Senate Resolution 109, celebrating the life of Nicholas Philip Pacirino. Senate Resolution 112, celebrating the life of John Howard Hodges.

[07:24:26] The resolutions will be agreed to in the usual manner, that is, all resolutions except for SJR 255 and SR 97 on page 140. All those in favor of agreeing to the memorial resolutions, please rise.

[07:24:51] The resolutions are agreed to. Senate Resolution 97. Senator from Charlottesville. Madam President, three times in the last 12 months, I've lost friends that I served with the NASA delegates.

[07:25:16] Delegate Jones, or the Honorable Gerald Jones, was a judge, but he was a whole lot more than that. guess most of you know that he's the father of the current attorney general and I'll tell you he was he was very proud of his son but Gerald was a whole lot more than that he went to school in Norfolk he was among the first African Americans went to the Episcopal high school in Lynchburg he went from there to Princeton then he went to Washington and Lee law school he practiced law he's one of the busiest lawyers I knew he taught me a whole lot about how to try to balance being a legislator and a lawyer, and I've never figured it out.

[07:25:55] I never did it as well as he did, that's for sure. He was one of the first people I knew that had, I guess, a buzzer on his belt that rang all day long, and he was going back in the empty room to talk to

clients.

[07:26:12] He was my seatmate when I got here. In those days, you know, today, everything runs through Portsmouth. Madam President, Madam President Pro Temp is from Portsmouth, the Speaker of the House is from Portsmouth. In those days, on this end of the hall, Norfolk was represented by Stanley Walker, who was the President Pro Tem, and Yvonne Miller.

[07:26:33] And on the other end of the hall, Norfolk was represented by Tom Moss, who was the Speaker of the House, George Heilig, Billy Robinson, Howard Copeland, and Gerald Jones. Gerald was the youngest, and he often got to go for work.

[07:26:49] Two years. Two years. I'm not going to tell you who because I'm not sure the statute of limitations has run on it yet. But somebody cast Gerald's votes for him and got him pretty much right while Gerald was gophering us.

[07:27:07] You won't believe this, given where we are today, but the Speaker of the House of Delegates in those days wanted a casino, or he didn't want a casino, but he wanted riverboat gambling in Norfolk. could never get the bill out of the house of delegates can you imagine that a speaker of the house couldn't get the bill out of this but but my seatmate was out of his seat for two straight years working that bill going around trying to trying to make deals trying to figure out how to get people to vote for that and he never could get it passed we are at a different time now I recognize that

[07:27:43] but Gerald Jones was one of the smartest most thoughtful most any but most blow you away type speakers I've ever served with he could stand up on a moment's notice and have you in tears or have you laughing or just blow you away with how smart he was and how much he thought about the issue when he was just unbelievable and it was destined to great things I think he in 2001 he ran for the Democratic nomination for lieutenant governor that didn't work out. Tim Kaine ended up being the lieutenant governor nominee that year.

[07:28:23] Gerald served one more part of another term in the House of Delegates and he became the director of the Department of Juvenile Justice. Then he became a juvenile court judge in Norfolk and I'm convinced that was the job. He was that that's where his destiny was but he ended up going to the circuit court from there and having a distinguished career as a circuit court judge. He is somebody who made a difference. He was the kind of public servant that made a difference. Every day he served, in every way he served. And in lots of respects through his son, he's

[07:28:55] still serving. So I hope we will agree to this resolution. Chair recognizes the senator from Norfolk. Thank you, Madam President. I think this is speaking to the resolution.

[07:29:12] Senator has the floor. Thank you. So when I saw this resolution, it was really kind of a flashback, because because I can't remember a time in my life that I didn't know. I called him Judge Gerald, Judge Gerald Jones. I knew him when he was in the House of Delegates.

[07:29:29] He and my family were great friends, and it was just an honor to know him. It was like knowing a rock star as a kid, but then growing up to actually get to know him as a human being, as an adult, and really be able to appreciate who he was as a human being, who he was as an advocate for justice, who he was as an advocate for the black community.

[07:29:54] And he's given me so much advice over the course of time. And it just is one of those things that when you have people in your life and you don't get to talk to them often, and we often make excuses, oh, they're busy.

[07:30:11] I'm busy, I'll get to it, I'll get around to it. His life and passing is a reminder that we should all not be too busy to stop and talk to the people who mean so much to us the people who pour into us I was a product of at the time old parents my mom was 43 when she had me and so I got all of their older friends wisdom and knowledge and Judge Gerald was one of those individuals when we had the old courthouse in Norfolk I could walk over from the City Hall building

[07:30:46] And he would take a recess to come off the bench into his office and talk to me. And one of the things, I don't know why this sticks in my mind so much, but he had a plethora of awards and certificates and doodads and all kinds of stuff that people had given him that were engraved for this or that or that or this.

[07:31:13] and i said to him in the old courthouse i said just jerry what you gonna do with all this stuff i mean you got like a storage unit of stuff here when you all go to the new courthouse what are you gonna do with it and he said my mother said i have to take it with me this is a grown man who's saying my mama said i have to take it with me and my mama said that those people thought enough of you to give you something to acknowledge you then you have to take it and you have to display it

[07:31:49] and some kind of way him and his mama and probably uh his wife judge lynn uh got all that plethora of stuff out of the old building and into the new building in a way that it was properly displayed so that people would see those things he was thoughtful he was kind he was very colorful in his language but he was funny and he was full of wisdom and that's what i think that is so special

[07:32:22] about him is not only was he full of wisdom but he was always willing to share it and so it was my honor when I was elected first elected in 2010 when I was asked who did I want to be my judge to swear me in for a city council it was Judge Daryl and it was Judge Daryl for four four more other times and when I came to the House of Delegates where we have our swearing in ceremonies he came all the way to Richmond in order to swear me in and I will always be grateful for to him for that but I will be grateful to him for the knowledge and the wisdom that he left

[07:33:01] with me and for the impact that he left not only on the Commonwealth but on the greater United States of America just because he lived and because he gave of himself to a higher calling so I'm not sure what the motion is supposed to be at this point but you know madam president the chair recognizes the junior senator from Virginia Beach speak to the resolution senator has the floor thank about a president judge jones was um incredible man he was a giant of a man to me um you know

[07:33:40] someone who myself who grew up without a father and i remember first meeting judge jones and seeing his relationship he had with his son jay the current attorney general it was one that i could only dream about but before i even knew he was a judge i just thought he was a funny guy and And I really didn't know his history too much, but I know we shared our fondness for jazz music.

[07:34:05] And he just made you feel so comfortable in terms of being proud of who you are and where you were from. And when I managed to win the election in the city of Virginia Beach, Judge Jones was one of the first men who called me and congratulated me.

[07:34:22] Told me I was doing a good job and it was out the blue. And I was like, by then I knew he was a federal judge, but I said all the things he has on his plate. I don't know how he got my number the first time. But he called and managed to just give me and show me support. And I'm going to miss him.

[07:34:38] I mean, we had some other fine times as well. But when we think about, at least when I think about, when I look at my own son, who will be 22 this year, and I look at my children, I think about who would be in a perfect example of not having one growing up.

[07:34:56] The Honorable Judge Gerald Jones, he fits that more perfectly. So I just want to show my respect, not only for him and his family, but also Ms. Lynn, Judge Lynn as well. Beautiful family, and a man surely will be missed.

[07:35:14] The chair recognizes the senior senator from Fairfax. Thank you, Madam President. Speak to the resolution. Senator has the floor. Thank you. I had the wonderful opportunity of working with Gerald Jones as president of the Juvenile Justice Association here in Virginia.

[07:35:34] And then he succeeded me as director of the Department of Juvenile Justice, and I had the privilege of working with him for two weeks in the transition process. And as I remember driving home that day, I knew that the agency I loved so much was in the hands of an amazing man.

[07:35:50] And I'll always remember him. I'll always appreciate what he did for that agency. And I move that I reiterate everyone's motion that this resolution pass. The chair recognizes the senior senator from Henrico. Thank you, Madam President. Speaking to the resolution.

[07:36:09] Senator has the floor. It's one of those things I think when you're in church and you see folks having testimony And you don't have a testimony in the beginning, but then you start hearing folks talk. And I don't want to miss an opportunity as much as he did for so many people to say thank you on behalf of not just the Norfolk community, but Virginia as a whole.

[07:36:39] It's not many nice guys left that can get stuff done. And that's what he was. course we all know they came from a from good stock and every time I visit a church in Norfolk or talk to some folks in Norfolk and they talk about his mother and how he went back into being a little boy every time he was around his

[07:37:12] mother and every Sunday he was in church sitting beside his mother and serving as her assistant but at the same time I can remember him calling and giving as a Senate as a junior senator from Virginia Beach Street shared I can remember him calling every time he knew something was going on with you to offer some advice and also offer some encouragement and I wish I wish that he was here to see what

[07:37:50] happened issue this past year and he was married to one of the sweetest women and I hope Jay Jones is watching because he knows I have a crush on his mother.

[07:38:07] Gerald knew I had a crush on Lynn, but he was married to one of the sweetest women. Javada knows that I have a crush on him. But they're just good people. But I think about his relationship with his family and every conversation that he had, being I had, no matter what he was calling for, whatever I called for, he

[07:38:39] ended with take care of jay and that is the ideal man a man that is not self-absorbed with himself but is focused on family those who raise you and those you are raising and he did it for

[07:39:08] the entire community so rest well picture the resolution sr 97 will be agreed to in the usual manner all those in favor of agreeing to the memorial resolution please rise the resolution

[07:39:38] is agreed to commending resolutions senator from eastern fairfax um thank you madam president i move the commending resolutions on pages 141 through 148 hdr 236 through sr 113 be considered a block by voice vote waiving the reading of the resolutions with the understanding that any senator desiring a resolution be removed from the block will do so After the clerk has read the number of resolutions.

[07:40:15] The question is, shall the commending resolutions on pages 141 through 148, H.J.R. 236 through S.R. 113, be considered in the block by voice vote, waiving the reading of the resolutions with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the number of the resolution.

[07:40:38] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The motion is agreed to. The resolutions are now before us in the block. The clerk will read the number of the resolutions. House Joint Resolutions 236, 239.

[07:40:57] Madam President. Senator from Roanoke. Can House Joint Resolution 236 please come out of the block and bye for the day? Without objection, HJR 236 is out of the block and bye for the day. Senate Joint Resolutions.

[07:41:59] 210. 211. 213. 214. 215. 218. President. Senator from Fairfax. Can SJR 218 come out of the block and buy for the day? Without objection, SJR 218 is out of the block and

[07:42:22] by for the day 221 222 223 225 226 228 230 231 232 233 234 239 240 242 243 246 247

[07:42:55] 248, 249, 251, 252, 253, 254, 256, Senate Resolution 101, 102, 103, 106, 108, 1010, 111, Senate Resolution 113.

[07:43:36] The question is, shall the resolutions be agreed to? That is, all resolutions except for HJR 236 on page 141 and SJR 218 on page 144. All in favor of agreeing to the resolutions will say aye. Those opposed, no. The ayes have it. The resolutions are agreed to. Supplemental calendar

[07:44:09] Calendar number one, uncontested calendar, Senate bills on second reading. Senator from Eastern Fairfax. Madam President, I move that all the House bills on the second reading on the uncontested regular calendars, pages one through 21, House Bill 69 to House Bill 1481, that the rules be suspended and the second constitutional reading of the titles be dispensed with.

[07:44:40] The question is, shall the rules be suspended in the second reading of the titles of the House bills on the uncontested and regular calendars pages 1 through 21 HB 69 through HB 1481 be dispensed with. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 37, noes 0. Ayes 37, noes 0. The reading of the titles is dispensed

[07:45:15] with senator from eastern fairfax and president asked though all those bills go by for the day the question is shall the house bills on the uncontested and regular calendars now on their third reading go by for the day all in favor of that motion will say aye those opposed no the eyes have it the bills will go by for the day senator from eastern fairfax inquiry of the clerk Does that complete today's book, otherwise known as our March 10th calendar?

[07:45:49] Yes, sir. Finally. Is there any other business to come before the Senate? The clerk will report any announcements on the desk. Today, Tuesday, February 10th, the Committee on Privileges and Elections will meet immediately upon adjournment at the chair's desk.

[07:46:15] Tomorrow, Wednesday, February 11th, the Women's Legislative Roundtable will meet virtually at 8.30 a.m. The Democratic Caucus will meet 45 minutes before session in Senate Room 1. The Republican Caucus will meet 30 minutes before session in Senate Room 2.

[07:46:37] The chair recognizes the senator from Portsmouth. Thank you, Madam President. Madam President, I move that the Senate do now adjourn until 10 a.m. tomorrow. The question is, shall the Senate adjourn until 10 a.m. tomorrow?

[07:46:55] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The motion is agreed to. The Senate stands adjourned until 10 a.m. tomorrow.

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